

CIVIL PROCEDURE NOTES

THE LAW AND PRACTICE OF CIVIL PROCEDURE.

The law of civil procedure concerns itself with the rules that govern the process of obtaining relief from an appropriate forum by an aggrieved party. Whereas substantive law sets out the rights and obligations of parties, civil procedure deals with the manner of enforcement of such rights.

The enforcement of rights may be through the adversarial court system or through the alternative dispute resolution mechanism. Civil procedure therefore, sets out the legal procedural and practical steps that an aggrieved party must undertake in order to enforce any right or obtain the relevant relief from the most appropriate forum available under the law.

Civil procedure further entails the steps that may be taken by an aggrieved party to challenge the decision of court of law and or to obtain the benefit of the judgment or decree.

The subject matter of adjudication in civil proceedings.

Civil procedure deals with disputes which are justiciable in nature and the resolution of such disputes is not for academic purposes. The role of courts of law is to administer substantive disputes as opposed to hypothetical disputes.

It follows, therefore, that where a dispute has become moot, it is no longer capable of attracting judicial consideration and any decision made thereof will be moot.

The courts of law in administration of justice cannot entertain non-justiciable disputes for the reason that any party seeking relief from court must demonstrate that they are legally aggrieved.

Justice **Stephen Musota** stated in **Kampala University v National Council for Higher Education (MISC. CAUSE No. 053 OF 2014) [2014] UGHCCD 125 (20 October 2014);**

“A person aggrieved must be a man or woman who has suffered a legal grievance, a man against whom a decision has been pronounced, which has wrongfully deprived him or her of something or wrongfully affected his title. This was the decision in ex-parte Side Botham in Re Said Botham [1880] 14 Ch D 458, 465.”

In Uganda Telecom Ltd Vs Warid Telecom (U)Ltd (CIVIL APPEAL NO.28 OF 2015) [2015] UGCOMM 148 (13 November 2015);

Counsel for the respondent challenged the appeal on grounds that it was moot and academic as there no pending main application from which it arose was subsisting as the same was withdrawn with costs to the respondent. That High Court Miscellaneous Application No. 490 of 2015, which was for leave to appeal, was dismissed by Hon. Justice Flavia Anglin



Senoga on the 20th day of October 2015, High Court Miscellaneous Application No.492 of 2015, which was the main application from which High Court Miscellaneous Application No.493 arose itself had been withdrawn on the 9th day of September 2015. Similarly High Court Miscellaneous Application No. 477 of 2015 which was an application for unconditional leave to appear and defend High Court Civil Suit No. 372 of 2014 has itself been concluded by Hon. Justice Flavia Anglin Senoga on the 18th day of June 2015.

Justice **HENRY PETER ADONYO** Held;

That being the case, I would consider and agree with learned counsel for the respondent that this appeal is indeed moot and is merely academic as this was the point belaboured upon by my learned brother Musota Stephen J when confronted by similar situation in the matter of **An Application For Judicial Review Between Julius Maganda v National Resistance Movement High Court High Court Miscellaneous Application No.154 of 2010** with the learned judge having this to say;

“Courts of law do not decide cases where no live disputes between parties are in existence. Courts do not decide cases or issue orders for academic purposes only. Court orders must have practical effects. They cannot issue orders where the issues in dispute have been removed or merely no longer exist”.

This position was confirmed by the Court of Appeal in the case of **Human Rights Network for Journalist and Another v Uganda Communications Commission & Others Miscellaneous Cause No. 219 of 2013**.

Therefore with the above considerations related to the instant matter, it would appear clear to this court that the instant appellant is engaged in an exercise in futility for it is evident that the main causes from which the instant appeal arise are no longer in existence and that the rights of the parties have since been determined. Thus I would consider and find that if that is so then this appeal is misadvised and indeed a waste of the courts times for it the issue of costs has already been resolved by the very main applications from which the decision in the stated Miscellaneous Application is contended.

That being the case I find that to pursue an appeal on matters which have since lost its backbone would in my view be an exercise in futility and thus merely academic and would add no value to the jurisprudence of the courts and would

be of consequence since issue of costs which this instant appeal is grounded has already been competently resolved

In **Human Rights Network for Journalists & another versus Uganda Communications Commission & Others Miscellaneous Cause No. 219 of 2013** in which Justice Yasin Nyanzi of while considering the mootness of a matter in court considered extensively a number of decisions and ended up concluding that courts do not hear matters which are moot for that would be in abuse of the court process and would be of no consequence.



In Katuntu vs MTN Uganda Ltd & ANOR (HCCS NO 248 OF 2012) [2015] UGCOMM 83

The following authorities were mentioned.

In the appellate division of the East African Court of Justice in the case of **Legal Brains Trust (LBT) Ltd versus Attorney General**, It was held that it was a cardinal doctrine of jurisprudence that a court of law will not adjudicate hypothetical questions. Such hypothetical questions are those where no live dispute exists.

According to the case of **Joseph Borowski versus Attorney General of Canada** (supra) it was noted that the doctrine of mootness involves a two step analysis. Firstly the court must determine whether the requisite tangible and concrete dispute has disappeared rendering the issue academic. Secondly it is for the court to decide whether to exercise judicial discretion to decide on the merits of the case in the absence of a live controversy.

In Environmental Action Network Ltd versus Joseph Eryau Civil Application Number 98 of 2008 for the holding that courts do not decide cases for academic purposes because court orders must have a practical effect and be capable of enforcement.

In **Legal Brains Trust (lbt) limited v the Attorney General of Uganda**, the speaker of Parliament of Uganda, requested the Attorney General to seek an advisory opinion from the East African Court of Justice on the interpretation of Article 51(1) of the regarding the tenure of office of the elected members to EALA. The Attorney General did not refer the matter but gave his own interpretation of the Article. Thereafter the appellant lodged a "Reference" in the First Instance Division of this Court, seeking that Court's interpretation of Article 51 (1) of the Treaty, to which he appealed.

Held

That the applicant had no locus to lodge the reference. That The matter brought before this Court lacked any underlying factual situation capable of giving rise to any real dispute. For the Court to entertain any such matter, would amount to entertaining the academic, the abstract and the speculative -with all the attendant abuse of the court process

In this regard, it is a cardinal doctrine of our jurisprudence that a court of law will not adjudicate hypothetical questions -namely, those concerning which no real, live dispute exists.

A court will not bear a case in the abstract, or one which is purely academic or speculative in nature about which there exists no underlying facts in contention. The reason for this doctrine is to avoid the hollow and futile scenario of a court engaging its efforts in applying a specific law to a set of mere speculative facts. There must be pre-existing facts arising from a real live situation that gives rise to, for instance, a breach of contract, a tortious wrong, or other such grievance on the part of one party against another. Absent such a dispute, the resulting exercise would be but an abuse of the court's process.

In summary, the question raised in the instant case before this Court, was clearly hypothetical, academic, abstract, conjectural and speculative. It should not have been entertained by the Court below.

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In essence, therefore, civil procedure deals with enforcement of legal disputes the remedy thereof is still relevant to the parties.

Applicability of the Civil Procedure Act and other relevant laws.

The Civil Procedure Act constitutes the principle legislation applicable in the High Court, Chief Magistrates Court (save for Magistrate Grade II). The civil procedure rules are equally applicable to the same courts save for Grade II Magistrates courts.

The Magistrates Courts Act is equally applicable to procedure in the magistrates courts save that the rules in the third schedule of the MCA regulate procedure in Grade II Magistrates Courts. In **Nakabago Co-op Society v Kyanga (1992) KALR 137**, it was held that the civil procedure rules which provide for summary suits are inapplicable in courts presided over by magistrate Grade II. The applicable rules are set out in Schedule 3 of MCA

The Civil Procedure Act (CPA) and the rules may equally be invoked in the Court of Appeal and the Supreme Court in the appropriate circumstances.

In **Beatrice Kobusingye v Fiona Nyakana**, the issue was whether certain sections of the Civil Procedure Act were applicable to the Court of Appeal.

Justice Tsekooko held that S. 11 of the Judicature Act vests in the Court of Appeal the same powers, authority and jurisdiction which, for instance in this case, the Grade I Magistrate exercised when he tried and determined the case. What this means is this. After the Court of Appeal has heard and reached its conclusions, in deciding the orders which the Court of Appeal can make the court is bound to make such orders that the trial Magistrate could have made in the case in accordance with law. Obviously the Grade I Magistrate in the conduct of the trial was regulated principally by the Civil Procedure Act and the Civil Procedure Rules in addition to the Magistrates Courts Act.

It follows that in making any orders which the trial Magistrate could make, the Court of Appeal will in effect be applying CPA, Civil Procedure Rules and the Magistrate Courts Act because those are the laws which give the trial Magistrate jurisdiction and powers.

The Supreme Court in British American Tobacco Ltd versus Sedrach Mwijakubi SCCA 1 of 2012 alluded to the provisions of the Civil Procedure Rules – specifically order 50 Rule 2 and Order 25 Rule 6 on the compromise of a suit or consent order.

However in **Uganda Broadcasting Corporation v Sinba K and others** Justice Kakuru stated

that The Supreme Court in British American Tobacco Ltd versus Sedrach Mwijakubi SCCA 1 of 2012 reference to the said rules was in per incuriam.

With utmost respect to the learned Justices of the Supreme Court, I respectfully do not agree that the provisions cited of the Civil Procedure Rules apply in the Supreme Court or



in this Court. Section one of the Civil Procedure Act stipulates as follows:- “1: Application This Act shall extend to the proceedings in the High court and in Magistrates Courts”

The application of the Civil Procedure Act and the Civil Procedure Rules was to that extent was made per incuriam

The CPA and the rules are inexhaustive on all procedure in civil litigation. It follows therefore that where special procedure is provided for by any other legislation or rules under that legislation, such procedure applies. Examples include a divorce petition under the Divorce Act and Divorce Rules, a Constitutional petition under Art 137 of the Constitution and the Constitutional Petitions and References Rules, as well as, the Parliamentary Election Petition under the Parliamentary Elections Act and the rules made thereunder.

The CPA and the rules in such circumstances are only invoked where there is an omission in the set law and rules for which the CPA and the rules provide particular procedure.

For example Rule 7 of the Parliamentary Election Petition Rules provides that; ***“the practice and procedure in respect of a petition shall be regulated, in accordance with the provisions of the Civil Procedure Act and the Rules made under it relating to the trial of a suit in the High Court with such modifications as the court may consider necessary in the interests of justice and expedition of the proceedings”***

As such in Kafeero Sekitoleko Robert V Mugambe Joseph the court referred to the Civil Procedure Rules where it found amendment of election Petitions not provided for by any of the Election Petition rules. Also Court after finding that unlike Election Petition Rules, the Appeal Rules lacked a corresponding provision on proper service, it stated that in the circumstance recourse is made to the Civil Procedure Rules.

Generally the CPA and the rules are deemed to apply unless excepted by any other special legislation.

Other than the aforementioned legislations, there are a multiplicity of other

legislations and rules that may be invoked in civil proceedings depending on the subject matter at heart. For example if government is to sue, it refers to the Government Proceedings Act.

Inherent powers of court

Whereas the law of civil procedure endeavours to afford appropriate relief to any aggrieved party, there are circumstances where no specific remedy or procedure is available under the law. In such



cases, the aggrieved party will move the court to invoke its inherent powers (residual powers) under S.98 CPA, S.33 Judicature Act and Rule 2(2) of the Court of Appeal Rules and Rule 2(2) of the Supreme Court rules.

S.98 CPA provides

Nothing in this Act shall be deemed to limit or otherwise affect the inherent power of the Court to make such orders as may be necessary for the ends of justice or to prevent abuse of the process of the court.

Under rule 2(2) provides¹

“Nothing in these rules shall be taken to limit or otherwise affect the inherent power of the Court of Appeal, or the High Court, to make such orders as may be necessary for attaining ends of justice or to prevent abuse of the process of any such court, and that power shall extend to setting aside judgments which have been proved null and void after they have been passed, and shall be exercised to prevent abuse of the process any court caused by delay.”

Under rule 2(2) provides²

“Nothing in these rules shall be taken to limit or otherwise affect the inherent power of the Supreme Court, or the Court of Appeal, to make such orders as may be necessary for attaining ends of justice or to prevent abuse of the process of any such court, and that power shall extend to setting aside judgments which have been proved null and void after they have been passed, and shall be exercised to prevent abuse of the process any court caused by delay.”

The residual powers of the court under the aforementioned provisions can only be invoked subject to the following limitations;

- i. The court is empowered to grant any relief as the interests of justice may in the circumstances dictate.

In Board of Governors of Kawempe Muslim Secondary School and Another vs. Hussein Kasekende court granted an interim injunction to allow suspended students sit for their O’level final exams in order to ensure that the ends of justice by providing an opportunity to the Respondents to sit the “O” level examinations which are only held once a year. Court continued to state that denying the Applicants’ an opportunity to sit for the “O” level National Examinations before determining their innocence or guilt is to deny them the protection of the law and to punish them before they are heard in the cause.

¹ *The Judicature (Court of Appeal Rules) Directions SI 13-10 S.11 Judicature Act M.N Mpinga & 3 others vs Sensarire & 4 Others C.A.C.App No.35 of 1999 [1998-2000] HCB 42*

² *The Judicature (Supreme Court Rules) Directions SI 13-11 Livingstone Sewanyana vs Martin Alier SCCApp No.4 of 1991 [1992] KALR 118 S.7 Judicature Act*



This was similar to the holding in **Jakisa & 2 ors v Kyambogo university (MISC. APPLICATION NO. 549 OF 2013)** where court also granted a temporary injunction restraining the respondents from preventing the suspended students from accessing campus, attending lectures, sitting for tests, course works and/ or examinations pending the disposal of the main suit, since according to the Judge's view, the Applicants' will suffer irreparable injury which cannot be adequately compensated for by way of damages.

- ii. The court can only exercise its inherent powers where it has primary jurisdiction over the subject matter of the suit.

In **Joseph Byamugisha V National Social Security Fund** – Civil Reference 2 of 2012 a matter arose as to costs in the Court of Appeal. An attempt was made by the Appellant to have his costs taxed in the Supreme Court but a single justice ruled that the venue was the High Court which has original jurisdiction.

- iii. The inherent powers of court cannot be invoked where a remedy was available under the law but the applicant failed to take benefit thereof and is now time barred.

In **Kahoora Enterprises Ltd v Uganda Revenue Authority (MISCELLANEOUS CAUSE NO 8 OF 2012) [2012]** it was held that the remedy of judicial review was not available to the applicant because it was time barred as the application was not made within three months from the date when the grounds of the application first arose

It follows therefore, that where a remedy was available under the rules, the inherent powers of court are inapplicable.

In **Adonia v Mutekanga** [1970] 1 EA 429 it was held that that the courts will not normally exercise their inherent powers where a specific remedy is available and will rarely if ever do so where a specific remedy existed but, for some reason, such as limitation, is no longer available. That the existence of a specific procedure provided by rule does not restrict the court's inherent jurisdiction unless a statute so provides; That the exercise of inherent jurisdiction is a matter of judicial discretion.

In National Union of Clerical, Commercial and Technical Employees V National Insurance Corporation (NIC) CA 17 of 1993 (SC) it was held that

“...The question whether a court should invoke its inherent powers in a given case is a

matter of the courts discretion to be exercised judicially and the availability of an alternative remedy or specific provisions is only one of the factors to be taken into account, but does not limit or remove the court's jurisdiction..."

Applicability of Article 126(2) and 274 of the Constitution.



Article 2(1) &(2) provides for supremacy of the Constitution and render any law inconsistent with the provisions of the Constitution null and void to the extent of the inconsistency. Civil procedure in terms of the Acts and Rules made thereunder must therefore comply with the provisions of the Constitution, it being a grund norm.

It is provided in Article 274 of the Constitution that all pre-existing legislation shall be interpreted subject to necessary modifications, qualifications and adaptations in order to bring it in tandem with the provisions of the constitution.

It follows from the foregoing provisions that any inconsistency in any Act or Rules governing civil proceedings with the constitution, recourse is had to Article 274.

In **Elizabeth Nalumansi Wamala v Jolly Kasande**; The applicant challenged S.30 of the Succession Act. In her ruling JSC Mwendha stated; “These provisions of the Succession Act were enacted in 1906 way before the coming into force of the 1995 Constitution as amended. Their application therefore, can only go as far as they conform to the dictates of the Constitution which is the Supreme law of the land. For this provision (Section 30 of the Succession Act) to apply therefore, must be construed with such modifications, qualifications and exceptions as may be necessary to bring it in conformity with the Constitution under Article 274”

Uganda National Roads Authority v Vivo Energy Uganda ltd (MA No. 209 OF 2014)

The plaintiff/respondent brought a summary suit against the defendant/applicant for which Counsel for the applicant raised a point of law in regard to Regulation 17(2) of the Government Proceedings Regulations which bars bringing suits against the government by summary procedure under Order 36 of the CPR and prayed that the suit be dismissed. In reply, counsel for respondent argued that it is not logical that while the government can bring suits under the same procedure, proceedings cannot be instituted against it under the same procedure. He argued that the Constitution 1995 in Article 21 provides for equality of all persons.

Held;

Court agreed with Counsel for the respondents that unjustified discrimination between the state and an individual is no longer tenable in view of the provisions of Chapter Four of the Constitution 1995. For the above reason the point of law raised by Counsel for the respondents fails.

Court cited **kabandize**



In the case of *Kabandize & 20 others Vs KCCA No.28 of 2011* the applicant challenged S.2 of the 2(1) (b) of the Civil Procedure and Limitations(Miscellaneous Provisions Act Cap 72).which required litigants to first issue and serve a 45 days mandatory notice upon Government and scheduled corporations yet that Government and all scheduled corporations are under no obligation to serve statutory notice of intention to sue to intended defendants.

It was held that While construing **Section 2** of **The Civil Procedure and Limitations (Miscellaneous Provisions Act)** , Courts of law must therefore take into account the provisions of Articles 274 and Article 20 of the Constitution of Uganda. The reading of Article 20(1) and Article 274 of the Constitution together would require **Section 2** in **CAP 72** to be construed with such modifications, adaptations, qualifications and exceptions as is necessary to bring it into conformity with the Constitution

That in view of Article 21(1) of the Constitution, a law cannot impose a condition on one party and exempt the other from the same and still be in conformity with Article 21(1). *That the requirement to serve a statutory notice of intention to sue against the Government, a local authority or a scheduled corporation is no longer a mandatory requirement in view of Articles 274 and 20(1) of the Constitution, and therefore non compliance with that impugned Section 2 does not render a suit subsequently filed incompetent.*

Article 126(2)(e) mandates courts to administer substantive justice without undue regard to technicalities. In the application of civil procedure, the courts are obliged to ignore procedure lapse or noncompliance in favour of substantive justice.

The rules of procedure are therefore meant to be handmaidens of justice which should not be invoked to defeat substantive justice except where such non-compliance goes to the root of the subject matter before court.

In **Proline Soccer Academy Ltd v Mulindwa Lawrence** the application was

challenged on grounds that the method of application was made by Chamber Summons instead of Notice of Motion and that service was not effected upon the respondents, but on, the Personal Secretary to FUFA President Lawrence Mulindwa, the first respondent herein.

Both objections were overruled by court stating that whereas it can be said that applications for Judicial Review must be instituted by Notice of Motion, it is not correct to say that this



is the only mode to be employed when a party is seeking an order to restrain commission of the injury complained of pending determination of the main application because the Rules themselves do not state so.

On service of summons, it was held that courts should not treat any incorrect act as a nullity with the consequence that everything founded thereon is itself a nullity unless the incorrect act is of a most fundamental nature. Matters of procedure are not normally of a fundamental nature and rules as to service of summons are matters of procedure. *that mere adoption of a wrong procedure would not invalidate the proceedings where: a). it did not go to the question of jurisdiction or; b). no prejudice was caused to the opposite party.* That this did not exist in the instant case since the said secretary did what she was expected and the respondents had appeared in court. *Court thus invoked Article 126(2)(e)* ; that Substantive justice must be administered without undue regard to technicalities, more particularly procedural ones.

In **Francis Wazarwahi Bwengye V Haki W. Bonera** the appellant then filed ***Misc. Application No. 1008 of 2008*** seeking leave to appear and defend the suit. For some un clear reason the appellant proceeded under Section 98 of the Civil Procedure Act and O.41 rr.1, 2 (1) and 9 of the Civil Procedure Rules. When the suit came up for hearing Counsel for the respondent raised a preliminary objection that:

- a). The application was filed by Chamber Summons instead of Notice of Motion.
- b). That the law quoted by the appellant under which the application was brought was wrong.

In dismissing the suit, Commenting on the law generally, the learned trial Magistrate did concede that in the interest of justice courts have moved away from strict adherence to technicalities in the spirit of Article 126 (2) (e) of the Constitution. He then observed:

*“The purpose of this movement is to assist the poor, illiterate and lay
.....*

*Legislators did not, however, intend to protect the reckless
litigants. Whereas the protection is for the uninformed, the level of
recklessness*



demonstrated by the applicant is so gross that it indeed borders (sic) fraud. Concerning an applicant Counsel of such high standing and author of leading legal books, allowing this application would be condoning an illegality.”

On Appeal, it was held;

That the learned Magistrate , exercised his discretion in the matter in a rather injudicious manner.

His suggestion that there should be one law for litigants of high standing in society and another law for everyone else is fallacious and misleading. Under Article 21 (1) of the Constitution, all persons are equal before and under the law in all spheres of political, economic, social and cultural life and in every other respect and shall enjoy equal protection of the law. It was therefore immaterial that the applicant before him was a lawyer of high standing and an author of leading legal books. He too was entitled to justice like any other litigant.

The general rule is that where an application omits to cite any law at all or cites the wrong law, but the jurisdiction to grant the order sought exists, then the irregularity or omission can be ignored and the correct law inserted.

“The administration of justice should normally require that the substance of disputes should be investigated and decided on their merits and that errors and lapses should not necessarily debar a litigant from the pursuit of his rights.

That the Magistrate should have found that failure to cite the correct law was an error or lapse which would not necessarily debar the application from proceeding. He would also have found, as regards whether the application should have been by Notice of Motion or Chamber

Summons, that no action may be defeated by use of wrong procedural mode and the judge has the discretion to hear it either in court or in Chambers.

The judge therefore noted that the decision by the Magistrate occasioned a miscarriage of justice to the appellant who now stands condemned unheard thanks to a procedural error on



his part. However, the judge further stated that he should not be understood to mean that rules of procedure should be ignored.

He thus held that all in all the interests of justice in this case demand that the appeal be allowed. That the learned trial Magistrate erred in law when he upheld the respondent's preliminary objection based on technicalities which makers of the Constitution in their wisdom meant to remedy in Article 126 (2) (e) of the Constitution.

CIVIL LITIGATION, AND ALTERNATIVE DISPUTE RESOLUTION.

Civil litigation is adversarial in nature implying that parties subject to their dispute for final determination by court. However, modern legal practice leans in favour of Alternative Dispute Resolution mechanisms (ADR) which may be contractual or statutory.

Some of these include negotiations, mediation and arbitration. The applicability if any of these forms depends on the subject matter in dispute, the transactional documents executed by parties and the applicable law.

- a. Parties to a dispute may subject it to negotiations amongst themselves in accordance with their contract provided such negotiations do not exceed the limitation period of commencing an act in court.
- b. Parties may resort to arbitration where the law governing their relationships mandates them to subject their dispute to arbitration.

In **Eco Friendly Farming Ltd V Uganda Investment Authority**, court held that since the Section provided that the parties **may** subject their dispute to arbitration, it was not mandatory. Court relied on the interpretation of the word **may** in **Uganda (DPP) Vs Col (Rtd) Dr. Kiiza Besigye** where the Constitutional Court held that the word **may** is stated to imply permissive, optional or discretionary and not mandatory. The word **"May"** is the opposite of **"shall"** which is generally imperative or mandatory". In the instant case, court thus overruled the preliminary objection that the dispute be subjected to arbitration.

- c. Arbitration may also be invoked by parties where in their constitutive transactional documents, there is an arbitration clause of agreement. The arbitration clause of agreement in order to be enforceable must be valid, operative and capable of practical implementation.

East African Development Bank v Ziwa Horticultural Exporters Limited - HCMA No. 1048 of 2000



The parties to this suit had entered into a loan agreement whereby EADB advanced a loan to Ziwa Horticultural Exporters Ltd. A dispute arose between the parties and EADB, filed a petition seeking various orders against the respondent including an order of winding up of the respondent company. The respondent filed the present application for a stay of the proceedings, and reference of the matter to arbitration on grounds that the loan agreement contained an arbitration clause, which provided for resolution of disputes by arbitration.

Held:

Section 6 of the Arbitration and Conciliation Act, provides for mandatory reference to arbitration of matters before court which are subject to an arbitration agreement; Where court is satisfied that the arbitration agreement is valid, operative and capable of being performed, it may exercise its discretion and refer the matter to arbitration. To put it strictly the mandatory reference to arbitration is subject of the Court's decision on this question such that if Court finds the arbitration agreement null and void, inoperative or incapable of performance or that there is in fact no dispute with regard to matters agreed to be referred to arbitration then no such reference will be made. In this case the matter was referred to arbitration.

- d. The arbitration clause must be specifically set out in the agreement of the parties or in the alternative set out in another agreement executed between the same parties provided that the two agreements shall be read as one.

In **Roko Construction Ltd v Mohammed Hamid**, the parties entered into a construction contract with two agreements, a main building agreement and a bill of quantities. The main building agreement contained an arbitration clause. The respondent signed only the bill of quantities but not the building agreement. He however, went ahead and deposited money upon which the appellant began construction. After defaulting on payment, the appellant referred the matter to arbitration. Both parties were represented by their counsel at the hearing. After the award, the respondent tried to challenge the arbitration proceedings on grounds that there was no arbitration agreement since he had not signed the document that contained the arbitration clause.

It was **held** that the main building contract was a contract that bound both parties and governed their relationship since both parties acted on it and treated it as binding, hence since it contained an arbitration clause, they were bound by the arbitral award given by the arbitrator.

- e. An arbitration clause is binding between the parties thereto and must be enforced by the court save where it is illegal, inoperative and unenforceable.

In the case of **Power and City Contractors versus LTL Project (PVT) HCMA No. 0062 of 2011** the honourable judge held that an arbitration agreement has a binding effect on the parties thereto.

In **National Social Security Fund v Alcon International Limited** the parties had an arbitration clause in their agreement. When a dispute arose, respondent the respondent filed a suit instead of referring the matter to arbitration. The trial judge dismissed the suit and referred the matter to arbitration and his decision was upheld by the Court of Appeal which observed that;



That by incorporating the above clause in their contract both the appellants and the respondent, for all intents and purposes recognized arbitration as an effective and efficient means of resolving all the disputes arising out of the building contract. That the clause was binding on the parties to the contract. An arbitration clause a contract has an enduring and special effect, that is, even if parties decide to adopt a different dispute resolution mechanism for a particular dispute that arises under a contract, the arbitration continues in force and is not thereby totally repudiated unless there is solid reason for doing so. Courts will always refer a dispute to arbitration where there is an arbitration clause in a contract.

However, the Supreme Court observed that The question is whether the learned Justice of Appeal with whom the other Justices of Appeal agreed was correct in holding that since the contract contained an arbitration clause the trial judge was justified in referring the matter to arbitration without the application of any of the parties to the contract, and when one of the parties had filed a suit despite the existence of arbitration clause in the contract. Section 5 of the Arbitration and Conciliation Act (Cap 4,) provides for stay of proceedings where the Court refers the matter to arbitration. It provides as follows;

“(1) A judge or magistrate before whom proceedings are being brought in a matter **which** is the subject of an arbitration agreement shall, **a** party so applies after the filing of a statement of defence and both parties having been a hearing refer the matter back to the arbitration unless he or she finds-

- (a)** that the arbitration agreement is null and void, inoperative incapable of **being** performed, or
- (b)** that there is not in fact any dispute between the parties with regard to the matters agreed to be referred to arbitration. ”

In the present case there is no doubt that no party to the arbitration agreement applied to the court to refer the matter to arbitration. It was argued that the court invoked its inherent jurisdiction to refer the matter to arbitration. However inherent jurisdiction cannot be invoked where there is an express statutory provision dealing with the matter like in this matter where Section 5 is clear and unambiguous. And the appellant objected to the reference of the matter to arbitration and participated in the arbitration proceedings under protest. Court thus held that the learned trial judge prematurely referred the matter to

arbitration thereby depriving the court of the opportunity to determine whether the reference to arbitration complied with the provisions of section 5 of the Arbitration Act.

- f. Where the parties have provided for arbitration but the aggrieved party sought to file a suit, the defendant upon filing a Written Statement of Defence (in protest) may move court for an order that the matter be referred to arbitration.



In **Attorney General & Uganda Commercial Bank Ltd v Westmont Land (Asia) BHD**, there was contract agreement with an arbitration clause which Westmont breached. The Plaintiffs notified the defendant that the matter be referred to arbitration within a specified time or else a legal suit be instituted against him. The defendant did not respond within the specified time and the plaintiffs filed a suit. However, the defendant did not file any defence. He instead applied for stay of the proceedings and referring the matter to arbitration.

Held; the defendant's application was dismissed for failure to file a written statement of Defence within the time permitted by law. The judge noted that the defendant should have therefore filed a

W.S.D and then contested the plaintiff's suit. A default judgement was entered in favour of the plaintiff against the defendant.

In **Yan Jian Uganda Company Ltd v Siwa Builders And Engineers** there was a dispute between the parties arising breach of a contract that had an arbitration clause. The plaintiff filed a suit in court and the defendant made an application is brought under the provisions of section 5 (1) of the Arbitration and Conciliation Act for orders that proceedings in the suit be stayed and the dispute referred to arbitration.

It was **held** that S.5 is an express statutory provision that the application may be brought after the filing of a written statement of defence. The provision employs mandatory language in that the court shall if a party so applies after the filing of a statement of defence, and after hearing the parties, refer the matter back to arbitration. The grounds for refusal of a reference to arbitration are also provided for in subsections (a) and (b). The first ground is that the arbitration agreement is null and void, inoperative or incapable of been performed. The second is that there is not in fact any dispute between the parties with regard to the matters agreed to be referred to arbitration.

That the filing of a defence and counterclaim is not a bar to filing an application or applying for reference of the dispute to arbitration. That failure to pay the costs of arbitration is a frustrating event Having found that the grounds for refusal did not exist Justice Madrama referred the dispute in the suit to arbitration in accordance with the agreement between the parties.

- g. The presence of an arbitration clause to an agreement does not in any way oust the jurisdiction of the High Court. Nevertheless, the High Court in exercise of its constitutional and statutory jurisdiction is empowered either to dismiss the suit

or to refer the parties to arbitration.

In **Power and City Contractors Ltd v LTL Project (Pvt) Ltd** Counsel for the respondent raised an objection to court's continued entertainment of Civil Suit 29 of 2011 and Misc. Application No. 62 of 2011 on grounds that the parties had by agreement undertaken to refer disputes arising out of their contractual relationship to Arbitration and that as such court is enjoined by law to refer the matter to arbitration in accordance with the parties agreement.

It was **held** that it was not accurate for the parties to seek to oust the jurisdiction of court which should always be maintained.



That Proceedings must be before a court before it considers referring it to arbitration. This presupposes that pleadings are completed before the issue of arbitration arises. Thereafter it becomes mandatory to refer such a matter to arbitration unless valid exceptions exist. *This court therefore has jurisdiction to receive a suit even if the agreement binding the parties has an arbitration clause. This is what can enable it to refer the matter to the arbitration.*

In **Huadar Guangdong Chinese Co Ltd v Damco Logistics Uganda Limited**, the parties in their agreement provided that and any claim or dispute arising out of or in connection with the services in respect of services provided anywhere else in the world, are subject to English law and the exclusive jurisdiction of the English High Court of Justice in London. The defendant therefore raised an objection that a Ugandan court had no jurisdiction over the dispute.

It was **held** that a clause to submit to the exclusive jurisdiction of the foreign court is enforceable by the High Court of Uganda. However, the High Court does not lose its jurisdiction to entertain the action if the Plaintiff can show some just cause why the proceedings should not be stayed or dismissed. That the court would use the same grounds for refusal of referring the matter to arbitration that is where the agreement is null and void, in operative or incapable of been performed. In this case, court found no such grounds and dismissed the suit leaving it to the plaintiff to refer the dispute to exclusive jurisdiction of the foreign court if he so wished.

Court based mediation, evaluative mediation and consent judgement.

Whereas in arbitral proceedings an arbitrator is empowered to make a binding decision of the parties, on the contrary, a mediator in mediation proceedings only helps the parties to an amicable settlement but can never make a decision binding the parties.

Mediation is therefore a process by which the parties to a dispute pending in court or otherwise subject their dispute to a mediator with a view of helping them to amicably settle the dispute.

- h. It is provided in the Judicature Mediation Rules 2013 that every civil suit shall be subjected to mediation before such dispute is entertained on merits by a judicial officer.

Rules 2 provides that ; These Rules apply to all civil actions filed in or referred to the High Court and any subordinate to the High Court.

Rule 4(1) further provides that the court shall refer every civil action for mediation before proceeding for trial.

In **Nakanyonyi Development Association (Nada) Ltd v Stanbic Bank (U) Limited** it was held that the rules prescribe for mandatory mediation as an alternative dispute resolution (ADR).



- i. In case of court based mediation where the parties agree to terms as to settlement of their dispute, the same is reduced into a consent judgment which must be signed and sealed by the court.

**In Betuco (U) Ltd And Another v Barclays Bank Of Uganda Ltd & 3 Others
HCT-00-CC- MA-0243-2009**

The applicants applied to set aside the Consent Judgment on grounds that the Directors of the Applicants signed the Consent Judgment under a mistaken and/or misrepresentation as to the true contents of the judgment and that the mediation proceedings were so fundamentally defective that they did not bind the Applicants.

Court quoted Hon Justice Kitumba, JA in Peter Muliira Vs Mitchell Cotts Ltd CACA No. 15 of 2002 where he stated:-

“The law regarding consent judgment is that parties to a Civil Suit are free to consent to a judgment. They may do so orally before a judge who then records the consent or they may do so in writing and affix their signatures on the consent. In that case still the Court has to sign that judgment. A consent judgment may not be set aside except for fraud, collusion or for ignorance of material facts.”

Rule 16 states that Where the parties resolve some or all the issues that are the subject of mediation, the parties shall enter an agreement setting out the issues on which they agree and the agreement shall be in writing and signed by the parties and filed with the Registrar for endorsement as a Consent Judgment.

Court thus **held that** When any agreement is reached the rules provide that it shall be signed by the parties and filed with the Registrar for endorsement as a Consent Judgment . A consent judgment once recorded or endorsed by the Court it becomes the judgment of the Court and binding upon the parties. It is an agreement or contract between the parties. As such it can only be set aside for a reason which would enable the court to set aside or rescind on an agreement.

The status of a consent decree as a general rule is firmly protected by law. In the case of Attorney General & Anor V James Mark Kamoga & Anor CA 8 of 2004 (SC) Justice Joseph Mulenga (JSC as he then was) held

“...It is a well settled principle therefore, that a consent decree has to be upheld unless it is vitiated by a reason that would enable a court to set aside an agreement, such as fraud, mistake, misapprehension or contravention of court policy. This



principle is on the premise that a consent decree is passed on terms of a new contract between the parties to the consent judgment... ”³

- j. The consent is only binding if executed by parties with the requisite competence and duly endorsed by the relevant officer of the court.

In, **British American Tobacco (U) Ltd v Mwijakubi & 4 Ors (CIVIL APPEAL NO 01 OF 2012) [2013] UGSC 13**; there was an appeal before the Court of Appeal and the parties entered into a compromise agreement before the ruling was made. However, the agreement was not signed nor sealed by the registrar of court by the time the ruling was made. It was held that there was no valid compromise settlement and consent order.

Evaluative mediation is normally conducted by a judge other than the trial judge who engages the parties and their counsel to identify possible weaknesses and strength of their respective cases to enable them to determine whether to settle or not.

THE LAW RELATING TO CAPACITY TO SUE OR BE SUED.

Capacity to sue or be sued connotes the authority of the party to appear in court whether as plaintiff or as defendant in any civil suit.

A party is said to have locus before court where such party is recognized in law as having the competence to sustain a suit or to have a suit sustained against them.

The general rule of law is that a suit can only be sustained in the names of or against a person who in the eyes of the law is vested with capacity to sue or be sued. A person is said to have capacity to sue or be sued where such a person can enforce legal obligations or where legal obligations can be enforced against such a person.

Maj Roland K Mutale v Attorney General

The applicant wanted to join the IGG as a party to the suit; **held**; From the reading of Act 5 of 2002 the person of the IGG has been granted immunity from tortuous liability. The IGG himself cannot be compelled to court as a party or witness. That no suit can be brought against the IGG and as such he is not a person who can be joined

as a defendant, except in his individual capacity after his statutory immunity has been lifted

³ *As quoted in HCT - 00 - CC - MA - 715 of 2009 Peter Mulira v Mitchell Cotts*



Gordon Sentiba v IGG

The main issue to determine was whether the respondent (IGG) has legal capacity to sue and be sued?

Held; the Supreme Court unanimously held that the IGG has no capacity to sue or be sued in civil matters. That there is no provision in the Constitution, the Inspectorate of Government Act or any other law which confers corporate status on the respondent and it would be wrong for the Court to confer such status on the respondent when Parliament in its wisdom did not find it necessary to do so for effective enforcement of the powers of the respondent. However, Parliament has power to review the matter and confer corporate status on the Inspectorate of Government.

A distinction must be made between physical and legal capacity in the sense that mere physical existence does not per se create legal capacity in favour of a physical entity unless its existence as a legal entity is sanctioned by court.

- ❖ . See RTD Col Dr. Kiiza Besigye & Others V The DPP & AG Constitutional Petition No.12 of 2006; the constitutional court reiterated the principle that only parties recognized by law as having a legal existence can sue or be sued. Since the DPP was not a legal entity but a department of the government that had no independent legal existence and was not a suable entity.

Kileembe mines v Uganda Gold mines

On the evidence before Court there is no company known as Uganda Gold Mines Ltd that is incorporated in Uganda as submitted by Counsel for the Applicant. The correct place of incorporation being the Province of British Columbia and Alberta in Canada.

Held; if a company is not incorporated in Uganda as it is alleged to be, then, that means that it does not exist in Uganda as a body corporate. The leading case as to

effect of non-registration or incorporation in the region appears to the decision of the Supreme Court of Kenya in **The Fort Hall Bakery** case (1959 supra). In that case the Plaintiffs brought an action for the recovery of a certain sum of money from the Defendant. During the hearing, evidence disclosed that the Plaintiffs were not registered under the Registration of Business Names Ordinance and it was submitted by the Defendant that the action was therefore not properly before the court. Justice Templeton in that case held that the Plaintiffs could not be recognized as having any legal



existence, were incapable of maintaining an action and therefore court could not allow the action to proceed thus striking it out with no order to costs as the Plaintiff did not exist in law.

In the Kilembe Mines case, the judge approved of the holding in Fort Hall Bakery that; *A non-existent person cannot sue and once the court is made aware that the Plaintiff is no non-existent, and therefore incapable of maintaining an action it cannot allow the action to proceed*

In the Trustees of Rubaga Miracle Centre case (2006 supra). In that case Ag. Justice Remmy Kasule (as he then was) went further to hold

“... The law is now settled. A suit in the names of a wrong Plaintiff or Defendant cannot be cured by amendment ... the Defendant described as The Board of Trustees Miracle Centre Cathedral does not exist in law. The attempt to add Pastor Robert Kayanja, is really an attempt to substitute a non-existing Defendant. The law does not allow that as in reality there is no valid plaint in the suit ...”

The Fort Hall Bakery case (supra) was also followed by the Court of Appeal sitting as the Constitutional Court in Uganda Freight Forwarders Association case (2009 supra) where it was held

“... It is an elementary principle of law that an unincorporated association is not a legal entity capable of suing or being sued. A suit by an unincorporated body is a nullity ...”

- ❖ *Manzur Alam V The Embassy of Saudi Arabia HCCS NO.402_OF 2002* Suit for recovery of immovable property against the Embassy; issue as to whether Court had

Jurisdiction to entertain the suit. As to the proper party to be sued; ***Held;*** that the Embassy of Saudi Arabia should not have been sued as such. The proper defendant ought to have been the Kingdom of Saudi Arabia. That an embassy is a branch and therefore an emanation of the Government of the sending state and holds property on its behalf. The action therefore should have been brought against that Government

As a general rule, a suit can only be sustained in the names of or against a living entity or persons.



Pathak v Zainab Mrekwe [1964] 1 EA 24

An action was filed in the name of the respondent forty-five days after her death.

Held – (i) a suit instituted in the name of a dead person is a nullity;

Any person or entity that can sue, can equally be sued as such. *Note in*

The Commissioner General URA V Meera Investments Limited SCCA No. 22 of 2007

It was held, that it is only the Commissioner General who has the responsibility, powers and knowledge about tax matters to assist court and that is fully recognized by section 104 (3) of the Income Tax Act, Section 104(3) that empowers her to sue for taxes due but unpaid. That therefore, he or she who is empowered to sue is also made liable by necessary implication to be sued

Specific parties.

1. Individuals

Adults of sound mind are competent parties and they are competent to institute a civil action provided that the obligations upon which a suit is premised accrue in a personal capacity. [See

S. 116 of the Evidence Act on competence of witnesses being persons of age and sound mind, *[see also Article 31 of the constitution, on the majority age being 18; Cf age for civil proceedings being 21 before the 1995 constitution, see Article 273 of the constitution]*. A suit can only be sustained in the names of or against an individual who is living as at the time of commencement of the suit. Any suit filed in the names of a dead person is a nullity. (Pathak v Mrekwe)

2. Administrators and legal representatives

A suit can be sustained by a legal representative of a deceased person who must either be an administrator or an executor of the deceased's estate. The same person must be in possession of a valid grant of probate or letters of administration.

Micheal Mulyanti v Jackline Bataringaya

The Plaintiffs instituted this suit in their capacity as administrators of the estate of the late Moses Mulyanti and for the beneficiaries of the estate for a declaration that they are lawful or bonafide occupants on the suit land. **Whether the Plaintiffs have locus standi to bring this suit.**



held

That the Plaintiffs in their capacity as administrators of the estate of the late Moses Mulyanti in whatever forms, are duty bound to protect the same, including instituting suits where necessary. Indeed under Section 180 of the Succession Act an administrator of a deceased person is his or her legal representative for all purposes and all property of the deceased person vests in him or her as such. Further more under Section 192 and 193 of the Succession Act Letters of Administration vests in the administrators all rights and interests belonging to the intestate as effectually as if administration had been granted at the moment after his or her death

3. Beneficiaries;

It is possible in exceptional circumstances in the absence of letters of administration or a grant of probate for a beneficiary to sustain a suit for the purpose of preserving or protecting the estate from waste alienation, damage or diminution.

In **John Buteraba V Edirisa Sserwanga & 3 Others HCCS No. 222/2008**, it was held that without letters of administration the defendant had no authority to sell and could not enter into a legal contract with the plaintiff. There was no evidence on record that DW5 Damali Nababi had letters of administration to the estate of her son the late Nkeera as to have the authority to sell his kibanja.

Jabir and other v Jabir

The issue was that the learned trial Magistrate erred in law to grant the orders to the Respondents on a matter pertaining to an estate of a deceased person when they were not the administrators of the same .Court relied on **Israel Kabwa -Y- Martin Bazoba Musiga SCCA No. 32/95** where the Supreme Court held that even if the Respondent had no Letters of Administration, his right to the land did not depend on Letters of Administration

The judge thus **held** that the Respondents were protecting the estate of the late Ibrahim

against an

"unscrupulous" / administrator of the estate

Bizimana David & 2 Others V Kamari Johnson

Held;that both the claimant and his mother were beneficiaries of the estate of the late Gakwafu. Whether any of them had Letters of Administration or powers of Attorney from one to the other



they had interest in the estate of the said Gakwafu and could sue in their own individual capacity, however, the test is whether the plaintiff had a cause of action.

4. Donees of power of attorney.

A donee of a power of attorney cannot sue or be sued as such and the law requires that a suit be commenced in the names of or against the donor through the donee.

In **Gold Trust Bank v Josephine**; held A power of Attorney is an Instrument conferring authority of the principal to the agent where such authority is required to be conferred by a deed, or where, in any other circumstances, it is desired formally to appoint an agent to act for the principal in one transaction or a series of transactions, or to manage the affairs of the principal generally. The person conferring the authority is the donor of the power, and the recipient of the authority, the donee.

M/S Ayigihugu v Munyankindi (1988-1990) HCB 161.

Tsekoko Ag. J held that a holder of a power of attorney ought to take proceedings in the name of the owner of the property the donor of the powers of Attorney. A judgment deciding the rights of the parties cannot be based on a plaintiff who shows no cause of action.

Any suit in name of donee is invalid{void}

The power of attorney must contain a clause that empowers the attorney to sue or defend the suit or take any other action in prosecution or defence of the suit.

5. Companies and directors/shareholders and companies limited by guarantee.

a company upon incorporation is a legal entity distinct from its directors and shareholders with capacity to sue or be sued as such for its own obligations or obligations of its agents on its behalf. A company is deemed to be incorporated and legally in existence from the date of incorporation. A company is therefore a suable entity but can equally sue provided the obligations accrue to it upon incorporation.



It follows therefore that shareholders and directors of a company cannot sue or be sued on account of liability accruing to or against the company.

In *Sentamu V UCB [1982] HCB*, the plaintiff was a majority shareholder and director of a company that borrowed money from the defendant bank and failed to pay prompting the defendant to cause his arrest and imprisonment. The plaintiff sued for damages arising out of unlawful arrest and false imprisonment. It was held that a company is a distinct legal entity and can be sued in its own right for its debts. It was thus unlawful to arrest the plaintiff for failure by the company to pay its debts, as the proper party was the company.

However, where the veil of incorporation is lifted by the court, the directors or shareholders may in appropriate circumstances be held personally liable.

Nanam Aviation v Sun Air

Held; The company is therefore a legal fiction separate from its members and the contract that it executed with the plaintiff was done in the capacity of the legal entity capable of suing and being sued in its corporate name.

However, where there is a claim against the company and the director in person, with allegations particularly attributed to the director, the suit may be sustained even in the absence of an order lifting the corporate veil.

Lea Associates Ltd v Bunga Hill House.

The most outstanding feature of an incorporated company is its corporate personality. The corporation is a legal entity distinct from its members and directors. That the Applicant cannot maintain a claim for Commission from the company's director. However, Corporate personality cannot be allowed to blantly

used as a cloak for the fraudulent or improper conduct of the company's members. Court thus found that the intended amended Plaint disclosed a cause of action against the a company director thereby joining him to the suit

Lukyamuji James v Akright Project and Kamugisha

Court found that whatever the 2nd Defendant did in respect of the sale transaction he did in the company name and not in his name. He signed the sale Agreement "For Akright Projects Ltd". He



also issued the cheque (belonging to Akright Project Ltd, and not his personal account. It was thus **held**; once a company is registered as a limited liability company, it acquires a legal personality, capable of suing and being sued in its own right. That the 2nd Defendant as a director of the 1st Defendant, is not liable for any acts or omissions of the 1st Defendant. He is therefore a wrong party to the suit and his name is accordingly struck out, with costs.

Unincorporated entites, associations, NGOS, Churches, Registered Trustees etc

An unincorporated entity has non-legal existence as such and cannot be sued save in accordance with the procedures available under the law. Such unincorporated entities may include clubs associations churches, community based organisations (CBOs). The proper procedure of commencing a suit in the names of or against such entities is through a representative action under Order 1 rule 8.

In *Uganda Freight Forwarders Association and Ors V The Attorney general*

Counsel for the 2nd respondent submitted that the petition was filed by two unincorporated associations. It ought to be dismissed with costs since it is judicially recognized that unincorporated associations have no legal existence of their own and cannot maintain or defend a suit or a petition in their own names as has been done in this petition.

Held;

It is an elementary principle of law that an unincorporated association is not a legal entity capable of suing or being sued. A suit by an unincorporated body is a nullity

In the **Trustees of Rubaga Miracle Centre** v Mulangira (2006 supra). In that case Ag. Justice Remmy Kasule (as he then was) went further to hold

“... The law is now settled. A suit in the names of a wrong Plaintiff or Defendant cannot be cured by amendment ... the Defendant described as The Board of Trustees Miracle Centre Cathedral does not exist in law. The attempt to add Pastor Robert

Kayanja, is really an attempt to substitute a non existing Defendant. The law does not allow that as in reality there is no valid plaint in the suit

Makula international V Cardinal Nsubuga [1982] HCB, where the action was commenced against the cardinal yet the contract was executed with the catholic church and court held that the action could not be sustained except through a representative suit



However, it's prudent for an intending plaintiff or defendant to ascertain the actual legal status of such entities before commencing a suit. NGO's be legal entities if so registered under the NGO Act. Once u get an NGO certificate ..

In case of churches, some of the churches are registered as NGO's and therefore constitute a legal entity. In the alternative, such entities may have registered a board of trustees or registered trustees who constitute the legal entity under the Trustees Incorporation Act.

In *Okwonga Vs Anywar & Another [1984 HCB] 45*, In this case, an action was commenced against the Church of Uganda and the 1st Respondent objected that C.O.U was not legal entity and could only be sued through representative action. it was held that unincorporated organizations are not competent parties to suits. Held: As a religious organisation, the C.O.U. is not a corporate body to run its own affairs. A board of trustees is constituted with the power to sue and be sued. That being so, C.O.U was wrongly sued and plaint was struck off subject to an application for amendment.

For the catholic church you sue the diocese under which the church is within, and same for the Anglicans..

Government

All suits in the names of or against the government of Uganda must be brought by or against the Attorney General. S.9 and 10 of the Government Proceedings Act

Charles Harry Twagira V AG.& DPP

The appellant sued both the Attorney General and the DPP.

Held; that *the appellant should have proceeded only against the Attorney General and the third respondent. The Director of Public Prosecutions is a government department but it is not a body corporate with powers to sue or be sued. Article 250(2) of the Constitution provides: Civil proceedings by or against the Government shall be instituted by or against the Attorney General; and all documents required to be served on the Government for the purpose of or in connection with those proceedings, shall be served on the Attorney General. That Therefore a civil suit against the Director of Public Prosecution cannot be sustained and it is incompetent. The same equally applies to the case against the 3rd*

respondent. He is the police officer who was sent to London to re-arrest the appellant and escort him to Uganda. He is the one who made the investigations and applications under the law that led to the detention and freezing of the appellant's accounts. He was at all times acting as an employee of the government.

The government may be sued for direct actions or for actions or omissions of its servants or agents.



In *Wakiso Cargo Transporters Ltd V Wakiso District Council & AG HCT 00-CCCS 070/2004*; The attorney General could not be held liable for breach of a contract executed by the district as the district had a separate legal existence from the central government.

Yustus Tinkasimire and others v AG and Dr, Malinga; held; minister not personally liable)

Stanbic Bank and others v Hassan Bassajabalaba and Others Justice Obura, on whether Bank of Uganda can sue to recover money due to Uganda. **Held;** only Attorney General is one who can sue and cannot delegate

Where attorney General is sued, representation in court must be by Attorney General or a state attorney attached to the Attorney General's chambers.

Sinba K Ltd v UBC, justice Okello..AG appeared for Sinba, judge disagreed.

AG and Peter Nyombi v Uganda Law Society.. AG hired a law firm, court ruled the firm couldn't represent AG.

Local Government Council

S.6 of the LG Act read together with S.3 thereof, confers legal status on a local government council to sue or be sued as such. LC1 and 11 not recognised

Wakiso Cargo Transporters Ltd V Wakiso District Council & AG HCT 00-CCCS 070/2004; The attorney General could not be held liable for breach of a contract executed by the district as the district had a separate legal existence from the central government.

Victor Juliet Mukasa & Anor. V AG [2008] HCB 168; held; Local government administrative Unit is a body corporate capable of suing and being sued in its corporate name under the Local Governments Act

Alice Katungaza V AG; The plaintiff claimed damages for injuries inflicted on her due to unlawful assault inflicted on her by her teacher in the course of her employment. The Df raised an objection that the AG was not liable as the officer concerned was an employee of a local administration; Court found that the Government and the local administration had a separate legal existence and were distinct legal bodies. The suit had thus been brought against a wrong party hence it was dismissed.

Statutory Corporations

This is an entity established by an Act of parliament which Act, must confer a legal status and capacity to sue or be sued as such.

Gordon Sentiba v IGG

The main issue to determine was whether the respondent (IGG) has legal capacity to sue and be sued?



Held; the Supreme Court unanimously held that the IGG has no capacity to sue or be sued in civil matters. That there is no provision in the Constitution, the Inspectorate of Government Act or any other law which confers corporate status on the respondent and it would be wrong for the Court to confer such status on the respondent when Parliament in its wisdom did not find it necessary to do so for effective enforcement of the powers of the respondent. However, Parliament has power to review the matter and confer corporate status on the Inspectorate of Government.

In The Commissioner General URA V Meera Investments Limited SCCA No.

22 of 2007 It was held, that it is only the Commissioner General who has the responsibility, powers and knowledge about tax matters to assist court and that is fully recognized by section 104 (3) of the Income Tax Act, Section 104(3) that empowers her to sue for taxes due but unpaid. That therefore, he or she who is empowered to sue is also made liable by necessary implication to be sued.

Uganda Development Bank v ABA Trade and URA

Okello Okello V UNEB [1993] 11 KALR 36; held; that by virtue of the functions of UNEB, it was a government department since it was independent body seeking to observe the government overall objectives in education. However, by its set up as a corporation sole, the respondent had a choice whether to sue the board as an emanation of Government or as an independent body.

Sometimes u sue a statutory corporation together with the AG, order 1 rule

Government bodies and other departments

Government bodies have no independent legal existence (save if conferred by law) and cannot therefore sue or be sued as such.

Charles Harry Twagira V AG.& DPP

The appellant sued both the Attorney General and the DPP.

Held; that *the appellant should have proceeded only against the Attorney General and the third respondent. The Director of Public Prosecutions is a government department but it is not a body corporate with powers to sue or be sued. Proceedings should be against the Attorney General.*

RTD Col Dr. Kiiza Besigye & Others V The DPP & AG Constitutional Petition No.12 of 2006; held; that Since the DPP was not a legal entity but a department of

the government that had no independent legal existence and was not a suable entity

Amos Mugisha & Sons V Chemical Industries V DAPCB & NRM

Secretariat[1990-91/KALR 38; That the Movement Secretariat had no distinct legal existence and could not be sued as such

Administrator General;

See *The Administrator General' Act*; administrator General is a corporation sole and sue or be sued in such corporate name.



Administrator General V Uganda Posts & Telecommunications Corporation; [1993] IV KALR 108; court observed that the Administrator General could sue the defendant/respondent to recover the benefits accruing to former employees of the defendant

In **Gordon Sentiba v IGG**, court noted that the Administrator General is one of the offices on which Parliament has conferred the status of corporate sole and can sue and be sued in its capacity as Public Trustee. In this connection Section 2 of the Administrator Generals' Act states:

Foreign missions and diplomatic agencies:

Foreign missions, diplomatic agents and agencies are ordinarily subject of diplomatic immunity and do not have capacity to sue or be sued as such. Simply because they are mere representatives of the sending state.

However, diplomatic immunity is not applicable in case of commercial transactions or where the subject matter is land situated in Uganda or where such immunity is waived by the sending state. ***Eddie Rodrigues V The British High Commission SCCA NO.8/87. Held*** that if a government or one of its departments goes into the market places of the world and engages in straight forward commercial transactions, then its within the territorial Jurisdiction of the courts of the foreign Sovereign. The sovereign cant claim immunity in respect of such transactions.

In terms of capacity to sue, the correct entity or proper party that can sue or be sued is the government of the sending state.

- ❖ ***Manzur Alam V The Embassy of Saudi Arabia HCCS NO.402_OF 2002*** Suit for recovery of immovable property against the Embassy; issue as to whether Court had Jurisdiction to entertain the suit. ***Held;*** That the property in dispute being immovable and situate in Uganda, court has jurisdiction to entertain the dispute over it. As to the proper party to be sued; ***Held;*** that the Embassy of Saudi Arabia should not have been sued as such. The proper defendant ought to have been the Kingdom of Saudi Arabia. That an embassy is a branch and therefore an emanation of the Government of the sending state and holds property on its behalf. The action therefore should have

been brought against that

Partnerships

Partnerships have no independent legal existence and therefore cannot sue as such.

- ❖ In *Nterekeya Bus Service V Rep of Kenya 196691) ALR Comm 452*, it was held that a firm has no independent existence apart from its individual members who carry on business both as



principals and as agents of each other within the scope of the partnership business. That the firm is a mere expression not a legal entity. The conviction of a firm name was thus a nullity.

However, under order 30 of the rules, a partnership may sue in the partnership name or may be sued as such provided the partners are set out in the pleadings or the suit may be commenced in the names of or against the partners trading under the partnership name.

- ❖ The plaintiff may insist on full disclosure of the names of persons constituting a partnership. ***Horra Vs Horra [1959] EA 981 (K)***. . In that case, the defendants formerly constituting a partnership, which had been dissolved, were served personally. Three persons entered appearance but filed a joint defence. The Plaintiff applied to strike out a defence as individual persons did not describe themselves as partners in the partnership firm. Held; that a claim may be enforced against a partnership without making all the partners parties thereto. ***Held:*** The partners were not sued in the firm name in a manner envisaged under O. XXIX, r1, CPR [now O.30]. The Plaintiff should have sued the defendants trading as the Colonial Printing Works to conform to the Order. Having not done this, he decided to sue them individually and as partners of the firm on their joint liability in partnership.
- ❖ ***Maki V Saidi [1961] 1 ALL NLR 502***; That in order to succeed against a partnership, the action must be brought; against all members of the firm, against the firm in its registered name, against one or more partners as representatives of the firm.

MINORS

Suits By or Against Minors and Persons of Unsound Mind: O. 32.

- ❖ In general, subject to special rules of procedure, a minor may sue or be sued but he may not in person assert his rights in a court of law as the plaintiff or applicant nor make himself liable as a defendant or respondent for costs. In order to sue or be sued, the minor must follow the procedure set out in Order 32
- ❖ Who is a minor?; *Kiddu Musisi Vs Iyamulemye and Another [1965] HCD 87*; Since the word minor is not anywhere defined in order 29, the court applied common law and interpreted the word minor as



being a person who has not attained the age of 21[*See Article 31 of the constitution on age of majority and Article of 274 on interpretation of existing laws.*] A minor is a person under the age of 18.

- ❖ A suit can only be sustained by a minor where the cause of action accrues to such a minor.

Abdul Sengooba v Stanbic Bank, in this case the fourth and fifth plaintiffs were minor children suing through their father Haji Suleiman Lule. It was found that the said minors did not actually sign the disputed agreement and so the principles as to minors' contracts would not apply to them. The contractual obligations did not fall on the minors but rather their father. Court thus held that that the minors had no cause of action

- ❖ **Under O.32 r1.** A suit can only be commenced in the names of a minor through the next friend of a minor. Under O 32 r4 (1): Any person who is of sound mind and has attained majority age may act as a next friend of a minor or as his guardian ad litem provided that the interest of such person is not adverse to that of the minor and that he is not in case of the next friend a defendant or in case of a guardian ad litem a plaintiff.

Semyalo Michael v The registered Trustees of Kampala Archdiocese.

Held that in a suit minors are the real plaintiffs and not their next friend and, therefore, a compromise in the suit binds the minors alone and not their next friend.

Thomas Makumbi (through a next friend Patrick)v Josephine Katumba

The matter before the court was an application through a Next Friend on account of mental infirmity occasioned by old age(97). The question was whether or not the Next Friend herein was properly before court, given that the applicant had not been adjudged to be insane as provided by Order 32 of the CPR and that the next friend had adverse

interests in the matter?

Held;

Order 32 of the CPR makes provision for suits by or against minors or persons of unsound mind. Order 32 rule 1 provides that suits by minors shall be instituted by the 'Next Friend' of a minor pursuant to written authority by such Next Friend for that purpose. Order 32 rule 4(1) prescribes as persons competent to serve as Next Friend any adult of sound mind whose interests are not adverse to those of



the minor, and who is not a defendant in the matter for which he acts as Next Friend. Order 32 rule 15 renders the foregoing rules applicable ‘**to persons adjudged to be of unsound mind and to persons who, though not so adjudged are found by the court on inquiry, by reason of unsoundness of mind or mental infirmity, to be incapable of protecting their interest when suing or being sued.**’ In the present case written authority by Mr. Patrick Makumbi, the Next Friend herein, was duly appended to the plaint as Annexure ‘A’. The said Next Friend is a male adult, whose mental state is not in issue herein. However, it was the respondent’s contention that the Next Friend has adverse interests to the applicant’s. , There was no proof of any adverse interests between the present applicant and Patrick Makumbi for purposes of the latter acting as the former’s Next Friend.

There is no evidence on record that the applicant has ever been adjudged to be of unsound mind. The Act is silent on the need for an inquiry with regard to persons of mere mental infirmity such as is the case presently. Court thus held that medical evidence would be sufficient to establish such mental infirmity.

- ❖ Consent of the Guardian – O 32 R 4(3): No person shall be appointed as a guardian ad litem without his consent. Therefore it is a requirement that the next friend of a minor must execute an authority consenting to the use of his or her name in the suit as a next friend.

Kabatoro Vs Namatovu (1975) HCB 159; A plaint was instituted by a minor without a next friend as required by law. **Held**; that Order 32 r 3 is mandatory and requires that a suit brought/instituted by a minor without attaching a next friend’s authority is incompetent and should be struck out. When a suit is instituted by a minor without a next friend, the plaint is to be taken off the file.

The authority of the next friend must be filed together with the plaint.

- ❖ Person capable of being next friend: Any adult person of sound mind within the jurisdiction whose interest is not adverse to that of the minor or is not a defendant or plaintiff in the case involving the minor may be eligible to act as a next friend.

S. Wassma & Anor. V Daniel Sentenza (1977) HCB 88; Held ;that the Order provides for the removal of a next friend whose interest is shown to be adverse to that of the person of unsound mind. The court



therefore ordered the next friend to cease acting as next friend upon evidence that his interests were adverse to the person of unsound mind.[See O.32 r.4(1)]

- ❖ Preference will be given to the father or mother or guardian. Some other of the relatives or connections of the minor or their nominees may qualify but they must be substantial and proper persons.
- ❖ Can a minor sue as a Pauper? A minor can sue by a next friend with a character of a pauper but only upon strict proof that he could not obtain a more substantial next friend. If a minor can procure a solvent person willing to act as a next friend, an insolvent next friend may be removed and the proceedings stayed until another is appointed.
- ❖ Legal effect of absence of a next friend:, O. 32 r 2: if a minor is made a plaintiff without a next friend, the proceedings may be set aside and the plaintiff's solicitors may be ordered to pay costs to the defendant in that suit. This principle too applies when the minor is made a co-plaintiff without a next friend otherwise the minor's solicitors may be ordered to pay the defendant the costs accessioned by the misjoinder.
- ❖ *Geihuge V Gibbs [1897] ICH 479.* This was an action instituted in court without the knowledge of the solicitors that a person joined as co-plaintiff was a minor at the commencement of the suit. **Held:** That when an action is brought in the name of the person as plaintiff without his authority and he subsequently repudiates the action, the defendant on an application may obtain an order for payment of costs by the solicitor who instituted the suit. In a case where an infant was joined as a co-plaintiff by solicitors on assumption that he was of full age, they were liable to pay the costs of the suit when the minor applied for his name to be struck out.

❖ *Hajji Sabiti Musoke Vs Uganda LM [1978] HCB 129*. During the trial it came out that the 3rd Plaintiff was a minor and counsel for the defendant applied that the suit be taken out of the file under O 32, r1. **Held:** That the proceedings were irregular and could only continue if the plaint was amended to include the next friend. A plaint by a minor without authority of the next friend is improper and must be taken off the file but can be re-filed in accordance with the law.



- ❖ ***Kabatoro Vs Namatovu (1975) HCB 159***; A plaint instituted by a minor without a next friend as required by law. **Held**; that Order 32 r 3 is mandatory and requires that a suit brought/instituted by a minor without attaching a next friend's authority is incompetent and should be struck out. When a suit is instituted by a minor without a next friend, the plaint is to be taken off the file.
- ❖ *Effect of non-compliance, whether it render the suit liable to be dismissed*: Rules 1 and 2 of O 32 are only directory and not mandatory and non-compliance with them does not automatically lead to the throwing out of the suit. Court has discretion under r 2(1) to either take the plaintiff off the file or make such other order in the premises as it may deem fit e.g. amendment to include the next friend. ***Hajji Sabiti Musoke Vs Uganda L.M [1978] HCB 129***. During the trial it came out that the 3rd Plaintiff was a minor and counsel for the defendant applied that the suit be taken out of the file under O 32, r1. **Held**: That the proceedings were irregular and could only continue if the plaint was amended to include the next friend. A plaint by a minor without authority of the next friend is improper and must be taken off the file but can be re-filed in accordance with the law.

Guardian ad Litem; When the defendant is a minor court shall appoint a guardian Ad litem. The rule is mandatory and a decree obtained without the appointment of a guardian is a nullity.

Credit Finance Corporation Ltd v Mahendi Abdulla Karmali
[1965] 1 EA 545

In 1959, the plaintiff sued the defendant on a hire purchase agreement when he was a minor and obtained judgment in default of his filing a defence. Since obtaining judgment several execution applications were made for enforcing the judgment but no process for attachment of the defendant's property or person was actually executed. In 1965 the defendant applied for setting aside the judgment on the ground that the defendant was a minor when the suit was filed and that no guardian ad litem had been appointed as required by law;
Whether decree a nullity.

Held; without a qualified guardian ad litem a minor cannot become a party to a suit

and any decree obtained *ex parte* without such an appointment is a nullity

- ❖ *Kiddu Musisi Vs Iyamulemye and Another [1965] HCD 87.*: Held: All suits brought against a minor must be through a guardian ad litem i.e. a guardian appointed by court for the purpose of the suit.
- ❖ Removal of a Guardian: a guardian whose interest is adverse to that of the person of unsound mind may be removed under O. 32 r 9.



In *S. Wasswa & Anor. V Daniel Sentenza (1977) HCB 88*; held that O.29 provides for the removal of a next friend whose interest is shown to be adverse to that of the person of unsound mind. The court therefore ordered the next friend to cease acting as next friend upon evidence that his interests were adverse to the person of unsound mind.[*See O.32 r.4(1)*]

- ❖ NB: another next friend may be appointed where one is incompetent. No two or more guardians are allowed for one minor, O. 29 r 4 (2). A guardian appointed by court shall not be replaced unless court considers it in the best interest of the minor.
- ❖ The rules that apply to a minor whether as plaintiff or defendant, apply equally to a person of unsound mind. Order 32 rule 15 ; **Thomas Makumbi v Josephine; (see above)** Wasswa & Anor. V Daniel Sentenza (1977) HCB 88[see above].

Schools:

- ❖ In case of schools, unless owned by a company, the ordinary suable entity is the management committee or the Board of governors.

Harriet Grace Bamale(suing through her next friend) Kituma Magala V The Board of Governors of Makerere College school[1994] 1KALR 10

The issue was whether board of governors could be sued?

Held; the Board of Governors for schools being established by an Act of Parliament can sue or be sued.

- ❖ In case of private primary or secondary school, capacity to sue or be sued is vested either in the proprietors of the school or in the company managing the school.
- ❖ In case of a government primary school, the suable entity is the management committee of

that school. **Management committee Mengo primary school and Ors v Ngabo Newspaper 1993] 1 KALR 115** on the issue of whether the management committees of a primary school can sue or be sued.? **Held;** the management committee, a body which governs primary schools was created by an Act of Parliament and can therefore sue and be sued. However, the Parents Teacher's Association (PTA) is a body not known under the law and is therefore not a corporate person to sue or be sued



Traditional institutions

In case of traditional institutions, the suable entity is the traditional institution which is constitutionally deemed to be a corporation sole and can sue or be sued as such. Art 249

Non-existent or Wrong parties

Where a suit is commenced in the names of a non-existing person, or against a non-existing person such a suit is a nullity and incapable of being cured not even by amendment.

- ❖ On effect of suing a wrong party; Where a plaintiff sues a wrong party, court has to strike out the plaint

The Trustees Of Rubaga Miracle Centre v Mulangira Ssimbwa MISC. APPL NUMBER 576 OF 2006

The Application was brought sought the rejection of the Plaint on the ground that the Defendant in the suit, described as THE BOARD OF TRUSTEES, RUBAGA MIRACLE CENTRE CATHEDRAL, is a non existing person, with no capacity to sue or be sued. The applicant, Mulangira Ssimbwa a.k.a Afidra Milton, sought leave to amend the Plaint by adding Pastor Robert Kayanja as a party to the suit, in addition to the Board of Trustees, Miracle Centre Cathedral.

Held The law is now settled. A suit in the names of a wrong Plaintiff or Defendant cannot be cured by amendment: **The Fort Hall Bakery Supply Co. Vs. Frederick Muigai Wangoe : [1959] Ea 474.** And **Benjamin Sajjabi T/A Namataba Vs. Timber Manufacturers Limited [1978] Hcb 202.**

❖

- ❖ ***Manzur Alam V The Embassy of Saudi Arabia HCCS NO.402_OF 2002*** Suit for recovery of immovable property against the Embassy; issue as to whether Court had Jurisdiction to entertain the suit. As to the proper party to be sued; ***Held;*** that the Embassy of Saudi Arabia should not have been sued as such. The proper defendant ought to have been the Kingdom of Saudi Arabia. That an embassy is a branch and

therefore an emanation of the Government of the sending state and holds property on its behalf. The action therefore should have been brought against that Government. Suit struck out

Pathak v Zainab Mrekwe [1964] 1 EA 24



An action was filed in the name of the respondent forty-five days after her death. Subsequently an application to amend the plaint by substituting the name of another person as plaintiff was made under Order 1, r. 10 of the Indian Civil Procedure Code, 1908 and the magistrate, who was not informed that the plaintiff was dead when the action was filed, made the order sought. The defence pleaded, inter alia, that the suit was a nullity, having been filed in the name of a deceased person. The magistrate, however, gave judgment for the plaintiff for the sum claimed. On appeal

Held –

(i) a suit instituted in the name of a dead person is a nullity;

The Fort Hall Bakery Supply Co v Muigai [1959] 1 EA 474

It was contended that the Fort Hall Bakery Supply Company consists of forty-five persons trading in partnership and that the name of the firm has never been registered under the Registration of Business Names Ordinance (No. 48 of 1951). It was therefore submitted for the defendant that this action is not properly before the court

Held

A non-existent person cannot sue, and once the court is made aware that the plaintiff is non-existent, and therefore incapable of maintaining the action, it cannot allow the action to proceed. The order of the court is that the action be struck out, as the alleged plaintiff has no existence. Since a non-existent plaintiff can neither pay nor receive costs there can be no order as to costs.

Sajjabi v Timber Manufacturers (1978) HCB 202

Held; As the defendant was not a limited liability company, it had no legal existence of its own. A non-existent person cannot be sued. No amendment could be made

- ❖ However, where a suit is in the names of a wrong party, or against the wrong party who nevertheless exists, such omission can be cured by amendment or

substitution of parties.

John Kibyami v Mission and Relief Transport

When the case came up before me for a Scheduling Conference Mr. Suleiman – Musoke informed Court that Counsel for the defendant Mr. Daniel Rutiba, had informed him that there are two



company's with similar names of the defendant. He therefore applied for an adjournment to verify the information. When the case came up again Mr. Musoke applied to amend the particulars of the defendant by deleting the word "limited" Mr. Rutiba objected to the amendment sought. He argued that M/S Mission and Relief Transport Ltd, is a local company incorporated in Uganda while M/s and Missions and Relief Transport is a company incorporated in Netherlands only registered in Uganda under section 370, Part x of the Companies Act as a Foreign Company carrying on business in Uganda. That the two were separate entities. His argument was that by the amendment the plaintiff was substituting the foreign company for the Ugandan Company. He therefore prayed that the suit be struck out under Order 6 rule 29 of the Civil Procedure Rules.

Held; that An error which is a mere misnomer can be corrected by amendment and most importantly an amendment may be allowed at a very late stage, where it is necessitated solely by a drafting error and where there is no element of surprise. In the instant case the error was a drafting error and there is no element of surprise since it was the defendant's Counsel who pointed out to the plaintiffs Counsel the existence of another entity with more or less a similar name. Accordingly the application was allowed to amend the plaint as sought by striking out the word "Limited" from the defendant's name

JOINDER OF PARTIES:

- ❖ All persons who are parties may be joined on one side as parties. O.1 r 1 provides that persons can be joined in one suit as in whom any right of relief in respect of or arising out of the same act or transaction or series of acts or transactions is alleged to exist, whether jointly, severally, or in the alternative where, if those persons had brought separate suits, any common question of law or fact would arise.

Joinder of plaintiffs and joinder of causes of action.

Order 1 rule 2.

- ❖ The plaintiff being joined must derive the cause of action from the same facts or a series thereof.
- ❖ The plaintiff's right of relief must be against the same defendant(s).
- ❖ The circumstances must be such that if the plaintiffs were to commence separate suits, common questions of law and fact would arise.



- ❖ However, it is not mandatory requirement; parties must have something in common. It may not be applicable where such joinder would lead to embarrassing pleadings and disable court from convenient determination of the suit.

In **Fatuma Osman Hussein Vs Mahendra Umadbhai Patel [1995] KALR 671** where the court

(**Katutsi, J.**) observed as regards O.1 r 10(2) of the **Civil Procedure Rules**:

“It seems to me that this rule ought to be strictly construed so, because its provision might be made use of in a manner exceedingly harassing to plaintiffs by forcing them to include in their actions persons against whom they have no interest to proceed. Only in very strong cases should one be forced to encounter a defendant he did not desire to meet in court.

Semyalo Michael v The registered Trustees of Kampala Archdiocese.

The Supreme Court Held; **there is** no law or practice in this country, which makes it mandatory for parties with similar causes of action to institute one and only one suit. In theory and practice litigants who have the same or similar causes of action are free to institute and each can institute separate suits. However, *because of the necessity of convenience and the need to save on time and particularly costs, on the part of parties*, parties who have the same cause of action are encouraged to institute one suit. This is a common practice of procedure which is set out in **Order 1 of the Civil Procedure Rules.**

- ❖ **Buikwe Estate Coffee Ltd Vs Lutabi:** At the hearing, counsel for the defendant made two preliminary objections on point of law that there was a misjoinder of parties and causes of action contrary to O.1 r 1, O.2 r 2 and 3 (authority of advocate) and that the plaintiffs were not entitled to join them. **Held:** That the right to relief existing in all 3 plaintiffs if proved by evidence arose out of the same transaction, namely, invalid resolution of the company which purported to oust the lawful directors and accordingly

there had been no misjoinder of parties and no misjoinder of causes of action.

- ❖ **Uganda Commercial Trading Co. Ltd Vs Jinja Cash Stores:** Counsel raised a preliminary objection that the suit was not maintainable as the plaintiff had improperly joined separate defendants and causes of action in one suit. **Held:** That under the Bulk Sales Ordinance the plaintiff in his capacity as a creditor of the 1st defendant was entitled to have any redress against the 2nd defendant as transferee of the lorries and a common question of law and fact would have arisen if separate suits were brought. There was no misjoinder of the defendants or causes of action and the suit was maintainable.



- ❖ **Yokana Kakire Vs Lunyo Estates Ltd:** The eight (8) plaintiffs each of whom claimed to be a tenant of the defendant company sued for alleged interference with their rights of possession. The defendant contended that there was misjoinder of parties and causes of action contrary to O.1 r 1, CPR. **Held:** that the causes of action set out in the plaint did not arise out of the same act or transaction. They were of wholly distinct and different acts of dispossession and interference of rights of possession. There was no question of law or fact common to the several plaintiffs and there was a misjoinder of plaintiffs and causes of action.

Stroud Vs Lawson:**Held:** That it is necessary that both conditions should be fulfilled and that the right to relief alleged to exist in each plaintiff should be in respect of or arise out the same transaction and also that there should be a common question of law or fact in order that the case may be within the rule

- ❖ For the parties to be joined as plaintiffs, such parties must have capacity to sue or be sued.

Pathak v Zainab Mrekwe [1964] 1 EA 24

An action was filed in the name of the respondent forty-five days after her death.

Held –

- (i) a suit instituted in the name of a dead person is a nullity;
- (ii) the power conferred by Order 10, r. 1 to substitute a plaintiff where a suit has been filed in the name of a wrong person, can only be exercised where the “wrong person” is living at the date of instituting the suit, and has no application where the “wrong person” is dead at such date

The Fort Hall Bakery Supply Co v Muigai [1959] 1 EA 474

The Fort Hall Bakery Supply Company consists of forty-five persons trading in partnership and that the name of the firm has never been registered under the Registration of Business Names Ordinance (No. 48 of 1951). It was therefore submitted for the defendant that this action is not properly before the court

Held A non-existent person cannot sue, and once the court is made aware that

the plaintiff is non-existent, and therefore incapable of maintaining the action, it cannot allow the action to proceed.

- ❖ The rationale of joinder of parties, is to prevent a multiplicity of suits. Same rationale for representative suits. The essence of a representative suit was stated by Mead J in Sonko and others Vs Halima and Anor (1971) EA 443 and was cited with approval in *Hermesdas Mulindwa and*



Anor. V Stanbic Bank U Ltd HCT-00-CC-CS-0426-2004 that the provisions of Order 1 rule 8 are provisions of convenience to avoid the necessity for encumbering the plaintiffs or the defendants with names of many persons and to avoid the necessity for their personal service of proceedings and their personal.

Semyalo Michael v The registered Trustees of Kampala Archdiocese.

Held; **there is** no law or practice in this country, which makes it mandatory for parties with similar causes of action to institute one and only one suit. In theory and practice litigants who have the same or similar causes of action are free to institute and each can institute separate suits. However, *because of the necessity of convenience and the need to save on time and particularly costs, on the part of parties*, parties who have the same cause of action are encouraged to institute one suit.

Joinder of defendants and causes of action;

O.1 r 3 provides that all parties can be joined as defendant against whom any right to relief in respect of or arising out of the same act or transaction or series of acts or transactions is alleged to exist, whether jointly, severally or in the alternative where, if separate suits were brought against those persons, any common question of law or fact would arise. Example, joint owners of properties.

Order 1 rule 3 prescribes the requirements for joinder of parties as defendants in a suit whether jointly and severally or in the alternative provided.

- ❖ The claimed relief against such defendants arises on the same cause of action or a series thereof.
- ❖ If separate suits were commenced against each of the defendants, common questions of law or fact would arise.

Yowana Kahere and others v Lunyo Estates Limited [1959] 1 EA 319

The eight plaintiffs, each of whom claimed to be a tenant of the defendant company, sued for allege interference with their right to possession. The plaintiffs were not joint tenants of the same holding but each claimed to be the tenant of a separate holding. The second, third, fourth and fifth plaintiffs claimed that they were unlawfully evicted from their holdings on different dates



and that their houses and crops were destroyed. The first and eighth plaintiffs who were still in possession of their holdings alleged that their crops and houses were destroyed. Objection was taken on behalf of the defendant company to the plaint on the grounds that there was a misjoinder of parties and causes of action, but it was submitted for the plaintiffs that the acts complained of in the plaint were a series of acts or transactions within the meaning of O.1, r.1 of the Civil Procedure Rules and that there was a common question of law, namely, what provisions of the Crown Lands Ordinance were applicable.

Held –

- (i) the causes of action set out in the plaint did not arise out of the same act or transaction or series of acts or transactions but out of wholly distinct and independent acts of dispossession or interference with the right of possession.
- (ii) there was no question of law or fact common to the several plaintiffs and there was misjoinder of plaintiffs and a misjoinder of causes of action

Court quoted ; *G. G. Kanani v. M. H. Desai and Another* (1): A landlord claimed in one suit to eject two tenants from different portions of the same property. **Held;** That no right to relief arose against the tenants until they had separately ignored the notices to quit. Those were separate and distinct acts.

To quote from the ruling of Ainley, J.:

“... Mr. Agard put his finger on the fallacy of the argument. He pointed out that the right to relief against the first defendant arose when the first defendant defied the will of the plaintiff by ignoring his notice to quit, and that the right to relief against the second defendant arose when the second defendant defied the will of the plaintiff by ignoring his notice to quit. No right to relief arose when the scheme was approved, no right to relief arose when the notices were served. No right to relief existed until there was defiance on the lawful will of the landlord. In this case there were two separate acts of defiance. These acts may have been simultaneous, they may have been based on the same grounds, but for all that they were two separate and distinct acts each of which (on the assumption that the plaintiff's allegations are well founded) gave rise to a right of relief against separate and distinct persons.”

In interpreting the corresponding English rule, namely O. 16, r. 1, Chitty, J., said in *Stroud*

v.

Lawson

(3), [1898] 2 Q.B. 44 at p. 52:

“It is necessary that both these conditions should be fulfilled, that is to say, that the right to relief alleged to exist in each plaintiff should be in respect of or arise out of the same transaction, and also that there should be a common question of fact or law, in order that the case may be within the rule.”



Semakula Vs Musoke: The plaintiff sued the defendant for trespass and conversion of his property as well as that of his wife and children. Counsel argued that he should have included property belonging to his wife. **Held:** That court found that the tort of trespass constitutes an interference with possession with the personal property of the plaintiff and his family at the plaintiff's house and could only be said to have been in his legal possession at the time. That for the plaintiff to sue the defendants jointly there must be a common question of law or fact that could arise if separate suits were brought.

- ❖ If the cause of action arises at different times, then you cannot join them as defendants.

Barclays Bank Vs Patel [1959] EA 214: Plaintiff sued the defendant as guarantor of an overdraft to the company. Judgment was obtained against all the defendant except the 3rd and 4th defendants. The 1st and 5th defendants were parties to the suit and the 1st, 2nd, 4th, 6th and 3rd defendants objected as the suit was not maintainable as the plaintiff had improperly joined different defendants in one action. **Held:** That different causes of action accrued on different dates against different defendant. The circumstances of liability were separate and distinct. The two causes of action could not be disposed of together. That there was a common question of law as the guarantees being identical in form but there was no common question of fact in the circumstances in which the guarantees' right to relief arose are different and binding different defendants. All conditions must be fulfilled in order to apply O.1 r 3.

- ❖ For a party to be joined whether as plaintiff or as defendant, such a party must legally exist as at the time of joinder. (you cannot join a dead for a living person)

Pathak v Zainab Mrekwe [1964] 1 EA 24

Held: That a suit instituted in the names of a dead person is a nullity

Sajjabi v Timber Manufacturers (1978) HCB 202

As the defendant was not a limited liability company, it had no legal existence of its own. A non-existent person cannot be sued. No amendment could be made under

Order 1 r 10 because this is only applicable where the defendant wrongly sued has a legal existence and a question therefore arises of suing a wrong party who may be substituted by the right one. This rule does not apply where as in the instant case, a party with no legal existence is sued.



- ❖ Where joinder relates to causes of action, such causes must arise from same transaction or a series thereof.

Bank of India Limited Vs Shah: The plaintiff Bank sued 5 defendants jointly and severally as guarantors of monies lent on an overdraft to a company's claim. The 2nd, 3rd and 5th defendants submitted to judgment but the 4th defendant raised an objection that there was a misjoinder of parties and causes of action under O.1 r 3. **Held:** That O.1 r3 applied because though the plaintiff had separate remedies against the defendants, the causes of action arose from the same transaction namely, the company's overdraft raised some common question of law and fact against each of them.

Sempa Mbabali v Kizza

- ❖ Where the plaintiff is in doubt as to the appropriate defendant, such plaintiff may sue both defendants so that the question of liability and extent thereof is determined by the court.

Order 1 rule 7 states:-

"where the plaintiff is in doubt as to the person from whom he or she is entitled to obtain redress, he or she may join two or more defendants in order that the question as to which of the defendants is liable, and to what extent, may be determined as between all parties

O.T. Company Ltd Vs African Produce Agency Ltd and Another: The 1st Defendant agreed to transport for the plaintiff 400 tones of kerosene from Kisumu to Kampala but owing to accident between the 1st defendant's bay and the 2nd defendant's bus, 367 tones were damages. The plaintiff sued the 1st defendant's in negligence and joined the 2nd defendant by 3rd party notice. **Held:** That the case of the 1st defendant collision was due solely to the negligence of the driver of the 2nd defendant's bus, there was thus a question to be decided between the defendants which could not be resolved if the 2nd defendant was dismissed from the action.

Order 1 rule 9

- ❖ Where there is non-joinder or misjoinder of parties, such does not render a suit a nullity

and the court is empowered to make appropriate orders for determination of suit for example, it may strike off the wrongly joined party and proceed.

Kiiza Besigye & Others V The DPP & AG Constitutional Petition No.12 of 2006

having found that the DPP was wrongly joined, court ordered for his name to be struck out and proceed with the suit.

Stephen Lubega v Barclays Bank (u) ltd



held; where a wrong party has been sued, the misjoinder can be rectified by court under Civil Procedure Rules. This power of court to deal with joinder issues includes adding or striking out parties.

Musitwa Kyazze Vs Eunice Busingye: Held: That no suit should be dismissed for non joinder or misjoinder of parties or causes of action

- ❖ **Remedy for Misjoinder:** The CPR, O.1 r 10 provides for amendment. Sub rule (1); if the suit is in the name of a wrong person as plaintiff or when it is doubtful as whether it is in the right names of the plaintiff the court may at any stage of the suit if satisfied that the suit has been instituted by a bonafide mistake and it is necessary for determination of the matter in question to do so, order any person to be substituted or added.
- ❖ **Barclays Bank Vs Patel:** Held: That the plaintiff would be given leave to withdraw the suit and institute a fresh one or suits as he chose against the defendants on payment of the defendants costs. The plaint were not to be struck out as being embarrassing.

STRIKING OUT, ADDITION AND SUBSTITUTION OF PARTIES

Order 1 rule 10

(1) Where a suit has been instituted in the name of the wrong person as plaintiff, or where it is doubtful whether it has been instituted in the name of the right plaintiff, the court may at any stage of the suit, if satisfied that the suit has been instituted through a bona fide mistake, and that it is necessary for the determination of the real matter in dispute to do so, order any other person to be substituted or added as plaintiff upon such terms as the court thinks fit.

(2) The court may at any stage of the proceedings either upon or without the application of either party, and on such terms as may appear to the court to be just,

order that the name of any party improperly joined, whether as plaintiff or defendant, be struck out, and that the name of any person who ought to have been joined, whether as plaintiff or defendant, or whose presence before the court may be necessary in order to enable the court effectually and completely to adjudicate upon and settle all questions involved in the suit, be added.



- Order 1 r 10 provides for the discretionary power of court to strike out a party wrongly included in the pleading whether as plaintiff or as a defendant.
- O.1 r 10 (2) empowers court to strike out parties who have been improperly joined whether as plaintiffs or defendants and to substitute those persons who ought to have been joined or whose presence is necessary for the effective and complete adjudicating all the questions **involved in the suit.**

In Gakou & Brothers Enterprises v SGS Uganda Ltd HCT-00-CC-MA-0431-2005

Held; From the wording of the rule, it is clear the rule is about misjoinder and non-joinder of parties. It anticipates a situation where if a party had been improperly joined, such party could be removed, and if some other person, ought to have been party and was not, may be joined as a party to the suit. Order 1 Rule 10 (2) of the Civil Procedure Rules does not extend to substitution of parties. It does not apply where a defendant who has been sued, claims that he has been wrongly or unjustifiably sued by the plaintiff, and is therefore the wrong party. In such a case the defendant would have to defend the suit, establish his defence, and win vindication, if he is the successful party. Or he could apply under the relevant rules to strike out the action against himself, if there is no cause of action disclosed against him.

Mukuye Steven & 73 Others v Madhivani Group Ltd MISC. APPL NO. 0821 OF 2013

Held;

The parties joined under this rule are those who ought to have been added in the first place, but who were not. Because their presence is necessary in order to enable the court effectually and completely to adjudicate upon and settle all questions involved in

the suit, court may either upon or without the application of the parties order their mandatory joinder as parties. The mode of application if court does not move itself, but is moved by the party, appears to be in a summary/oral manner and can be made at any stage of the proceedings and leave is granted on such terms as may appear to court to be just. If it is the defendant moving court under this rule he/she must be prepared to demonstrate that he/she could not effectually set up a desired defence unless that person was joined or an order made that would bind that other person.



Matovu v The Post-Master General (1973) HCB 113

The applicant applied under Order 1 Rule 10(2) to have the second defendant struck out from the suit on the grounds that the Post-Master General has ceased to exist due to repeal of the East African Posts and Telecommunications Act 1951

Held

The plaint was filed when the post master General was still in existence. The plaintiff should have applied to substitute East African Posts and Telecommunications Corporations for the Post-Master General.

The Post-Master General would be struck out and the East African Post and Telecommunications Corporation substituted.

In Stanbic Bank (U) Ltd v The Commissioner General Uganda Revenue Authority MISC. APPL NO.0042 OF 2010

The interim stay order in M/A 727 of 2009 was wrongly typed with the name of the respondent as Uganda Revenue Authority instead of “The Commissioner General URA.”

Court **found** that Jacobsen did not sue the URA; she sued the Commissioner General who made an assessment against her under s.33 of the VAT Act. It is the same Commissioner General that sued the third party notice against Stanbic here under s.40 of the VAT Act. Since the interim order was also made against the same Commissioner General and her servants/or agents, including Stanbic who became her agent by virtue of the Agency Notice that was issued on 15/12/2009, I find that the Commissioner General is not only a proper but also a necessary party for the effective

and conclusive determination of this application. I also find that the respondent (URA) was wrongly inserted as a party in the order that was issued by this court on the 18/12/2009, instead of the Commissioner General of URA and that the misnomer of the respondent was perpetrated in this application.



Court thus held that by virtue of powers vested in this court by order 1 rule 10 (2) CPR it is further hereby ordered that the URA be struck out as respondent in this application and substituted by the Commissioner General Uganda Revenue Authority; and it is so reflected in this ruling

- The court may do so on its own motion or on the application of the either party.

Kololo Curing Co Ltd v West Mengo Co-operative Union [1980] HCB 60;

In that case a defendant was seeking to add a third party as co-plaintiff to the suit.

Held: That a defendant can apply under O.1 r 10 to join a party to the suit as a co-plaintiff by availing himself with the precision of the rule, but the court on its motion can join any party to the suit which it deems would facilitate effectual and complete determination of the suit.

“As to whether a defendant can apply under O.1 r.10(2) of the Civil Procedure Rules for joining a third party to a suit as a co-plaintiff, not only can any of the parties to a suit avail himself of the provisions of the rule but the court itself can on its own motion, join any party as plaintiff or defendant, if in its judgment, such joinder would facilitate effectively and completely the determination of the suit.”

In Gakou & Brothers Enterprises v SGS Uganda Ltd HCT-00-CC-MA-

0431-2005 Held;

Under Order 1 Rule 10 (2) of the Civil Procedure Rules, it may be possible for the parties to apply to add a party, or at the instance of the court to add a party, in case

the presence of such a person is necessary to enable the court effectually and completely to adjudicate upon and settle all questions involved in the suit

Alley Route Ltd v Uganda Development Bank Ltd *MISC. APPL NO.HCT-00-CC-MA-459 OF 2007*

Before: Hon. Mr. Justice Lameck N. Mukasa

held



The application to add such a party could be by any of the parties to a suit or done by the court on its own motion.

The application could even be made by any person whose legal right or who claims that his legal right will be directly affected by the granting of the relief claimed in the action and can show that his presence is necessary to enable court effectually and completely to adjudicate and settle the suit before it.

Lea Associates Limited v Bunga Hill House Limited HCT-00-CC-

MA-0348-2008 held

The Application to add such a party could be by any of the parties or done by the Court or its own motion. See Kilolo Curing Co Ltd Vs West Mengo Co – op Union Ltd (1991) HCB 60. The application could even be made by any person whose legal right will be directly affected by the grant of the relief claimed in the action and can show that his presence is necessary to enable court effectively and completely adjudicate all settle the suit before it. See Goboldas Laxirioudas Tana Vs Sorter Rose Munyiza HCCS No 1076 of 1987 (1990 – 99) KALR 21, Inspector General of Government Vs Kibonda Butema Form Ltd & A.C.A Constitutional App. No. 13 of 2006 IGG Vs Blessed Constitution Ltd & Anor HCT-00-CC-MA-073 – 2007

Samson Sempasa v P.K. Sengendo MISCELLANEOUS APPLICATION NO. 577 OF 2013

In this case, the respondent sued a one James as the owner of a number of plots of land. One of the plots, the applicant claimed that it belonged to him having validly purchased it from the defendant in the main suit. The applicant applied to be joined as a co-defendant.

Held; Clearly, under *Order1 r.10 (2) (supra)* not only can the parties avail themselves of the provisions of the rule but the court itself can on its own motion join any party as plaintiff or defendant if in court's opinion such joinder would facilitate effectively and completely the determination of the suit. See: *Kololo Curing Co. Ltd. v. West Mengo Co-op Union Ltd. [1981] HCB 60.*



- The court may on the application of a party substitute one of the parties with another party provided that the party being substituted existed in the first place.
- Joinder can only be allowed where there is a valid subsisting suit.

Pathak v Zainab Mrekwe [1964] 1 EA 24

An action was filed in the name of the respondent forty-five days after her death. Subsequently an application to amend the plaint by substituting the name of another person as plaintiff was made under Order 1, r. 10 of the Indian Civil Procedure Code, 1908 and the magistrate, who was not informed that the plaintiff was dead when the action was filed, made the order sought. The defence pleaded, inter alia, that the suit was a nullity, having been filed in the name of a deceased person. The magistrate, however, gave judgment for the plaintiff for the sum claimed. On appeal

Held –

- (i) a suit instituted in the name of a dead person is a nullity;
- (ii) the power conferred by Order 1 r 10 to substitute a plaintiff where a suit has been filed in the name of a wrong person, can only be exercised where the “wrong person” is living at the date of instituting the suit, and has no application where the “wrong person” is dead at such date

The Fort Hall Bakery Supply Co v Muigai [1959] 1 EA 474

It was contended that the Fort Hall Bakery Supply Company consists of forty-five persons trading in partnership and that the name of the firm has never been registered under the Registration of Business Names Ordinance (No. 48 of 1951). It was therefore submitted for the defendant that this action is not properly before the court

Held

A non-existent person cannot sue, and once the court is made aware that the plaintiff

is non- existent, and therefore incapable of maintaining the action, it cannot allow the action to proceed. The order of the court is that the action be struck out, as the alleged plaintiff has no existence. Since a non-existent plaintiff can neither pay nor receive costs there can be no order as to costs.



Sajjabi v Timber Manufacturers (1978) HCB 202

As the defendant was not a limited liability company, it had no legal existence of its own.

A non-existent person cannot be sued. No amendment could be made under Order 1 r 10 because this is only applicable where the defendant wrongly sued has a legal existence and a question therefore arises of suing a wrong party who may be substituted by the right one. This rule does not apply where as in the instant case, a party with no legal existence is sued.

The Trustees Of Rubaga Miracle Centre v Mulangira Ssimbwa MISC. APPL NUMBER 576 OF 2006

The Application was brought sought the rejection of the Plaintiff on the ground that the Defendant in the suit, described as THE BOARD OF TRUSTEES, RUBAGA MIRACLE CENTRE CATHEDRAL, is a non existing person, with no capacity to sue or be sued

The applicant, Mulangira Ssimbwa a.k.a Afidra Milton, sought leave to amend the Plaintiff by adding Pastor Robert Kayanja as a party to the suit, in addition to the Board of Trustees, Miracle Centre Cathedral. Learned Counsel Sebastian Angeret, representing the opposite side, insisted that the Plaintiff should be amended under Order 1 Rule 10(2) of the Civil Procedure Rules by adding on Pastor Robert Kayanja as the second Defendant. This was to enable Court to determine and adjudicate effectually on all the issues before Court. Pastor Robert Kayanja had negotiated the construction contract with the Plaintiff and therefore it was only fitting that he is added as second Defendant.

held

The law is now settled. A suit in the names of a wrong Plaintiff or Defendant cannot

be cured by amendment: **The Fort Hall Bakery Supply Co. Vs. Frederick Muigai Wangoe : [1959] Ea**

474.And Benjamin Sajjabi T/A Namataba Vs. Timber Manufacturers Limited [1978] Hcb 202.

While Order 1 Rule 10 (2) empowers Court to add or strike out a party improperly joined; and Order 1 Rule 10 (4) allows an amendment of a Plaintiff where the Defendant is added or substituted, such amendments of the Plaintiff can only be made if they are minor matters of form, not affecting



the substance of the identity of the parties to the suit: See **Reliable African Insurance Agencies Vs National Insurance Corporation [1979] HCB 59.**

Where the amendment by way of substitution of a party purports to replace a party that has no legal existence, the Plaint must be rejected as it is no Plaint at all:

In the instant application, the Defendant described as **The Board of Trustees Miracle Centre Cathedral**, does not exist in law. The attempt to add Pastor Robert Kayanja, is really an attempt to substitute a non existing Defendant. The law does not allow that as in reality there is no valid plaint in the suit.

Since the decision of the Court is that there is no defendant to the suit, no order will be made as to costs. A non existing party cannot be paid costs.

- However, where a person seeks to be joined as a defendant, the court must be satisfied;
- That such a party is one that ought to have been sued but was left out.
- That the presence of such a party is relevant for a conclusive and effectual determination of a suit.
- That in the absence of such a party, the orders of court may not be easily implemented.
- A party has an interest in the subject matter of the suit to the extent that orders made by the court are likely to affect that party's interests.

In Stanbic Bank (Uganda) Limited} v Canstar Rags (Uganda) Limited MISC. APPL

N

O 349 OF 2012

Justice Madrama

held

According to Devlin J in **Amon v Raphael Tuck & Sons Ltd** [1956] 1 All ER 273 at page 279, the jurisdiction to join a defendant turns on the true construction of the words in the rule as to whether that party is a necessary party.

The beginning and end of the matter is that the court has jurisdiction to join a person whose presence is necessary for the prescribed purpose and has no jurisdiction under the rule to join a person whose presence is not necessary for that purpose.”



In Departed Asian Property Custodian Board v Jaffer Brothers Ltd SCCA No. 9 of 1998.

Particularly the judgment of Justice Mulenga stated:

“For a person to be joined on the ground that his presence in the suit is necessary for effectual and complete settlement of all questions involved in the suit, one of two things has to be shown. It has to be shown that the orders which the plaintiff seeks in the suit would legally affect the interest of that person and it is desirable to avoid multiplicity of suits to have such person joined so that he is bound by the decision in that suit. Alternatively a person qualifies on application of a defendant to be joined as a co- defendant where it is shown that the defendant cannot effectively set up a defence he desires to set up unless that person is joined, or unless the order is made to bind that person.”

Electoral Commission v William Kanyike and Anor MISC. APPL NO.30 OF 2012)

Held; The law as to joinder of parties to a suit, which includes an appeal, makes a distinction between the joinder of one party who ought to have been joined as a defendant and the joinder of one whose presence before the court is necessary for the court to effectively and completely adjudicate upon questions involved in the suit. This distinction has been clearly pointed out by the Supreme Court (Uganda) in **Departed Asians Property Custodian Board V Jaffer Brothers Ltd: [1999] EA 55**, by Mulenga, JSC,

Samson Sempasa v P.K. Sengendo MISC. APPL NO. 577

OF 2013 Held;

It is a fundamental consideration that before a person can be joined as party, it must be

established that the party has high interest in the case. In addition, it must be clearly demonstrated that the orders sought in the main suit would directly legally affect the party seeking to be added. These considerations have been amplified by the Supreme Court of Uganda in the case of the *Departed Asians Property Custodian Board v. Jaffer Brothers Ltd [1999] I.E.A 55*, that for a party to be joined on ground that his presence is necessary for the effective and complete settlement of all questions involved in the suit, it is necessary to show either that the orders sought would legally affect the interest of that person and that it is desirable to have that person joined to avoid



multiplicity of suit, or that the defendant could not effectually set up a desired defence unless that person was joined or an order made that would bind that other person.

In the instant application, the Applicant has deposed in his affidavit that he has interest as the lawful owner of the suit land comprised in **Busiro Block 274 Plot 658 (now Plot 735)** through purchase from James Lumaama Ndawula, who is the 1st Defendant in the main suit. In addition, the Respondent in the main suit seeks for orders, *inter alia*, of cancellation of several certificates of title for having been obtained fraudulently, including **Plot 735**, which the Applicant lays claims to; having acquired it through purchase from the said James Lumaama Ndawula. Logically, an order affecting the 1st Defendant with regard to the suit land would directly affect the Applicant's interest in the same land. This makes a more compelling case for the Applicant to be joined as a party to enable court effectually and completely determine all the matters in controversy.

Mukuye Steven & 73 Others v Madhivani Group Ltd MISC. APPL NO.

0821 OF 2013 Held;

Before a person can be joined as party, it must be established that the party has high interest in the case. In addition, it must be clearly demonstrated that the orders sought in the main suit would directly legally affect the party seeking to be added. These considerations have been amplified in the case of the **Departed Asians Property Custodian Board v. Jaffer Brothers Ltd (supra)** where the Supreme Court held that for a party to be joined on ground that his presence is necessary for the effective and complete settlement of all questions involved in the suit, it is necessary to show either that the orders sought would legally affect the interest of that person, and that it is desirable to have that person joined to avoid multiplicity of suit, or that the defendant could not effectually set up a desired defence unless that person was joined or an order made that would bind that other person.

- A person may be joined as a defendant even if the plaintiff has no cause of action against him or her.

Alley Route Ltd v Uganda Development Bank Ltd *MISC. APPL NO.HCT-00-CC-MA- 459 OF 2007*



Before: Hon. Mr. Justice Lameck N. Mukasa

held

Under the rule court may order any person to be joined as a Plaintiff or Defendant or as a person whose presence before the court may be necessary in order to enable the court effectually and completely to adjudicate upon and settle all questions involved in the matter before court

Such a person may be joined even if the Plaintiff has no cause of action against him/her provided that such party's presence is necessary in order to enable the court effectually and completely adjudicate upon and settle all questions involved in the suit before it.

In *Gokoldas Laximidas Tanna Vs Sorter Rose Munyinda H.C.C. S. No. 7076 of 1987 (1990 – 91) KALR 21* (quoted with approval in **The Inspectorate Of Government v Blessed Constructors Ltd and Anor**) Justice Ouma stated:-

“The law is that a person whose legal right or who claims that his legal right will be directly affected by the granting of the relief claimed in the action and can therefore, show that his presence is necessary to enable the court effectually and completely to adjudicate as above stated, may be added to the suit as a party upon his own application.

**In The Inspectorate Of Government v Blessed Constructors Ltd and Anor
MISC. APPL. NO. 73 OF 2007**

Held;

The above sub rule empowers Court at any stage of the proceedings to order that the

name of any person who ought to have been joined whether as plaintiff or defendant or whose presence before Court may be necessary in order to enable Court effectually and completely to adjudicate upon and settle all questions involved in the suit be added. *Such a person may be joined even if the Plaintiff does not have a cause of action against such person provided that the party's presence is necessary in order to enable the Court effectually and completely adjudicate upon and settle all questions involved in the suit before it.*



In this case the IGG was found as a necessary party to be joined as a co-defendant in a suit by the 1st respondent and against the 2nd respondent.(Jinja District Local Government). The IGG had ordered the 2nd respond to terminate the contract with the 1st respondent who then sued for breach of contract. Considering the circumstance of the case, court found the IGG a necessary party for the effective and complete adjudication of the issues in the main suit.

Lea Associates Limited v Bunga Hill House Limited HCT-00-CC-MA-0348-2008

Held; that order 1 rule 10(2) above court has discretion to order any person to be joined as a plaintiff or defendant or as a person whose presence before court may be necessary in order to enable the court effectively and completely to adjudicate upon and settle all quests involved in the matter before it . Such a person may be joined even if the plaintiff has no cause of action against him or her provided that such party's presence is necessary for effectual and complete adjudication and settlement of all the issues involved in the suit before court.

- The aim of joining parties is to avoid a multiplicity of suits.

This was stated in Ally Route Ltd Vs Uganda Development Bank Ltd HCt-00-CC-MA-459-2007., quoted with approval in **Lea Associates Limited V Bunga Hill House Limited**

The aim is to bring on record all persons who are parties relating to the subject matter before Court so that the dispute may be determined in their presence and that the same time without any prostration, inconvenience and to avoid multiplicity of proceedings.

Samson Sempasa v P.K. Sengendo MISCELLANEOUS APPLICATION NO. 577 OF 2013

Importantly, the main purpose of joining parties is to enable the court to deal with matter brought before it and to avoid multiplicity of pleadings. It is a mandate of this court under *Section 33 of the Judicature Act (Cap.13)* that as far as possible all matters in controversy between the parties should be completely and finally determined and all multiplicities of legal proceedings concerning any of the matters be avoided. In that regard, it would be appropriate and in the interest of justice



that all matters touching and concerning the subject matter of the suit in the instant case be determined finally and completely to avoid litigating over the same matters again; which dictates that the Applicant be joined as a party to the suit.

- The rationale for the strict pre-condition is the rule that the plaintiff is at liberty to sue any person he thinks he has a cause of action against and cannot be forced to sue someone.

In Stanbic Bank (Uganda) Limited} v Canstar Rags (Uganda) Limited MISC. APPL NO 349 OF 2012

Justice Madrama held;

The general rule is that a defendant cannot be added upon the application of another defendant against the will of the plaintiff. The rationale for this was stated by the High Court of Tanzania in the case of **Santana Fernandes v Kara Arjan & Sons and Two others [1961] 1 EA 693 (HCT)** at page 697:

“It appears from the latter case that a plaintiff, being the dominus litis, cannot be compelled to sue a person, for damages in respect of a tort, whom he does not wish to sue. The instant case has demonstrated only too clearly the impossible situations in which an unwilling plaintiff is likely to find himself at the trial where a defendant is forced upon him against his will. Moreover, the instant case has shown forcibly what little benefit such addition would be likely to afford the original defendant.”

In this case, the applicant sought to join the respondent’s directors in a suit by the respondent against the applicant for negligently opening a bank account. The applicant claimed that since the respondent’s directors were the ones who opened the account, they should be joined as co- defendants. The respondent opposed the application.

It was held that the cause of action in negligence can stand on its own and the applicant can defend itself against it. That the application failed to meet the requirements set up by the Supreme Court in **DAPCB vs. Jaffer Brothers** And the general rule that a plaintiff cannot be forced to sue a defendant was applied as the respondent cannot be forced to sue its own director as it is their internal matter.

Major Roland Kakooza Mutale Vs Attorney General Misc Application No. 665 Of 2003 where the Inspector General of Government applied to be joined as a defendant in a suit against the Attorney General and His Lordship Justice Yorokamu Bamwine (as he then was) declined to after setting down the principles under which an application of this nature would be allowed. I quote:-



“Generally speaking, under O. 1 r. 10(2) of the Civil Procedure Rules (CPR) gives court wide powers to strike out or add parties to suits. However such addition cannot be for the sake of it. There must be a compelling reason to do so. The principles under which such application can be allowed are fairly well known.

- 1. The plaintiff is at liberty to sue anybody he thinks he has a claim against and cannot be forced to sue somebody. Where he sues a wrong party, he has to shoulder the blame.*
- 2. Court has no jurisdiction under O. 1 r. 10(2) to order the addition of parties as defendants where the matter is not liable to be defeated by non-joinder; when they were not persons who ought to have been sued in the first place; and where their presence as a party is not necessary to enable court effectively to adjudicate on all the questions involved.*
- 3. A defendant will not generally be added against the plaintiff's wish.*

Electoral Commission v William Kanyike and Anor MISC. APPL NO.30 OF 2012)

Held; It is also a principle of law that, subject to the principle quoted above, no person ought to be compelled to bring an action without his/her consent. Since a cause of action is always brought against some other person, it follows also that a party who by his/her own choice decides that he/she has no cause of action against a particular party ought not to be forced to maintain a cause of action by adding that particular party to the suit. In **Fatuma Osman Hussein Vs Mahendra Umadbhai Patel [1995] KALR 671** where the court (Katutsi,J.) observed as regards O.1 r 10(2) of the **Civil Procedure Rules**:

“It seems to me that this rule ought to be strictly construed so, because its provision might be made use of in a manner exceedingly harassing to plaintiffs by forcing them to include in their actions persons against whom they have no interest to proceed. Only in very strong cases should one be forced to encounter a defendant he did not desire to meet in court.”

In this application, the applicant has offered no explanation to court as to what has prompted him to apply to join the respondents to the appeal, when at trial in the High Court he was co-respondent with the 1st respondent to the petitions filed by the

respondents he now wants to join

In Gakou & Brothers Enterprises v SGS Uganda Ltd HCT-00-CC-MA-0431-2005

Held; It is for the plaintiff to elect which person shall be the defendant in the suit, and the plaintiff cannot be compelled to sue a particular person, as defendant, except in cases of necessity. See Denis Kimuli v Sarah Biribonwa Anywar and Anor [1987] H.C.B. 71.



The case of *Fernandes v Kara Arjan and Sons* [1961] E.A. 693 illustrates the futility of ordering the plaintiff to proceed against a particular person as a defendant without the plaintiff's assent. Mosdel, J., observed,

“ a plaintiff, being dominus litis, cannot be compelled to sue a person, for damages in respect of a tort, who he does not wish to sue. The instant case has demonstrated only too clearly the impossible situations in which an unwilling plaintiff is likely to find himself at the trial where a defendant is forced upon him against his will. Moreover, the instant case has shown forcibly what little benefit such addition would be likely to afford the original defendant. The plaintiff was forced by reason of my order of August 17, 1961, to aver negligence against the third defendant. When evidence for the plaintiff was led not a tittle was extracted either in chief or in cross-examination showing the third defendant was even partially to blame for the accident.” At page 697.

In **Kakooza Mutale v, Attorney General & Another** [2001-2005] HCB 110, quoted in **Stanbic Bank (U) Ltd v He Commisioner General Uganda Revenue Authority**

the high court considered the extent and intent of the provisions of order 1 rule 10 CPR. Bamwine, J (as he then was) laid down the criteria to be employed by a court exercising its powers under the rule. He ruled that first and foremost, Order 1 rule 10(2) CPR gives wide discretion to the court to strike out or add parties to suits, and that the principle under which such application can be allowed are that a plaintiffs at liberty to sue anybody that he thinks he has a claim against and cannot be forced to sue anybody; and where he sued a wrong party he has to shoulder the blame.

- The dominus litis rule cannot apply when it is in fact court exercising its

discretion to add the parties.

Mukuye Steven & 73 Others v Madhivani Group Ltd MISC. APPL NO. 0821 OF 2013

Held; the rule is that a plaintiff cannot be forced sue a defendant they do not have a claim against. However, under *Order 1 rr.10 (2) & 13 (supra)* when the court exercises its discretion upon or without the application of the parties, and it orders for addition of the parties to the proceedings on the ground that their presence is considered necessary for the effective and complete settlement of all the questions involved in the suit, reference is in effect being made to *Section 33 of the*



Judicature Act (supra); which is a principal municipal law providing for the specific situation,

and the common law principle of a plaintiff being dominus litis becomes secondary.

The adding of the Applicants to the main suit as defendants by order of court judiciously exercising its discretion within the provisions of the law would not amount to “forcing” the plaintiff to sue persons it does not have a claim against, or forcing the plaintiff to sue “wrong parties.” **Order 1 r. 10(2) (supra)** envisages this situation and provides that; “*the name of any person who ought to have been joined, whether as plaintiff or defendant...*” may be added in appropriate cases. This does not in the least affect a plaintiff’s standing as *dominus litis*.

Suing only the Defendants against whom the Respondent seeks orders of eviction and damages, but who now only have bare interest in the suit land having sold to the Applicants, and omitting to sue the Applicant who now claim equitable interest in the suit land, would not enable this court to effectually and completely adjudicate upon, and settle all questions involved in the suit.

Samson Sempasa v P.K. Sengendo MISCELLANEOUS APPLICATION NO. 577 OF 2013

Held; That a plaintiff is *dominus litis*, and can sue whomever he or she thinks will obtain relief from; and that a plaintiff cannot be forced to sue somebody whom he or she has not chosen to sue. Further that where a plaintiff sues a wrong party he or she has to shoulder the blame.

In the instant application, however, the adding of the Applicant as defendant by order of court exercising its discretion within the provisions of the law, would not amount to “forcing” the Respondent/Plaintiff to sue someone he does not have a claim against, or suing “a wrong party”. **Order 1 r 10(2) (supra)** clearly stipulates that, “*the*

name of any person who ought to have been joined, whether as plaintiff or defendant,...”may be added in appropriate cases.

Indeed the Applicant ought to have been sued since he has been in physical possession of the suit land and directly claims interest therein, while the Respondent is seeking to take over the same land. Suing only the parties from whom the Applicant claims to have bought, but who no longer have any vested interest in the suit land, and omitting to sue the Applicant would not enable this court to effectually and completely adjudicate upon and settle all questions involved in the suit. If anything, it would only serve to proliferate multiplicity of proceedings; which this court is enjoined by law to curtail.



Stanbic Bank (U) Ltd v The Commissioner General Uganda Revenue Authority MISC. APPL NO.0042 OF 2010

Court found that it would appear that whoever drafted or typed the interim stay order in M/A 727 of 2009 wrongly typed the name of the respondent as Uganda Revenue Authority. Instead of “The Commissioner General URA” It also appears that the error escaped the scrutiny of the registrar. The mistake was then perpetrated in his application which was brought against the URA instead of its Commissioner General. And strictly, there could be no action arising out of the breach of the order that arose from the application by URA as a corporation. Therefore, as was advanced by Mr. Kanyerezi, the appearance of URA as a respondent in this application was a misnomer. It cannot be sanctioned by this court for it is this court that failed to spot the apparent error and issued the order that is being contested under its seal and the hand of the registrar.

Per **LADY JUSTICE IRENE MULYAGONJA KAKOOZA**

In **Kakooza Mutale v, Attorney General & Another [2001-2005] HCB 110**, the high court considered the extent and intent of the provisions of order 1 rule 10 CPR. Bamwine, J (as he then was) laid down the criteria to be employed by a court exercising its powers under the rule. He ruled that first and foremost, *Order 1 rule 10(2) CPR gives wide discretion to the court to strike out or add parties to suits, and that the principle under which such application can be allowed are that a plaintiffs at liberty to sue anybody that he thinks he has a claim against and cannot be forced to sue anybody; and where he sued a wrong party he has to shoulder the blame. Further that jurisdiction under Order 1 rule 10(2) to order the addition of parties as defendant where the matter is not liable to be defeated by non-joinder; when they were not persons who ought to have been sued in the first place; and where the presence as a party is not necessary to enable*

the court effectively to adjudicate on all questions involved. He concluded that generally, a defendant will not be added against the plaintiff's wish. Suffice it to add here that the criterion listed above must be viewed from the perspective of the principle that substantive justice must be administered without undue regard to technicalities as is stated in the Article 126(2) (e) of the Constitution.



Jacobsen did not sue the URA; she sued the Commissioner General who made an assessment against her under s.33 of the VAT Act. It is the same Commissioner General that sued the third party notice against Stanbic here under s.40 of the VAT Act. Since the interim order was also made against the same Commissioner General and her servants/or agents, including Stanbic who became her agent by virtue of the Agency Notice that was issued on 15/12/2009, I find that the Commissioner General is not only a proper but also a necessary party for the effective and conclusive determination of this application. I also find that the respondent (URA) was wrongly inserted as a party in the order that was issued by this court on the 18/12/2009, instead of the Commissioner General of URA and that the misnomer of the respondent was perpetrated in this application.

Under s.99 CPA, this court has power to amend its judgments, decrees and orders where clerical or mathematical mistakes, or errors arising in them from any accidental slip or omission have been made. Such amendment may be effected at any time by the court, either of its own motion on the application of any of the parties. This provision is popularly referred to as the 'slip' rule. It is therefore incumbent upon this court to correct the errors in the order that was issued by the registrar on 18/12/2009, by substituting URA as respondent therein with "The Commissioner General, Uganda Revenue Authority" who was the correct party thereto.

And by virtue of powers vested in this court by order 1 rule 10 (2) CPR it is further hereby ordered that the URA be struck out as respondent in this application and substituted by the Commissioner General Uganda Revenue Authority; and it is so reflected in this ruling. Since it was for the application (Jacobsen) in M/A 727 of 2009 to ensure that the order in her favour was correctly drawn up, she must pay the respondent's cost for the preliminary objection

- The power of the court to order striking out, addition or substitution of parties is discretionary and must be exercised only in fitting circumstances.

**Abdul Karim Kiwanyi v Hakeem Lukenge And Ors MISC APPLICATION
NO. 587 OF 2012**

Before: Hon. Justice Eldad Mwangusya



The applicant applied to be joined as a co-defendant but the plaintiff in that suit opposed the application.

Held

The court retains a wide discretion in allowing amendments but the use of the word discretion means that there may be circumstances under which court may find that a joinder of a party is not warranted.

Samson Sempasa v P.K. Sengendo MISCELLANEOUS APPLICATION NO. 577 OF 2013

Held; Clearly, under *Order 1 r.10 (2) (supra)* not only can the parties avail themselves of the provisions of the rule but the court itself can on its own motion join any party as plaintiff or defendant if in court's opinion such joinder would facilitate effectively and completely the determination of the suit. See: *Kololo Curing Co. Ltd. v. West Mengo Co-op Union Ltd. [1981] HCB 60.*

Apart from the above, adding or striking off a party to pleadings, whether on application of the parties or on court's own motion, is in the discretion of court. Like all discretion, however, it must be exercised judiciously based on sound principles.

- The effect of failure to follow the Order 1 rule 10 is a mere irregularity. Under rule 9 of the same order, no suit shall be defeated by reason of the misjoinder or non-joinder of parties

Parombo Cotton Farmers Ltd v Uganda Ginners And Cotton HC MA 1072 OF 2013

On 25 April 2013 the Applicant filed HCCS 217 of 2013 in the commercial division of the High Court against Uganda Ginners and Cotton Exporters Association Ltd. Subsequently the Managing Director came to believe that other persons ought to have been joined as Defendants and on behalf of the Plaintiff instructed Counsel to add those persons as Defendants and it was done. Later on he was informed by his Counsel that while the addition of the Defendants 2 – 12 was made in a timely manner, there was an inadvertent error made when the Defendants were added to the suit without the leave of court. The parties who are sought to be added filed a joint defence within the prescribed time and there was no objection to their addition in the defence.

Held

The rule gives the court wide discretionary powers to join or add a party as a Plaintiff or Defendant who ought to have been joined or whose presence before the court may be necessary in order to enable the court effectually and completely to adjudicate upon and settle all questions involved in the suit. A Plaintiff is ordinarily at liberty to join all persons who may be liable as Defendants. This principle is reflected in rule 3 of Order 1 of the Civil Procedure Rules.



The second important principle is reflected in rule 9 of the same order that no suit shall be defeated by reason of the misjoinder or nonjoinder of parties and in every suit the court may deal with the matter in controversy so far as regards the rights and interests of the parties actually before it.

The Plaintiff is at liberty to amend the plaint under the provisions of Order 6 rule 20 of the Civil Procedure Rules without leave at any time within 21 days from the date of issuance of summons to the Defendant.

Failure to obtain the leave of court would in the context of the rules be an irregularity and not an illegality since the rules permit the joining of several Defendants where common questions of fact or law arise.

- The procedure for bringing an action under Order 1 rule 10 is by mention or summons under Order 1 rule 13.

Samson Sempasa v P.K. Sengendo MISCELLANEOUS APPLICATION NO. 577 OF 2013

In this case, the respondent sued a one James as the owner of a number of plots of land. One of the plots, the applicant claimed that it belonged to him having validly purchased it from the defendant in the main suit. The applicant applied to be joined as a co-defendant.

held

The procedure for bringing such an application is provided for under **Order 1 r.13 CPR** that; *“Any application to add or strike out or substitute a plaintiff or defendant may be made to the court at any time before trial by mention or summons or at the trial of the suit in summary manner.”*

Mukuye Steven & 73 Others v Madhivani Group Ltd MISC. APPL NO. 0821 OF 2013

Held;

The mode of application if court does not move itself, but is moved by the party, appears to be in *a summary/oral manner* and can be made at any stage of the proceedings and leave is granted on such terms as may appear to court to be just..



REPRESENTATIVE SUITS: coursework 2017

Representative suits refer to suits where a person sues or defends a suit on behalf of others. Representative suits are provided for under Order 1 r 8 which provides that when there are numerous persons having the same interest one or more of such persons may with permission of the court sue or be sued or may defend such suit on behalf of or for the benefit of persons interested. Any person on whose behalf or benefit a suit is defended under the rule may apply to be a party.

- ❖ Representative suits are common in proceedings involving Associations, clubs or other unincorporated entities that have no capacity to sue as such; These are suits brought against a person in a representative capacity and those other members;
- ❖ Representative suits are instituted to avoid a multiplicity of legal proceedings over the same subject matter where there are numerous individuals having the same interest in the same subject matter.

In ***British American Tobacco (U) Ltd v Mwijakubi & Others***

It was held that Representative actions are instituted to avoid a multiplicity of legal proceedings over the same subject matter where there are numerous individuals having interest in the same subject matter.

- ❖ The essence of a representative suit was stated by Mead J in *Sonko and others Vs Halima and Anor (1971) EA 443* and was cited with approval in ***Hermesdas Mulindwa and Anor. V Stanbic Bank U Ltd*** HCT-00-CC-CS-0426-2004 that the provisions of Order 1 rule 8 are provisions of convenience to avoid the necessity for encumbering the plaintiffs or the defendants with names of many persons and to avoid the necessity for their personal service of proceedings and their personal.

❖ **Preconditions to Representative Suits:**

When instituting representative suits, there are a number of conditions that must be fulfilled, both as a matter of law and procedure.

- ❖ The representatives, must have capacity to sue on behalf of others.



In *Uganda Freight Forwarders Association and Ors V The Attorney General* Counsel for the 2nd respondent submitted that the petition was filed by two unincorporated associations. It ought to be dismissed with costs since it is judicially recognized that unincorporated associations have no legal existence of their own and cannot maintain or defend a suit or a petition in their own names as has been done in this petition.

Held;

In order to qualify under the above provision, the organisation must be recognised by law since it is an elementary principle of law that an unincorporated association is not a legal entity capable of suing or being sued. A suit by an unincorporated body is a nullity. The same applies to the decision of the High Court in the case of **Okwonga v Anywar & The Church of Uganda (supra)**, where the Church of Uganda, being an unincorporated association, was struck off the plaint as a defendant because its legal existence was not recognised in law in the instant case the petition was struck out for lack of locus.

- ❖ The first condition to be met is that numerous persons must have the same interest in one suit.

The court in **Dr. James Rwanyarare v AG Constitutional petition No.11/1997** provided the difference between many and numerous by stating that numerous persons for purpose of representative suits means a definite number of people that can be ascertained.

In determining numerous persons, the court in **Johnson v Moss and others** [1969] 1 EA 654 stated that that a court might well feel satisfied, without insisting upon exact figures, that the members of the Club would be numerous.

In *S. Mwijakubi & Others V British American Tobacco (U) Ltd HCT-00-CC-CS-286-2005*, it was held that the community or group on who behalf the action is brought

does not have to be ascertained by exact figures as it is possible to bring an action on behalf of a fluctuating group or community of individuals.

- ❖ The parties must have a common interest. It is not alike or similar interest in the sense that the plaintiff and all those whom he represents will enjoy some relief by his success through different proportions and perhaps in different degrees; All the parties must have a common grievance and the relief is in its nature beneficial to all of them. .



In *Smith Vs Cardiff Corporation*: it was held to enable the action to be constituted as a representative action the plaintiffs must show that all the members of the class on whose behalf they sued **had a common interest in a common subject-matter, that all had a common grievance, and that the relief was in its nature beneficial to them all.**

In this case, the defendant had varied the rent favouring some tenants over others. Court noted that the scheme by its nature involved the affluent “subsidising” the less affluent tenants, and so, apart from those in an intermediate position, there were two distinct classes of tenants whose interests were in conflict, viz, those who would benefit by having to pay no increase and those who would have to pay the maximum increase of rent; without deciding whether or not the thirteen thousand tenants had a common interest, the relief sought was not in its nature beneficial to them all; and, therefore, RSC, Ord 16, r 9, could not apply, but the writ would be amended by striking out the reference that the plaintiffs were suing in a representative capacity, so that they would proceed as individuals and the action be treated as a test action.

In *Campbell v Thompson and Another*; The plaintiff, who was employed by an unincorporated members’ club as a cleaner, sustained injuries when she fell down some stairs, which she was engaged in cleaning, on the club’s premises. In an action for damages for breach by the members of the club of the duty owed by them to the plaintiff at common law to take reasonable care of her safety as an invitee and/or as a servant of the members the plaintiff sued as defendants the assistant honorary secretary and the chairman of the house committee of the club at the material time.

Held – The members of the club had a common interest in resisting the plaintiff’s

claim, and, consequently, it was a proper case for an order under Ord 16, r 9, authorising the defendants to defend the claim on behalf and for the benefit of all the members of the club who were members at date of the accident.

In **Kasozi and ors v UMEME** it was held that that the issue of same interest is one of the key requirements of Order 1 rule 8 (1) *“the expression “same interest” must be distinguished from the expression “same transaction”. What is required under this rule is that the parties must have the same interest; it is not sufficient that their interest arise from the same transaction”*.



It therefore follows that a court that is considering an application for permission to bring a representative action must satisfy itself that the interest of the parties sought to be represented by the applicant(s) are the same as that of the applicant(s).

Maximov Oleg Petrovich v Premchandra Shenoi and Anor.

The issue was whether because the transaction concerned 3 persons, the plaintiff can only bring a representative action and with leave of court,

Held; Order 1 r 8 is properly invoked only where the person suing claims in the plaint the same rights as those he wishes to represent. Since the plaintiff never sued in representative capacity but brought the action in his own benefit, it was not incumbent upon Court to order him to sue in a representative capacity.

- ❖ The interested party must first apply for and should obtain leave of court to sue in a representative capacity;

It was held ***Paulo Kanyima-V-Rugoora (1982) HCB 33***; *that the* Plaintiff must obtain leave of court before filing representative suit under O.1 r.8 of the Civil Procedure.

In Taremwa Kamishani and Ors v The Attorney General.

It was held that the reading of Order 1 r 8 clearly shows that in a representative suit, what is required as authority is an order of court for one or more persons to sue or defend on behalf of all in the same interest..

Per Justice Bashaija

Let me state clearly that where the party obtains a representative order it is sufficient authority to represent himself/ herself and others in the same interest and he or she can swear an affidavit on his or her own behalf and on behalf of the others represented. Conversely, where a party swears an affidavit on his or her own behalf and on behalf of the others without the

others' authority when it is not a representative suit, the affidavit becomes defective for want of authority.



A court order to a party in a representative suit is a mandate for the party to represent itself and the others even without having to seek further authority from the others represented. But where there is no court order and a party swears affidavit on his/ her own behalf and on behalf of others, there is need to obtain the others' authority to prove the capacity in which he or she swears the affidavit.

In Hermezdas Mulindwa and Anor V Stanbic Bank Uganda Ltd.

The plaintiffs sued the defendant in a representative capacity on their behalf and on behalf of 162 other former employees of Uganda Commercial Bank who were retired/retrrenched/terminated in 1994 and who are claiming their unpaid long service awards.” They later amended their plaint. **Court found** that, the first plaint had no Representative Order in place at the time of filing. However it was amended and the amended plaint had a representative order. Since the court was proceeding under the amended plaint which had a representative order attached, it was held that it conformed with the provisions of Order 1 rule 8 (I) CPR.

- ❖ The leave must be obtained before the filing of the suit in a representative capacity.

In Wanjiru v Standard Chartered Bank Kenya Ltd and others [2003] 2 EA 701

The plaintiff had filed a plaint in which she described herself as suing on her own behalf and on behalf of and representing past and present account holders in the first defendant bank. The defendants filed application seeking to strike out the plaintiff's plaint on the ground inter alia that the plaintiff ought to have obtained leave of court before instituting the suit, as it was representative in character.

Mwera J Held – Order I, rule 8 of the Civil Procedure Rules is applicable where a plaintiff brings a representative action. A representative action should have leave of court and/ or direction at the time being filed



In **Hermezdas Mulindwa and Anor V Stanbic Bank Uganda Ltd** court found that there were two complaints, the first one had no Representative Order in place at the time of filing. Court held that the complaint was clearly in contravention of Order 1 rule 8 (I) of CPR and liable to be struck out. However it was amended and the amended complaint had a representative order. Since the court was proceeding under the amended complaint which had a representative order attached, it thereby conformed with the provisions of Order 1 rule 8 (I) CPR. Court cited *Wanjiru Standard Chartered Bank Kenya Ltd Others (2003)* 2 EA 701 where Mweru J. stated:- “It is this court’s view that a representative action should have leave of court or direction and the earlier is when it is being filed.

In Uganda Freight Forwarders Association And Ors V The Attorneygeneral

The objection was that being a group action, the petition was improperly before this court for failure by the petitioners to obtain leave from court before filing it as required by Order 1 Rule 8 (1) of the Civil Procedure

Held

That *although the list of members is attached to the petition, Order 1 Rule 8(1) required the petitioners to first obtain permission from the Court before filing such an action. This requirement is mandatory and applies to Constitutional Petitions as well.*

- ❖ As a matter of procedure, the court ought to insist on the permission prescribed by the rules being obtained before a matter is allowed to be brought out in a representative capacity;

In **Hermezdas Mulindwa and Anor. V Stanbic Bank U Ltd** HCT-00-CC-CS-0426-2004; The judge quoted; *Chitale and Rao in A.I R Commentaries, The Code of Civil*

Procedure 7th Ed Vol. II pages 1896 and 1997 states;

that the obtaining of judicial permission is an essential condition for binding persons other than those actually parties to the suit and their privies, if this essential condition is not fulfilled, the suit is not a representative one. *That as a matter of procedure, the court ought to insist on the permission prescribed by the Rules being obtained before a matter is allowed to be fought out in a representative Capacity.*



Court thus held that the requirement as to permission under the rule cannot be waived.

- ❖ That the application under O.1 r 8 and is by chamber summons with a valid affidavit, summary of evidence and list of persons intended to be represented.

The applicant is required to attach a list of those sought to be represented to the application for leave. Those represented must have signed against their respective names as a sign of consent to be represented.

In Hon. Justice Prof. Dr. G. W. Kanyeihamba & 320 Others V Amos Nzezi & 3 Others , the Plaintiff sought leave of Court to institute a representative suit on behalf of himself and other 320 persons against the Respondents. The other persons were never named, neither was a list showing the 320 other aggrieved members of Kigezi Bank of Commerce annexed to the application.

It was **Held; that**. In a representative action, two steps are essential.

The first is an application under Order 1 Rule 8 and 22 by summons in chambers.

In this application, the Applicant must attach a list of the people he is representing as Plaintiffs.

The second step must be the notification of the people who he represents of the cause of action and the fact that leave has been granted by the Court. The step enables the people he represents to apply to the Court to be made party to the suit if they so wish.

In this case the evidence on record showed that very few of the shareholders were notified of the existence of the suit and even those who were notified rejected the idea

of being Plaintiffs. Those who were not notified, and these formed the majority could not be said to have requested for representation, did not know what was going on and therefore were deprived of the chance to apply to join as parties to participate in the proceedings. This requirement under Order 1 Rule 8(2) is mandatory; since those who attended the meeting rejected and since the majority were not notified, this Court cannot allow that they be bound by the decisions in this case. They are accordingly struck off the pleadings



In **Dr. James Rwanyarare v AG Constitutional petition No.11/1997**

It was held that *Under Order 1 Rule 8(1) of the Civil Procedure Rules, a person may bring a representative action with leave of the trial court. It would have been at that stage of seeking leave, that the first petitioner would have disclosed the identity of those to be represented and whether he had their blessing to do so*

This case was cited with approval in **Kasozi Joseph & Ors v UMEME Ltd HCCS No.188/2010** for the proposition that court cannot accept any argument that any spirited person *can represent any group of persons without their knowledge or consent*. That would be undemocratic and could have far reaching consequences

Taremwa Kamishani and Ors v The Attorney General.

In the instant application, the Applicants obtained the representative order to represent the other over 5000. Notice was duly served on the other Applicants as per the list in the ***“ORUMURI”***

Newspaper of March 19 -25, 2012

held

Order 1 Rule 8(1) CPR is a rule of convenience prescribing conditions upon which such persons when not made parties to a suit may still be bound by the proceedings therein. The question which may arise is in case where a person is made party to a suit without his/her authority or permission. ***Order 1 Rule 10 (2)(supra)*** provides a remedy that court may at any stage of the proceedings, either upon or without the application of either party, order the name of such a party to be struck out.

That where the party obtains a representative order it is sufficient authority to

represent himself/ herself and others in the same interest and he or she can swear an affidavit on his or her own behalf and on behalf of the others represented. Conversely, where a party swears an affidavit on his or her own behalf and on behalf of the others without the others' authority when it is not a representative suit, the affidavit becomes defective for want of authority.



A court order to a party in a representative suit is a mandate for the party to represent itself and the others even without having to seek further authority from the others represented. But where there is no court order and a party swears affidavit on his/ her own behalf and on behalf of others, there is need to obtain the others' authority to prove the capacity in which he or she swears the affidavit.

- ❖ The application is heard by a registrar of the high court, under powers vested by virtue of *Practice Direction No. 1/2002*.
- ❖ The Notice of the order granting the leave and the list must after the grant be advertised in a newspaper. This is a mandatory requirement;
- ❖ The representative order and the list of those represented together with the notice of advertisement must be annexed to the plaint;

In *Kasozi Joseph & Ors v UMEME Ltd* HCCS No.188/2010

The application and the affidavit in support indicated that 50,000 individuals had interest in the suit. That paragraph 4 of the affidavit indicated that the list of 50,000 individuals was attached as annexure "A". That perusal of annexure "A" showed only 19,427 people and the difference between that figure and 50,000 was not indicated.

The application was granted by the registrar and a notice was subsequently run in the

newspaper but without any list of intended plaintiffs.

Held;

Quoted *Mulla , The Code of Civil Procedure, 17th Edition Volume 2*, at page 37 also states that where such a permission has been granted to file a suit in the representative capacity then it is *mandatory to give notice of the institution of suit to all persons interested either by personal service*



or by advertisement as directed by the court and that strict compliance with rule 8 of Order 1 is necessary for a suit in representative capacity.

That Order 1 rule 8 (1) of the CPA has two parts which must be fully complied with. The first part is to do with obtaining permission from court to bring a representative suit and the second is to do with giving of notice of institution of the suit by the court to all such persons, on whose behalf the suit is brought, either by personal service or by public advertisement where the numerous number of persons involved does not permit personal service. It is the court which is mandated to give the notice and it directs how it should be done in each case.

In this case court noted that the list of all such persons should have been advertised in the newspaper so as to enable them respond in accordance with rule 8 (2) of Order 1. That the provisions of Order 1 rule 8 is mandatory and must be fully complied with. No intended plaintiff could be said to have been informed about the intended institution of the suit when no specific name was mentioned.

Court thus found that failure to list the intended plaintiffs whatever their number was contravened the provisions of Order 1 rule 8 and the effect is fatal in that no notice was actually given to them as required by the rules. It was ordered order that all the unnamed plaintiffs, specifically the 50,000 and the 19,427 be struck out of this suit such that the only plaintiffs left are the four who are named in the plaint.

Herman Ssemujju V Attorney General

There was an objection to the petition in that it was submitted that the petition was not properly before the court to the extent that it is partly brought on behalf of the Petitioner himself and on behalf of what the petitioner referred to as **"the oppressed National Freedom Party (NFP) members and other affected Ugandans"**. It was

submitted that the petitioner was not entitled to bring the petition on behalf of the unknown members of his party and the other unspecified **"affected Ugandans"** without their authority or leave of the court to bring a representative action.

Held;



Under Order 1 r 8(1) of the **Civil** Procedure Rules, a person may bring a representative action with the leave **of** the court. It would have been at that stage of seeking leave that the petitioner would have disclosed the identity of those to be represented and whether he had their blessing to do so.

That's the sub-rule requires the petition to be accompanied by a list of documents on which the petitioner intends to rely. That list would have included a list of the names of members of the party and the **"Other affected Ugandans"** he purported to represent and the leave given to bring the representative action. Court agreed with Counsel for the respondent that the petitioner acted unlawfully in bringing the representative action as he did. He could only bring the petition on his own behalf: The groups" petition is accordingly incompetent

In **Ibrahim Buwemba, Emmanuel Sserungoji & Zubail Mwanika for and on behalf of 800 Others V UTODA Ltd HCCS 664/2003 Ibrahim Buwembo; (2) Emmanuel Sserunjogi (3) Zubairi Mwanika for and on behalf of 800 Others v UTODA Ltd HCCS No. 664 of 2003** a notice had also been run without listing the 800 people and the plaintiffs belatedly tried to put an annexure to the plaint. Kiryabwire, J stated that:-

"It would appear to me that the wording of O1 r8 (1) with regard to notice either by personal service or by public advertisement as the court may in each case direct is mandatory. Furthermore, the requirement to give a proper notice cannot be regarded a mere technicality or direction that can be dispensed with. The notice by public advertisement must disclose the nature of the suit as well as the reliefs claimed so that the interested parties can go on record in the suit either to support the claim or to defend against it".

The court noted that trying to attach the list to the plaint was rather belated and the

learned judge made the following observations:-

“How can any of the 800 persons said to be represented (or any of the ones exhibited to the plaint) complain when they have not been served notice with their names being mentioned by way of public advertisement.



Justice Ntabgoba in Tarlogan Singh V Jaspal Phaguda & Others (1997 – 2001)

UCLR 408 at page 410 dealing with a similar issue observed;

*“in my opinion the taking of the steps necessary to enable the Plaintiff institute a suit in a representative capacity is taking the procedure under Order 1 Rule 8 of the Civil Procedure Rule and Order 7 Rule 4 which is rendered in mandatory terms. With respect therefore, the noncompliance with Order 1 Rule 8 and Order 7 Rule 4 cannot be said to be a mere matter of misjoinder or non-joinder. It is a matter that must be complied with and failure to do so comply renders the suit incurably defective. It is therefore my view, **that notice be given to all the parties who will be bound by the resultant decree.** This being a mandatory requirement, any party who is not notified shall not be bound by the results.”*

Wanjiru v Standard Chartered Bank Kenya Ltd and others [2003] 2 EA 701

It was held that then notice of the institution of such suit should go to all interested parties so that whoever of them wants to be joined may appropriately apply. Besides, litigating over a cause one has a common interest/right in, one must also be aware all the time that not only can benefit follow successful litigation but also costs await those who lose.

- ❖ Where a suit is filed in a representative capacity without prior leave of court, the suit is a nullity and should be struck out;

Paul Kanyima Vs Rugoora: The plaintiff a member of an unregistered society sued the defendant on his behalf and on behalf of his fellow members for trespass to land. A preliminary objection was raised. Court found on the fact that this was a representative suit where the plaintiff had not obtained leave of court to sue under O.1 r 8, CPR. **Held:** That this being a representative suit it was mandatory under O.1 r 8 of the CPR for the plaintiff to obtain leave of court before filing it and a suit that

is brought under without leave of court is incompetent and can not be sustained but should be struck out.

In Kiyemba Grace Emmy V Uganda Wild Life Authority

Whether the plaint in this case is fatally defective for being brought on behalf of 176 farmers without first obtaining leave of court.



It was stated that the provisions of O.1 r 8 of the Civil Procedure Rules are, where applicable, mandatory and if not complied with would render the suit incompetent and incapable of amendment. In all representative suits, where O.1 r 8 of the Civil Procedure Rules is applicable and makes it mandatory for the plaintiff to obtain leave of court before filing it and the suit is brought without leave, it will be incompetent and cannot even be stayed but should be struck out as was held in *Henry Kamoga and 5 Others Vs Bank of Uganda, HCCS 62 of 2009*, which followed with approval the holding in *Kayima Vs Lugoora Par Pre Kichumbi Bavista Katwerana Society (1982) HCB 33*.

That with respect therefore, the non-compliance with O.1 r 8 of the Civil Procedure Rules and O.7 r 4 of the Civil Procedure Rules cannot be said to be a matter of mis-joinder or non-joinder. It is a matter that must be complied with and failure to do so renders the suit incurably defective

In Sonko and others v Haluna and another [1971] 1 EA 443. The two plaintiffs sued the defendants and purported to sue on behalf of 21 infants without having obtained a representation order.

Held; in the absence of a representation order the claim on behalf of unnamed plaintiffs could not stand and would be struck out. The plaintiffs having elected to sue in a representative capacity should have proceeded in accordance with the provisions of O. 1, r. 8 (1). The permission of the court not having been granted to the plaintiffs to sue on behalf of the 21 unnamed persons, the plaintiffs' claim is not properly before the court in as far as it purports to be on behalf of those unnamed persons.

In Uganda Freight Forwarders Association and Ors V The Attorney General

The objection was that being a group action, the petition was improperly before this court for failure by the petitioners to obtain leave from court before filing it as required by Order 1 Rule 8

(1) of the Civil Procedure Rules. **(ii) If so, what is the effect of non compliance with Order 1 rule 8?** It was held that the answer to this question is simple and straightforward; such a petition is incompetent and ought to be struck out with costs as was done in the cases of **Dr Rwanyarare**



and Others vs Attorney General (supra) and Herman Ssemuju vs Attorney General,

Constitutional Petition No. 1 of 1998.

- ❖ The requirement to obtain prior leave of court cannot be waived;

Makula International Vs Cardinal Nsubuga: The suit was brought against Cardinal Nsubuga and one Father Kyeyune. On the same day, an application to bring a representative action against the defendant was instituted and this was heard a week later. The defendant sought to strike out the plaint on grounds among others that the suit had been granted by court before the representative order. **Held:** That court ought to insist in all cases on its permission which is the requirement under O.1 r 8 which cannot be ignored hence the present suit was brought prematurely. That a court of law cannot sanction what is illegal and an illegality once brought to the attention of court overrides all questions of pleadings including any admissions thereon.

In **Hermezdas Mulindwa and Anor V Stanbic Bank Uganda Ltd.** It was held *that as a matter of procedure, the court ought to insist on the permission prescribed by the Rules being obtained before a matter is allowed to be fought out in a representative capacity.* That the requirement as to permission under the rule cannot be waived.

- ❖ The rationale for representative suits is avoidance of a multiplicity of suits;

Sonko and Another Vs Haruna Serwanga: The plaintiffs sued in a representative capacity for 21 plaintiffs without obtaining permission of court to do so. A preliminary objection to the effect was raised pursuant to O.1 r8. **Held:** That O.1 r 8 allows representative suits as a matter of convenience to avoid the necessity for encumbering the plaintiff or defendant with the names of many persons and to avoid the necessity

of personal service of proceedings and their personal appearance.

In *British American Tobacco (U) Ltd v Mwijakubi & Others*

It was held that Representative actions are instituted to avoid a multiplicity of legal proceedings over the same subject matter where there are numerous individuals having interest in the same subject matter.



❖ Representative suits are more relevant where there are numerous persons claiming the same relief; *Sonko and Another Vs Haruna Serwanga*: That persons having the same rights of relief arising out of the same act or transaction could elect whether to proceed under O.1 r8 [to be joined as co- plaintiffs or if they are numerous, they apply to court for permission to sue by a representative(s) under O.1r8 (1). That the plaintiff having been elected to in a representative capacity should have proceeded under O.1 r 8 and ought to have sought the permission of court to sue on behalf of the 21 unnamed persons hence the suit would be dismissed.

❖ Representative suits are inapplicable to public interest litigation suits;

This has been largely due to the provisions of **Article 50 clause (2)** which states that “any person or organisation may bring an action against the violation of another person’s or group’s human rights.”

This provision introduces the aspect of an aggrieved party being represented in an action in court.

According to **(Kikungwe Issa & Ors V Standard Bank & ors)**, Justice Kiryabwire stated the requirements that one has to prove that;

- a) that he/she is a citizen of Uganda;
- b) “sufficient interest” on the matter and must not be a mere busybody;
- c) that the issues raised for decision are sufficiently grave and of sufficient public importance;
- d) d. that they involve a high constitutional principle.

In **Kiyemba Grace Emmy V Uganda Wild Life Authority**

The judge addressed the issue of public interest litigation which he defined as *litigation bonafidely instituted for the benefit of the public*. This suit is brought on behalf of persons who

are known and identifiable and therefore cannot be represented except if leave of court is obtained to bring a suit on their behalf who may be aware of their rights but lack financial ability to enforce those rights or those who may not be aware at all about their infringed rights.

The circumstances of this suit shows that the suit is not bonafidely in the interest of the public since it is for the benefit of 176 farmers and on their behalf so the requirements of O.1 r 8 of the Civil Procedure Rules ought to have been complied with. The mere fact that it was stated on the



face of the plaintiff that it is brought under Article 50 does not give an exemption from seeking the representative order. It is not a public interest litigation because one plaintiff is suing on behalf of 176 farmers from Purong Sub-county.

That the plaintiff in this case is fatally defective for being brought on behalf of 176 farmers without leave and a representative order of court.

It is no longer necessary to prove a connection with the represented people or that there should be a common interest. In other words, one needs not to have locus standi to bring an action under A 50 (2). The article is careful to use words “any person” as opposed to “any aggrieved person.” The use of the latter phrase automatically gets rid of the requirement for locus standi.

Effectively, anyone whether affected or not can bring an action under A 50 (2). This was reinforced in **(TEAN-V-ATTORNEY GENERAL AND NEMA)** where court overruled the Attorney General’s objection that the petitioners had no locus standi. The Judge ruled that it was compelling that the Applicant would stand up for the rights and freedoms of others and he would accordingly grant them a hearing. He stated that the interest of public rights and freedoms transcend technicalities, especially as to the rules of procedure leading to the protection of such rights and freedoms.

This position successfully established a shift from the requirements underscored by **(RWANYARARE –V-ATTORNEY GENERAL)** which was based on the earlier position of seeking and naming the people being represented. In addition to that, the requirements for locus standi are contained in an earlier subordinate law, the Civil Procedure Act, they consequently are subjected to a later provision in the Constitution as to the discretionary requirement of locus standi.

It should also be noted that it is no longer a requirement to seek a representation order from the people to be represented, it only requires a spirited citizen to bring an action for those who are less privileged to be spirited. This argument was led in the case of **(BATU LTD -V- TEAN)**, the learned judge in response to the argument that court cannot entertain a matter of unknown plaintiffs on whose behalf a matter is brought had this to say;



“That is my considered view based on the reality that there are in our society, persons and groups of persons whose interest is not the same as the interest of those who Lord Diplock referred to as “spirited” persons or groups of persons who may feel obliged to represent them i.e persons or groups of persons acting in the public interest. To say that our Constitution does not recognize the existence of needy and oppressed persons and therefore cannot allow actions of public interest groups to be brought on their behalf is to demean the Constitution.”

This decision demonstrates the willingness of courts to ignore the requirement of a representative order in matters of public interest litigation.

THIRD PARTY PROCEEDINGS;

- ❖ The general scope of 3rd party procedure is to deal with cases applying all disputes arising out of transactions between the plaintiffs and defendant and third party to try and settle them in one action.
- ❖ The law is that in order that a third party be lawfully joined, the subject matter between the third party and the defendant must be the same as the subject matter between the plaintiff and the defendant and the original cause of action must be the same; *M/S Panyahululu Co. Ltd V M/s New Ocean Transporters Co Ltd. and M/s Sofitra Ltd and Anor. HCT-00-CC-0523- 2006*
- ❖ The defendant should have a direct right of indemnity as such, which right should have, generally if not always arisen from a contract express or implied. *D.S.S Motors Ltd V Afri Tours and Travel Ltd HCT-00-CC-CS-0012-2003*
- ❖ The right to indemnity exists where the relationship between the parties is such that in law and in equity, there is an obligation upon the one party to indemnify the

other. There are cases in which the state of circumstances is such that the law attaches legal or equitable duty to indemnify arising from an assumed promise by a person to do that which under the circumstances he ought to do. *Eastern Shipping Co. Ltd V Quah Beng Kee (1) [1924] AC 177 M/S Panyahululu Co. Ltd V M/s New Ocean Transporters Co Ltd. and M/s Sofitra Ltd and Anor. HCT-00-CC-0523-2006*



- ❖ Where the defendant is sued and he thinks another person is responsible, he may sue the 3rd party by bringing 3rd party proceedings.
- ❖ ***Ronald Kayara vs Hassan Ali Ahmed 1993/ v KALR 63*** – question of whether a defendant should apply for a third party notice.
Held;
A third party Notice under O.1 r14 issues where the defendant claims to be entitled to contribution or indemnity from the Third party. . In the instant case the defendant never claimed anything from the municipal council but it is only the plaintiff who claimed that the council had acted ultra vires or arbitrarily. Therefore it is the plaintiff under O.1 r3 CPR who should have joined the council as a co-defendant. Therefore the learned trial judge misdirected himself to have held that it was the defendant to apply for court's leave to issue a third party notice.
- ❖ NB: There is in effect a separate action between the defendant and 3rd party but for convenience, the 3rd party proceedings are handled in the same proceedings as the main proceedings. **Barclays Bank VS Thom: Held:** That the purpose and effect of 3rd party proceedings is to make that party bound by decisions made between the plaintiff and defendant to save extra expenses and time which will be caused by two separate actions.
- ❖ The object of 3rd party proceedings is to prevent a multiplicity of actions and the procedure is limited to a claim of indemnity and contribution; ***Sango Bay V Dresdenor Bank: Held:*** That the object of 3rd party proceedings is to prevent a multiplicity of acts and the procedure is limited to a claim of indemnity and contribution. Third party proceedings may be instituted by the court. See O.1 r 14 providing that when a defendant claims to be entitled to contribution or indemnity over or against any person not a party to the suit, he may issued a notice to 3rd party with leave of court. This notice has to be served with the plaint on to the 3rd party.
- ❖ The Rules regarding service must be observed under O.5 and 3rd party notice must be accompanied with a plaint; **Obango Vs UTC [1975] HCB, 108:** In case of an accident if an employee of the plaintiff had had an accident and he brought an action against the plaintiff, counsel for the plaintiff and counsel for the employee allegedly entered a consent judgment for the employee for a sum of 300,000=. Thereafter counsel for the employee attached the furniture belonging to the plaintiff and it was discovered that the consent judgment was false, the defendant successfully applied for 3rd party notice to be issued against counsel for the

employee. At the hearing of the third party notice counsel was conspicuously absent and the defendant prayed that court enters judgment against the 3rd party in accordance with O.1 r 16. **Held:** That since the 3rd party had ignored the summons to court, this was a proper case to enter judgment against him and that since it was a fictitious consent judgment entered for counsel for the employee had put the defendant into expenses, he was ordered to indemnify the defendant for the expense.



- ❖ ***Transami (U) Ltd vs Trans Ocean (U) ltd 1994 / 1 KALR 175*** whether third party was liable to indemnify the defendant .

Held; it is settled that in third party proceedings for indemnity to be claimed the cause of action as between the defendant/plaintiff must be the same as between defendant/third party. In the instant case, the plaintiff action against the defendant was for eviction, mesne profits, general damages etc all founded on trespass and yet the defendant's claim against the third party was misrepresentation. These were entirely different causes of action.

Secondly, apart from the causes of action being the same, the right to indemnify the defendant by the third party must have been provided by the original contract either impliedly or expressly. In the instant case, the mere allocation mistakenly of the suit premises did not create an obligation upon the third party to indemnify the defendant.

- ❖ **Scope of Third Party Proceedings: *Total Oil Products Ltd Vs W. Malu*:** The Plaintiff filed a suit against the defendants trading as Ken Service Station. The 2nd, 3rd and 4th defendants then took 3rd party proceedings against the 1st defendant claiming indemnity on ground that they had withdrawn from the partnership at the relevant time and the debt was incurred by the 1st defendant without lawful authority. The 1st defendant counterclaimed a sum of money and the issue was whether 3rd party proceedings extended to a counter claim and set off. **Held:** That 3rd party proceedings in Kenya is narrow in scope than in England and the only question which can be tried in such proceedings is as to the liability of 3rd party to make contribution or indemnity claimed in the whole or in part and any claim arising by way of set off or counterclaim is excluded. ***Macheans Vs Cycles (1902) 1ch 287:***

- ❖ **English scope of 3rd party proceedings:** Cozens hardy L.J. ***Birmingham-V-London (1887) 34 Ch.D 216;*** That the act treats the 3rd party procedure as analogous to a cause instituted by the defendant as against the 3rd party with the consequence that the defendant may defend himself in any way in which any defendant in an action at the suit of a plaintiff may defend himself among which modes of defence is indicated the mode of a counterclaim. ***CF Total Oil-V- William (1966) EA 165/4 M/S Panyahululu Co. Ltd V M/s New Ocean Transporters Co Ltd. and M/s Sofitra Ltd and Anor. HCT-00-CC-0523-2006***

- ❖ The plaintiff and defendant must be the same as the subject matter between the defendant and 3rd party and the original cause of action must be the same. **Walusimbi Vs A-G:** The plaintiff sued the A.G. claiming damages for negligence. The A.G. applied ex parte for a 3rd party notice to be issued and served on to one M pursuant to O.1 r 14, CPR. M also implicated Y and the A.G. applied for and served the 3rd party notices on Y but counsel for Y asked for 3rd party notices to be set aside on grounds that the cause of the claim against Y was different from those between the plaintiff and defendant. **Held;** That in order that a 3rd party to be lawfully found the subject matter between the plaintiff and defendant must be the same as the subject matter between the defendant and 3rd party and the original cause of action must be the same. As the



plaintiff was suing for negligence against the defendant, the 3rd party notices alleging fraud should be set aside.

- ❖ **Appearance of 3rd Parties:** O.1 r 18 provides for appearance of 3rd parties for directions. Where the 3rd party filed a defence the defendant who gave 3rd party notice may apply to court for directions as to questions on how the issues between him and the 3rd party are to be tried and the 1st question is whether there is a question for trial between the 3rd party and defendant and the onus is on the defendant to prove that there is a question of liability on the defendant by the 3rd party [*defendant admits that he is liable but it is the 3rd party to pay*].

Inter Pleader Proceedings:

- ❖ Proceedings refer to situation where two or more persons claims or finds in the hands of a 3rd person and he has no claim to it but is ignorant as to which of the parties is rightly entitled to it and such a person may take out inter pleader proceedings.

- ❖ S. 59 CPA provides that where two or more persons claim adversely to or another the same debt, sum of money or other property movable or immovable from another person who claims no interest therein other than for searches and costs and who is ready to pay or deliver it to the rightful defendant, such other person may institute a suit of inter pleader all claimants.

- ❖ **Conditions:** The applicant must satisfy court (in an affidavit) that:

- He claims no interest in the subject matter
- There is no collusion between the applicant and any of the claimants
- That the applicant is willing to pay the value of the subject matter in court.

- ❖ ***Re; Messrs Katende Sempebwa Experts 1996 / 1 KARL 48*** originating inter-pleader summons S (59) CPA the conditions for issue of summons in inter pleader proceedings. ***See; Standard Chartered Bank (U) Ltd V Gapco U Ltd and Barclays Bank PLC HCT-00-CC-MA-0049-2007***

- ❖ ***Famous Cycle Agency Ltd and Ors vs Manshulular Ranji and Ors 1994 V KALR 58*** – inter pleader adverse claims for rent by different landlords, whether procedure was by inter – pleader.

❖ **Pending Suits:** *Sergeant V Gautama (1968) EA 338*; The applicant was plaintiff in a suit as part of which 100= was paid to the respondent who was one of the applicant's advocates. The payment was made by one of the other parties to the suit by a cheque drawn by a company of which the party was a company director. Thereafter disputes arose as to the term of office and conditions under which the money should be paid. After much correspondences applicant brought a suit against the respondent claiming the money. The executors of the estate of the director claimed to have paid the money to the respondent who denied it. The respondent brought an inter pleader application.**Held:** That this was a proper case for inter pleader proceedings, there being adverse claims to the same sum of money. *Expert and Misery Docks [1981] 1 KB*



❖ Where there is a pending suit, such suit must be dealing with the same subject matter as claimed in the interpleader application; *Standard Chartered Bank (U) Ltd V Gapco U Ltd and Barclays Bank PLC HCT-00-CC-MA-0049-2007*

❖ **Procedure for Inter Pleader Proceedings:** O. 34 r 1 provided that inter pleader proceedings may be instituted where no suit is pending by originating summons and where there is a suit, by motion. *Standard Chartered Bank (U) Ltd V Gapco U Ltd and Barclays Bank PLC HCT-00-CC-MA-0049- 2007*

AMICUS CURIAE

- The Supreme Court of Uganda in **Amama Mbabazi v Museveni and Electoral Commission** Civil Application No 02 of 2016 adopted the definition given by Black's Law Dictionary 9th Edition at page 98 to define the term amicus as “a person who is not a party to a lawsuit but who petitions the court or is requested by the court to file a brief in the action because that person has a strong interest in the subject matter.”
- In **Edward Frederick Sempebwa v. Attorney General**⁴, the High Court adopted the definition given by Osborn's Law Dictionary, 6th Edition to define the term thus: “One who calls the attention of the court to some question of law or fact which would appear to have been overlooked.”

❖ Amicus curiae is one who a bystander, where a judge is doubtful or mistaken in a matter of law, may inform court *Re Nakivubo Chemists [1977] HCB 311.*

❖ An amicus curiae must be invited by the court; *Attorney General Vs Silver Springs Hotel Ltd and Others:* Mr. Kayondo wanted to be amicus curiae on grounds that his clients instant were involved in the case and by being notified of the hearing date by the registrar he was invited. **Held:** Amicus Curiae is invited by court and he should be a person with out an interest in the case. Mr. Kayondo was not invited and was an interested party who did not qualify.

- However; In **Civil Application No 02 of 2016** the Supreme Court of Uganda

overruled its earlier position in **Attorney General v Silver Springs Hotel and Others**,⁵ which required that an appearance by amicus curiae had to be at the invitation of court and not by

⁴ Miscellaneous Application No. 90/86

⁵ Supreme Court Civil Appeal No. 1 of 1989



application of a party seeking the status and held that the court can be moved by applicants seeking to be amicus curiae. The court further laid down the principles to be followed in determining the admission of amicus curia, which include the following:

- a) *Participation of amici is purely at the discretion of the court.*
- b) *Amicus curiae can be important and relevant in matters where court is of the opinion that the matter before it requires some kind of expertise which is in the possession of a specific individual*
- c) *The ultimate control over what the amicus can do lies exclusively with the court*
- d) *The amicus must be neutral and impartial*
- e) *The submissions must be intended to give assistance to the court it would not otherwise enjoy*
- f) *Limited engagement with matters of the law*
- g) *Submissions draw attention to relevant matters of law useful, focused and principled legal submissions not favouring any of the parties*
- h) *The amici must have valuable expertise in the relevant area of law and general expertise in law does not suffice.*
- i) *The points of law to be canvassed should be novel to aid development of jurisprudence*
- j) *The participation must be in the wider interest of public justice.*
- k) *The interest of the amici is its fidelity to the law*
- l) *An amicus should address court on points of law not raised by the parties but is of concern to the court.*
- m) *Remind the court of legal matters which have escaped the court that may cause a wrong interpretation of the law*
- n) *An amicus shall not introduce new/fresh evidence*
- o) *Where, in adversarial proceedings, parties allege that a proposed amicus curiae is biased, or hostile towards one or more of the parties, or where the applicant, through previous conduct, appears to be partisan on an issue before the Court, the Court will consider such an objection by allowing the respective parties to be heard on the issue;*

p) The court will regulate the extent of amicus participation in the proceeding to forestall the degeneration of amicus role to a partisan one.



q) Whereas consent of the parties to the proposed amicus role is a factor to be taken into consideration, it is not the determining factor. Furthermore, objections raised by the parties is a factor to be taken into consideration but is not the determining factor.

❖ At common law, a court has inherent power to invite an amicus curiae when it considers it desirable. Such person ought not to be interested in the matter at hand except, perhaps the AG ***Re Nakivubo Chemists [1977] HCB 311.***

❖ A party with an interest in the subject matter of the suit cant be an amicus curiae but may either apply to be joined as a party or stay in court watching brief ***Re Nakivubo Chemists [1977] HCB 311***

❖ The court has a wide discretion to ask for assistance of an amicus curiae if it considers of justice would be served ***Dritoo Vs West Nile District Administration:*** The plaintiff had been unlawfully arrested and incarcerated by the Defendant's policemen. The defendant denied responsibility In the proceedings the court called in the Solicitor General to stand in Amicus Curiae as he would help court come to a correct and just decision.

❖ ***Kayondo Kakungulu Vs Kakooza:*** In a suit to contest the administration of the estate of the late Badru Kakungulu, the Administrator General was called in stand in as Amicus Curiae.

THE LAW GOVERNING PLEADINGS IN UGANDA.

Pleading is defined to mean and include any statement of claim, defence, or reply thereto. Other examples include a counter-claim and a reply to a counter-claim. The modes of commencing a suit require specific pleadings, i.e. notice of motion, originating summons, specially endorsed plaint, chamber summons, ordinary plaint, and petition, among others. In terms of defence in the aforementioned pleadings, the relevant pleadings for defendants/respondents will include a WSD, counter-claim and an answer to a petition.

S. 2 CPA defines “pleading” to include any petition or summons, and also includes the statements in writing of the claim or demand of any plaintiff, and of the defence of any defendant to them, and the reply of the plaintiff to any defence or counterclaim of a defendant;

Reliable Trustees Ltd & 3 Ors v George F. Sebeguya defines what pleadings are.

- It is a requirement of the law that pleadings must be drafted to include all material particulars to afford the adversary party a fair opportunity to respond to the allegations.

Peter Bakaluba Mukasa v Betty Nambooze. The affidavit of the respondent supporting the petition did not contain detailed particulars of the allegations of bribery or illegal practices contained in the petition. The Supreme Court agreed with the view in *GANDY –Vs- CASPAR AIR CHARTER LIMITED* that the object of pleadings is to ensure that both parties shall know what are the points in issue between them, so that each may have full information of the case he has to meet and prepare his evidence to support his own case or to meet that of his opponent.

- Pleadings must therefore be drafted with caution and all the relevant particulars including the dates must be set out therein.

Tororo Cement Co. Ltd v Frokina International Co. Ltd. Tsekooko, JSC held that it is not simply enough to show a cause of action. Particulars must be given in the plaint showing precisely in what respect the defendant is liable under the reliefs sought. Whether a plaint does or does not disclose a cause of action is a matter of law which can be raised by the defendant as a preliminary point at the commencement of the hearing of the action even if the point had not been pleaded in the written statement of defence. Particulars of a suit cannot be inferred from the evidence of the plaintiff,

but must be disclosed in the pleadings. The importance of this is to assist parties in framing issues as well as in avoiding surprises which are bound to happen if particulars are merely introduced as an intrusion during trial at the time evidence is adduced. A party must know the specifics of what the opposite party seeks to rely on.

This case quoted **Auto Garage & Another Vs. Motokov (No.3) (1971) EA. 514,** **where** the plaintiff disclosed a cause of action. Mpagi-Bahigine, JA; in her lead judgment first correctly stated that:



"Particulars of negligence must therefore be given in pleading showing in what respects the defendant was negligent. The plaintiff ought to state facts upon which the supposed duty to plaintiff is founded, and whose breach the defendant is charged with. Then should follow an allegation of precise breach of that duty of which the plaintiff complains and lastly particulars of the damage sustained"

A cause of action was defined; if a plaintiff shows that the plaintiff enjoyed a right, that the right has been violated and that the defendant is liable, then a cause of action has been disclosed

Okot Ayere Olwedo Justin v A.G.

HELD; A cause of action means every fact which is material to be proved to enable the plaintiff to succeed or every fact which, if denied, the plaintiff must prove in order to obtain judgment; It is trite that in considering whether or not the plaintiff discloses a cause of action, the court only considers the pleadings and anything attached thereto. A summary of what constitutes a cause of action can be seen from the particulars of the case. *It is important that particulars be pleaded early so as to assist in the framing issues as well as in avoiding surprises which are bound to happen if particulars are not disclosed. A party must know the species of the case which the opposite party seeks to rely on.* What is important in considering whether a cause of action is revealed by the pleadings are the questions whether a right exists and whether it has been violated

In Interfreight Forwarders (U) Ltd v EADB

held; The system of pleadings is necessary in litigation. It operates to define and deliver it with clarity and precision the real matters in controversy between the parties upon which they can prepare and present their respective cases and upon which the court will be called upon to adjudicate between them. It thus serves the double purposes of informing each party what is the case of the opposite party which will govern the interlocutory proceedings before the trial and which the court will have to determine at the trial

- It is also a requirement that pleadings must be exchanged between the parties so that the matters in contention are brought to their attention and that of court.

MotorCare U Ltd v A.G

Held; It is trite that the object of pleadings is to bring the parties to a clear issue and

delimit the same so that both parties know before hand the real issue for determination at the trial.

Order 6 Rule 1 provides that, *“every pleading shall contain a brief statement of the material facts on which the party pleading relies for a claim or defence, as the case may be.”*



The Law on Exchange and Closure of Pleadings.

- In view of Art. 28 of the Constitution, a fair hearing dictates that parties must have adequate notice of the claims against them to enable them defend themselves appropriately. However, failure to include some facts in the plaint will be excused by court, if it appears to both parties to be an irregularity that does not go to the core of the case.

Peter Bakaluba Mukasa v Betty Nambooze.

In the peculiar circumstances of this case it is to be noted that the Petitioner did state in her own affidavit that she would rely on the affidavits of other persons who had witnessed the bribery.

Court quoted Oder, JSC (RIP) in ***Uganda Breweries Ltd –Vs- Uganda Railways Corporation*** [2002] 2 E.A. 634, where he elaborated on the issue of departure from pleadings and what the test is in determining whether a complaint should be allowed to succeed. He put it thus at page 643:

“To my mind, the questions for decision under ground 2(i) of the appeal appears to be whether the party complaining had a fair notice of the case he had to meet; whether the departure from pleadings caused a failure of justice to the party complaining; or whether the departure was a mere irregularity, not fatal to the case of the respondent, whose evidence departed from its pleadings.

The court then Held; *Where there is irregularity in pleadings or a departure from pleadings, but as long as the opposite party has fair notice of the case he has to answer and he does answer it and adduces evidence accordingly, and has not suffered injustice, the court will not allow such irregularity or departure to frustrate the determination of the case.* In this appeal, bearing in mind the principles involved under the concept of fair hearing and trial, *given that the appellant did have fair notice of the case which he duly responded to, the irregularity of not putting the particulars of bribery in the body of the respondent’s affidavit did not unduly prejudice the appellant in any way.* In regard to Article 126 (2) (e), such a party cannot claim lack of a fair hearing when he had fair notice of the case which he duly responded to and suffered no prejudice. In the peculiar circumstance of this case, it would defeat justice to hold that a case that had gone through a full trial be defeated by a technicality particularly when the appellant did not raise that technicality before, and there is no evidence that he suffered any prejudice I find no basis to find that there was a denial of his right of fair hearing.

- The general rule is that parties are bound by their pleadings and cannot depart therefrom except by way of amendment.

Interfreight Forwarders (U) Ltd v EADB. Held; Issues are formed on the case of the parties so disclosed in the pleadings and evidence is directed at the trial to the proof of the case so set and covered by the issues framed therein. *A party is expected and is bound to prove the case as alleged by him and as covered in the issues framed. He will not be allowed to succeed on a case*



not so set up by him and be allowed at the trial to change his case or set up a case inconsistent with what he alleged in his pleadings except by way of amendment of the pleadings.

In ***Mithcell Cotts v Peter Mulira***, where the applicant made submission on alleged fraud based on new particulars that were not pleaded in the original plaint and the same plaint had never been amended. Court **held** that such a submission was misconceived as the particulars of fraud relied upon were not at all pleaded either in the original plaint or through an amendment. It is now a settled principle of law that a party is not allowed to succeed in a case not pleaded.

However, in ***Sebunya v UCB [1992-3] HCB 224***, Tinyinondi J. held that Amendments to pleadings sought before hearing should be freely allowed if they can be made without prejudice to the other side, and there is no injustice if the other side can be compensated by way of costs. 'The court would not refuse to allow an amendment simply because it introduced a new cause' of action but there was no power to enable one cause of action to be substituted for another, nor change, by means of amendment, the subject matter of the suit.

- Because of the aforementioned rule that parties are bound by their pleadings, it is a requirement by law that such pleadings must be exchanged between the parties so that the adversary and court have notice of the issues to be determined.

Kasule Vs Makere University [1975] HCB 376:

The plaintiff was assaulted by the MUK askaris and in a suit against the university he was awarded exemplary damages yet he had not prayed for it in the pleadings.

Held: Per curium: The system of pleadings is designed not only to define with clarity and precision the issues on questions which were in dispute between the parties but also to fulfil some of the fundamental principles of natural justice. The aim that each party should have a fair and due notice of what case he has to make, that each party should have a reasonable opportunity of answering the claim or defence of his opponent and that each party should have a reasonable opportunity of preparing and presenting his case on the basis of issues disclosed in the pleadings and no others. Exemplary damages, not pleaded were wrongly awarded.

- Pleadings can only be exchanged if they are duly filed within the timelines set out under the law.

The process of filing and exchanging pleadings is therefore regulated by the Civil Procedure Rules and default thereof may attract the relevant consequences prescribed by the rules.

1. Pleadings must be filed within the limitation period prescribed by law, otherwise the suit will be deemed to be time barred.

WHR Wanyama v KCC. In this case, the applicant negotiated past the 6 year limitation period. He then sued. The case was dismissed. Court fortified the principle that *the offer to negotiate terms of a settlement between the parties to an action has no effect whatsoever on when to serve*



a statutory notice or file an action. It is incumbent on those who need to file documents to do so in time. Failure to file an action or pleadings in time is fatal.

2. When pleadings are filed, summons must be extracted for service on the defendant or respondent.

Section 20 of the Civil Procedure Act provides that, *where a suit has been duly instituted, the defendant shall be served in the manner prescribed to enter an appearance and answer the claim.*

Order 5, Rule 1 provides the mode of service of summons on the defendant.

Craig v Kanssen: CA 1943. In this case, there had been a failure to serve process where service of process was required. The result was that the order made based upon that process was irregular. Court held that *there is an inherent jurisdiction to set aside a determination made where there has been a failure to observe the principle that a person against whom a charge or claim is made must be given a reasonable opportunity of appearing and presenting his or her case.*

Mbabali Jude v E.C ;held;. Service of the petition is a statutory requirement. Therefore, non- service means that the petition is not properly before court, and so ought to be dismissed. This statutory requirement stems from the legal maxim that a party should not be condemned unheard.

MUGENI GEOFFREY v OUMA ADEA GEORGE

Held; One sees that the rules go out of the way to ensure that summons is served on the defendant. The reason stems from the legal maxim that a party should not be condemned unheard. The Court of Appeal dealt with the object of service of process in *Besweri Lubuye Kiwanuka v. Electoral Commission & Daniel Kokoola* EPA No. 2 of 1999, and stated that this is; ‘To give notice to the party on whom it is made so that he or she might be aware of and be able to resist that which is sought against him and where that has been done so that the court might feel perfectly confident that service had reached him and that everything had been done that could be required.

3. Where the defendant is not served by virtue of the failure of the plaintiff to extract summons, the suit is liable to dismissal. O 9 R 16
4. Summons together with the pleadings must be served on the defendant within 21 days from the date of issue. Order 5 Rule 1(2, 3), and Order 5

Rule 2. Failure to serve summons or serving in a manner that contravenes the rules is a serious matter of procedural impropriety and it will render the suit a nullity.

Valery Alia v Alionzi John. Court held that a suit cannot proceed without an affidavit of service on the court record as envisaged by rule 5 of order 9 of the Civil Procedure Rules. In the same



vein, non-compliance with order 5 rule 2 of the Civil Procedure Rules renders the proceedings an irregularity.

Stop & See U Ltd v Tropical Africa Bank. Justice Madrama buttressed the position that summons should be served on a defendant within 21 days from the date of issuance. Where there is no objection to jurisdiction under order 9 rule 3 of the Civil Procedure Rules, order 8 rule 1 (2) requires a defendant to file his or her defence within 15 days from the date of issue of summons. Where no counterclaim is filed together with the defence to the plaint, order 8 rule 18 (1) of the CPR provides that a plaintiff is entitled to file a reply to the defence within fifteen days after the defence or last of the defenses has been delivered to him or her, unless time is extended.

- Where the 21 days lapse before summons and pleadings are served, the plaintiff may apply for extension of time within which to serve. The application must be filed within 15 days from the lapse of the 21 days. Where no application is made for extension of time or if made it is dismissed, the suit stands dismissed without notice and pleadings are closed.

Frederick James Junju & Anor v Madhivan Group Ltd. In this case, the application was signed and sealed by the Registrar on 22.07.2015 but was only served on the 1st Respondent's Counsel on 20.8.2015 which was way outside the time stipulated under Order 5 r. 1(2) CPR, which requires that service be effected on the opposite party within 21 days from the date the summons is issued. The applicant did not invoke the exception in the provisions under Order 5 to apply for extension of time within 15 days from the expiry of the initial time stipulated for the service. Court held that, *failure to abide by Order 5 Rule 1 inevitably locked the applicants out of the only options available under the law for service of their application. Therefore, the service of the application upon the Respondent's Counsel outside the time prescribed by law for such service without applying to court for the extension of time within which to serve the application rendered the application incompetent before court.*

- Where a defendant is served with the pleadings of the plaintiff in an ordinary suit, such defendant has an obligation to enter appearance and must do the following;
 1. The defendant must file a WSD in the court where the main suit is pending.

Pinnacle Projects Ltd v Business in Motion Consultants Ltd. The applicant went to court seeking relief under Order 36 Rule 11. He had filed an application for leave to defend in a summary suit, but filed in the Civil Registry, instead of the Commercial Registry. Judgment decree was entered ex parte. He then wrote to the Registrar to

transfer the application for leave to defend from Civil to Commercial Registry, and argued that the same was filed in the Commercial Registry in time. Court found that this was wrong since a WSD is supposed to be filed in the court where the main suit is pending. The applicant should have first applied for extension of time within which to file the application as it was already out of time, and the decree that the application sought to set aside was properly passed since there was no pending competent application for leave to appear and defend the summary suit.

Attorney General & Uganda Commercial Bank v Westmont. Westmont was served through its advocates with the summons to enter a defence under Order 9 rule 1 but never filed any defence.



However, they later applied to court seeking a stay of proceedings in the same suit where no WSD had been filed. Ntabgoba, P.J struck out the applications with costs holding that the applicant was without a defence since they never filed a WSD. And since Westmot never even bothered to apply for more time within which to file a late defence, a default judgement in favour of the UCB & A.G against them was entered. *The defendant should have filed a W.S.D. within the provisions of Order 9 rule 1 of the new Civil Procedure Rules. That entering of the defence could only be valid if it was filed in the time prescribed by law. But the applicant/ defendant could have applied to court for extension of time within which to file a defence.*

- The WSD must be filed within 15 days from the date of service, save where the defendant is the Attorney General, in which case the defence has to be filed within 30 days from the date of service. O8 R1 & 2 CPR, Rule 6 of the Government Proceedings Rules.

Mark Graves v Balton (U) Ltd. The filing of a WSD is not a waiver by the defendant of any irregularity in the summons or service of the summons or in any order giving leave to serve the summons out of the jurisdiction or extending the validity of the summons for the purpose of service. The filing of a defence is clear and sufficient notice to the plaintiff that the defendant is not only intending but is defending the proceedings against him. Logically the requirement for notice of intention to defence cannot arise where a defence has already been filed. For a defendant to apply under rule 3 of Order 9 CPR he does not require to have filed a defence first provided he gives notice of his intention to defend the proceeding prior to the filing of the application and does so within the time limited for service of a defence. It is not conditional that the Applicant must have filed a defence prior to filing the application though he/she may opt to file a defence.

Attorney General v Ssendendo (1972) E.A, 356. The respondent sued in the High Court for damages for injuries caused him by soldiers. No defence was filed for the appellant and counsel for him did not take advantage of an offer to consider an application to file a defence out of time. The appellant appeared for hearing and wanted to cross examine the witnesses. The judge directed him to first apply for extension of time and file a WSD in order to have locus since a defendant who fails to file a defence puts himself out of Court and no longer has any locus standi and cannot be heard. Counsel for the appellant cited r. 6 of the Civil Procedure (Government Proceedings) Rules but the trial judge held that r. 6 had no application as the respondent was not applying for judgment in default. The judge ruled that he had thereafter no discretion to allow the appellant to take part in the proceedings, and,

after finding for the respondent, awarded him aggravated damages of £10,000. A.G appealed. While dismissing the appeal, court held that;

(i) *Judgment in default of pleading by the government is prohibited* but not judgment after hearing;

(ii) The court has a discretion whether to allow a defendant who has filed no defence to be heard, but in the circumstances the discretion would not have been exercised in favour of the appellant.



Stop & See U Ltd v Tropical Africa Bank. **Held;** Generally time is reckoned from the time of filing of a plaint and the issuance of summons by the court. A summons should be served on a defendant within 21 days from issuance. Where there is no objection to jurisdiction under order 9 rule 3 of the Civil Procedure Rules, order 8 rule 1 (2) requires a defendant to file his or her defence within 15 days from the date of issue of summons. The defendant may file a counterclaim with his or her defence and this affects the timelines for the filing of pleadings.

Where no counterclaim is filed together with the defence to the plaint, order 8 rule 18 (1) of the CPR provides that a plaintiff is entitled to file a reply to the defence within fifteen days after the defence or last of the defenses has been delivered to him or her, unless time is extended.

Thereafter, no pleading subsequent to the reply of the plaintiff to the defence shall be filed without leave of court. These rules apply with equal force to interlocutory applications. A reply or defence to an application has to be filed within 15 days. Failure to file within 15 days would put a defence or affidavit in reply out of the time prescribed by the rules. Once the party is out of time, he or she needs to seek the leave of court to file the defence or affidavit in reply outside the prescribed time. The practice of legal practitioners is to file an affidavit in reply at pleasure. This has to be discouraged. Article 126 (2) (e) of the Constitution was not meant to erase the Civil Procedure Rules. It is not a substitute for any of the rules.

- The WSD must not constitute a bare denial but must constitute facts that give rise to a reasonable defence to the claim.

Nile Bank Ltd v Thomas Kato. The Plaintiffs, Applicants in this matter, filed a suit against the Defendants/Respondents seeking damages for alleged breach of a contract of sale. The Defendants filed a statement of defence denying all the Plaintiffs allegations in the plaint. By notice of motion, the Plaintiffs applied under Order 6 Rule 29 *Civil Procedure Rules* to Court to have the Defendants written statement of defence struck off on grounds that it did not disclose a reasonable answer to the Plaintiffs claim. **Arach Amoko, J held** that the defence filed by the defendants contained general denials to the plaintiffs' allegations, and did not give clear and specific responses to the plaintiffs' allegations. It thereby offended the provisions of Order 6 rule 7 *Civil Procedure Rules*, which requires each party to specifically deal with each allegation of fact that is denied.

Francis Sembuya v Allports Services U Ltd. At trial, counsel for the appellant applied under 0.6

r.29 of the Civil Procedure Rules and asked the court to strike out the defence of

Kamanyi (then co-defendant with the current appellant) on the ostensible ground that the defence was frivolous and vexatious. The application was granted. The reasons for referring to that defence as frivolous and vexatious are because in his defence Kamanyi admitted liability. The **Supreme Court held** that the application to strike out Kamanyi's defence and the order striking it out lacked a sound basis. The plaintiff should have instead asked for judgment to be entered against Kamanyi because of the provisions of 0.11 r. 6 of the Civil Procedure Rules, which empower a trial Court to, inter alia, enter judgment against a defendant who admits liability in his defence.

- The requirement of the law is that in addition to a denial of the plaintiff's allegations, the defendant must plead material facts constituting his defence.



Byabashaija v A.G. ; held; Under 0.6.rr 7 and 9 of the CPR a party who denies the pleadings of the opposite side is required to do so specifically. He must deal with each allegation of fact which he disputes to show therein any defence which he might have. This will lay for him a foundation for calling evidence to support the defence he has raised. In the circumstances where *material facts are not pleaded by the defendant in WSD, such a defendant is not entitled to call any evidence to set up any defence because this will take the plaintiff by surprise.* The rule of the game is fair play and not by ambush of the opposite side. In this case, the WSD of the defendant was couched in a general denial without raising any defence and so could not be accepted by court.

Joshi v Uganda Sugar Factory Ltd [1968] 1 EA 570

The plaintiff (appellant) in a running-down case alleged in his plaint that the accident in which he was injured by the defendant's (respondent's) tractor occurred "at about 7.45 p.m."; and also alleged that the driver of the tractor was negligent in that, *inter alia*, he drove the tractor without effective lighting and failed to slow down or stop when his view ahead was obscured due to darkness. The defendant in his defence stated "the defendant does not admit that the collision occurred at 7.45 p.m. as alleged"; and went on to allege contributory negligence by the plaintiff but without any reference to lights. The plaintiff applied for further and better particulars of what time the defendant alleged that the accident took place. The defendant refused to supply this, claiming amongst other things that his "non- admission" was not a denial and that it was for the plaintiff to prove his allegation without any amplification from the defendant.

Held;

i..a refusal to admit is for all practical purposes the same as a denial;

"As a general rule, the court never orders a defendant to give particulars of facts and matters which the plaintiff has to prove in order to succeed, and this is especially the case where a defendant has confined himself to putting the plaintiff to the proof of allegations in the statement of claim, the onus of establishing which lies upon him."

The court will, however, order a defendant to furnish particulars where he is making positive averments and will also exercise its discretion to order particulars where it believes that by so doing it will narrow the issues and avoid surprise, and so reduce expense.

In this case; (ii) the refusal to admit did not amount to a positive averment; there was not likely to be any question of surprise; and the denial was not evasive; therefore particulars should not be ordered.



- A WSD must be accompanied by a summary of evidence, summary of evidence, authorities and witnesses. O6 R2.
- A WSD attracts court fees which must be paid and the same is deemed to be filed when lodged in the relevant registry of the court.

Okot Ayere Olwedo Justin v A.G.

HELD; For avoidance of doubt, *a suit is not regarded as duly instituted or filed against the Attorney General, and indeed against any other party, until it is received by court in the Court Registry, which acknowledges this by stamping it with the court stamp (usually a “received” stamp); and endorses as well as inserts a date on which the documents were received. Thereafter, a file is opened, is assigned a case number, and is entered in the Court Register. Even though this exercise appears purely administrative in nature, it is invariably important as the formal initiation of the court process that signifies the actual time on which an action is considered filed, and proceedings commenced for purposes of limitation of actions.*

O9 R1 on filing of defence.

A defendant on or before the day fixed in the summons for him or her to file a defence shall file the defence by delivering to the proper officer a defence in writing dated on the day of its filing, and containing the name of the defendant’s advocate, or stating that the defendant defends in person and also the defendant’s address for service

- Where no defence is filed despite service, the defendant is deemed to have ousted himself from the jurisdiction of the court, and the suit will proceed accordingly.

Efulaim Kasiwukira v Samuel Serunjoji. In this case, the Defendant did not file any defence though he was served by substituted service as per court order. A default judgment was then entered. Court relied on order 9 rule 11(2) of the CPR to the effect that where the time allowed for filing a defence has expired and the Defendant has failed to file his or her defence, the Plaintiff may set down the suit for hearing *ex parte*. As such, the Defendant will not be allowed to participate in the proceedings though he or she may be present in court. Where a defendant is served with summons and failed to enter appearance, he/she is by that failure deemed to have put

themselves out of court and have no *locus standi*. Where the Defendant has not filed a defence on or before the date fixed in the summons, the suit may proceed as if he had filed a defence.

Ssetuba Misairi v The Registrar of Titles. Here the Respondent did not file any affidavit in reply though he was served with both the application and the hearing notices, as per the affidavits of service on the court record. The Respondent did not also appear at the hearing of the application.



Held; A party who has not filed a defence is deemed to have admitted the allegations. The application was therefore heard *ex parte* on the application of the Appellant.

O 9 R 11(2) ;

Where the time allowed for filing a defence or, in a suit in which there is more than one defendant, the time allowed for filing the last of the defences has expired and the defendant or defendants, as the case may be, has or have failed to file his or her or their defences, the plaintiff may set down the suit for hearing *ex parte*.

- Where the time for filing a defence has lapsed, the defendant must apply for extension of time within which to file the defence or within which to validate the defence filed out of time. The application is made under O 51 R 6 CPR, S. 96 & 98 CPA, & O52 CPR which provides for the procedure by notice of motion.
- The applicant must demonstrate that their failure to file a defence resulted from sufficient cause.

Robert Opio & Anor v Edward Kabugo Ssentongo. This was an application under o51r6 by Robert Opio and the Registrar of Titles, the 2nd and 3rd Defendants in Civil Suit No. 166 of 2002, seeking an extension of time within which to file an Amended Defence to an Amended Plaint. In the main suit, the first applicant (then defendant) had been transferred from Ministry of Lands and therefore could not access the relevant file to prepare a defence. For the second applicant (2nd defendant in the main suit), it was contended that the amended plaint had not been served on her, and she only became aware of its existence from the first applicant. As such she was also not able to file her defence in time. **Court granted** the application to extend time within which to file an amended defence to the amended plaint, with the view that sufficient reasons as to why the Amended Written Statement of Defence was not filed in time had been shown by the applicants.

Godfrey Magezi & Brian Mbazira v Sudhir Ruparelia. This was an application by Notice of Motion seeking extension of time within which to file an appeal out of time against the decision of the Court of Appeal in Civil Appeal No. 61 of 1999. The application further sought an order that the filing of Civil Appeal No. 16 of 2001 out of time against the decision of the Court of Appeal be validated. Reasons for the application were the inadvertence, error and omission by the former counsel upon whom instructions had consequently been withdrawn. The other supporting reason

was that the applicants had already paid 520,000shs as the due fees for Supreme Court Civil Appeal No. 16 of 2001 which had been filed out of time.

Held; *It is now settled that omission or mistake or inadvertence of counsel ought not to be visited on to the litigant, leading to the striking out of his appeal thereby denying him justice. An application for extension of time where there is a mistake or error or misunderstanding of the applicants' legal advisor, even though negligent may be accepted as a proper ground for granting relief. Further, errors/mistakes of court officials can be sufficient grounds for granting*



extension of time to the applicant to file his or her appeal out of time. Time was therefore extended and the already filed appeal was validated.

- The defendant who wishes to set up a counter-claim is allowed to file a WSD to the counter-claim. O8 R7 & 8. Where in the counter-claim the defendant includes any other party who was not party to the original suit such defendant must set out a new title for the counter-claim.

Order 8 Rule 7; Where any defendant seeks to rely upon any grounds as supporting a right of counterclaim, he or she shall, in his or her statement of defence, state specifically that he or she does so by way of counterclaim

Rule 8; Where a defendant by his or her defence sets up any counterclaim which raises questions between himself or herself and the plaintiff together with any other persons, he or she shall add to the title of his or her defence a further title similar to the title in a plaint, setting forth the names of all the persons who, if the counterclaim were to be enforced by cross-action, would be defendants to the cross-action and shall deliver to the court his or her defence for service on such of them as are parties to the action together with his or her defence for service on the plaintiff within the period within which he or she is required to file his or her defence.

Omumbejja Namusisi v Makerere University. Here, the applicant sought leave to amend her WSD to include a counter-claim against the respondents. Court rejected the application holding that, *an application for leave to amend the defence would properly seek to amend a counterclaim if the counterclaim is part of the pleadings filed with the written statement of defence.* In this case there was no counterclaim set up in the written statement of defence, and hence there can be no amendment to pleadings that did not exist in the first place. It is a mandatory requirement under *Order 8 r.7 CPR* that where a defendant seeks to rely upon any ground as supporting a right of counterclaim, he or she must include the counterclaim in his written statement of defence. The instant application seeks orders to introduce a counterclaim as a fresh matter for the very first time. The net effect is that the Applicant should have sought leave of court to file a counterclaim out of time, but not to amend the defence or pleadings to include the counterclaim.

Nile Breweries Ltd v Bruno Ozunga. In this case the WSD and counter-claim was

drafted in such a way that paragraph 16 was followed with a prayer for judgment in favour of the defendant and dismissal of the suit. This was followed by a section headed “COUNTER-CLAIM”. Parties to the counter-claim were not indicated in a title. Court held that *the requirement to make a title to the counter claim is mandatory where the claim is against the plaintiff together with another person as co respondents to the counter-claim.* From the portion headed “Counter-claim” the defendant set out his claim against the plaintiff. There was no other party to the defendant’s claim named. So the defendant’s claim was against the plaintiff solely and not against the plaintiff together with any other person. The Judge opined that the requirement for a title in the counter-claim arises where the defendant claims against the plaintiff together with another



person. This is necessary so that it is clear who, in addition to the plaintiff, the defendant claims against in the counter-claim and to make such a person a party to the suit. *Otherwise, if such person is only named in the body of the counter-claim he would not be a party to the suit.*

- The WSD with a counter-claim must all be filed within the 15 days prescribed by law. O8 R2 states that Where a defendant includes a counterclaim in the defence, the defendant shall accompany it with a brief summary of evidence to be adduced, a list of witnesses, a list of documents and a list of authorities to be relied on
- Where the matter is before a magistrate but the counter-claim exceeds the pecuniary jurisdiction of the magistrate's court, the defendant will have to institute a fresh suit before the High Court.
- A counter-claim is a cross action by the defendant against the plaintiff brought as part of the WSD.
- Where the WSD does not include any counter-claim, there is no prescribed time within which such defence should be served on the plaintiff. O9 R1 does not prescribe service on the Plaintiff. The defendant can serve at will.

Silvanus Bob Turyamwijuka v Compassion. When the suit came up for hearing Counsel for the plaintiff raised a preliminary objection against the defendants' WSD arguing that the same had never been served on the plaintiff. He contended that such failure is in breach of the provisions of order 8 rule 19 of the Civil Procedure Rules which provides that the defendant shall file his or her defence by delivering it to the court for it to be placed on the record and delivering a duplicate of the defence or other pleading at the address for service of the opposite party.

According to counsel filing of a defence cannot be complete until a duplicate of the defence has been served on the opposite party (the plaintiff). Since this had not been done, counsel prayed that the matter proceeds as if the defendant had not filed a defence and that the un served defence on record be struck out, and the plaintiff proceeds with the suit.

HELD; *O8r19 rule provides for two scenarios namely the filing of the defence, and the filing of any pleading subsequent to the filing of the defence. This is done by placing them on record and also by delivering a duplicate of such documents to the opposite party. But the rule does not prescribe time within which to file the defence or pleadings subsequent to the filing of the defence. Similarly this rule does not prescribe time within which to serve the opposite party with the defence or with any pleading filed subsequent to the filing of the defence. It simply states that filing is done by placing the*

documents on record and delivering duplicate thereof to the opposite party. This rule does not provide time limit in which to file the same pleadings. The proposition that filing of a defence is complete only when it is filed and served on the plaintiff within the time allowed to file the defence is not only unsustainable but also impracticable.

Filing of the defence under *o9r1* is complete and the defence is properly before court once it is filed within the time prescribed in the summons. It cannot be tied up within service of the defence to the plaintiff. It is only where the counter defendant is not a party to the suit that he or



she must be served with a copy of the defence in accordance with the rules for regulating service of summons by virtue of rule 9 of order 8

Simon Tendo Kabenge v Barclays Bank. In case, the defendants were duly served. They filed their WSD but never served the same on the plaintiff. The time within which to deliver the defence or any other pleadings subsequent to the filing of the defence at the address for service of the opposite party is not stated in order 1, and there is no reason why it should be imported or implied. Once the defendant has complied with the time limit prescribed by rule 1 of order 8 and files his or her defence in accordance with order 9 rule 1, the filing of such defence is complete and properly before court, irrespective of whether it was served on the other party. It is only court, at its discretion, that can limit time within which service of the defence should be effected on the plaintiff. The last phrase of this rule which reads “*within the period within which he or she is required to file his or her defence*” refers to delivering of the pleadings to the court for service on the plaintiff, but it does not mean that service on the plaintiff has to be done within the time required to file the defence.

- However, where a defence includes a counter-claim which is a cross action, the defendant must serve the plaintiff and any added party.

Western Cotton Co. Ltd v George Asaba. In the instant case, counsel for the plaintiff throughout his submission did not point out to this court any prejudice or injustice that was occasioned to his client by the defendant’s omission to serve. Although the issue of service in this case was raised at an early stage unlike in ***Mukasa Anthony Harris*** (supra), I believe that since no prejudice or injustice has been occasioned to the plaintiff, the omission to serve can be treated as an irregularity which for purposes of Article 126 (2) (e) of the Constitution can be safely ignored to ensure that substantive justice is done.

Nile Breweries Ltd v Bruno Ozunga. **Held;** If a defendant in an action sets up a counter-claim against the claims of the plaintiff for any right or claim, the counter-claim shall have the same effect as a cross-action so as to enable court pronounce judgement on both the original suit and on the counter-claim. Order 7 requires the defendant when he or she seeks to rely upon any grounds as supporting a right of counter-claim to state in his/her statement of defence, specifically that he/she does so by way of counter-claim. Then rule 8 covers a situation where the defendant by counter-claim claims against the plaintiff together with another person. There is need for such other person to be clearly named. Then rule 9 provides for the summoning of such added party, if he is not yet a party to the suit and rule 10 for such party to appear as if has been served with summons to appear in the suit.

- The plaintiff duly served with the WSD has 15 days within which to file a reply thereto. The reply constitutes a response to only the new matters raised in the defence but cannot depart from the original pleadings. O8 R 18(1)
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Katuramu V AG (1986) HCB 39 Held; that although a plaint doesn't include a reply by the plaintiff, nevertheless a reply forms part and parcel of his case; where a reply is filed in answer to the defence, it must be considered together with the plaint with the result that it may supplement or cure any deficiency in the plaint

Stop & See U Ltd v Tropical Africa Bank. Generally time is reckoned from the time of filing of a plaint and the issuance of summons by the court. A summons should be served on a defendant within 21 days from issuance. Where there is no objection to jurisdiction under order 9 rule 3 of the Civil Procedure Rules, order 8 rule 1 (2) requires a defendant to file his or her defence within 15 days from the date of issue of summons. The defendant may file a counterclaim with his or her defence and this affects the timelines for the filing of pleadings. Where no counterclaim is filed together with the defence to the plaint, order 8 rule 18 (1) of the CPR provides that a plaintiff is entitled to file a reply to the defence within fifteen days after the defence or last of the defences has been delivered to him or her, unless time is extended. Thereafter, no pleading subsequent to the reply of the plaintiff to the defence shall be filed without leave of court.

- Where a defence is served in the counter-claim, the plaintiff is entitled to reply thereto within 15 days from the date of service. O8 R11

Stop & See U Ltd v Tropical Africa Bank. Where a counterclaim has been filed the time lines are the same as the rules applicable to the filing of defence under Order 8 rule 18 (3). Therefore a defence or reply to the counter claim has to be filed within 15 days from the service of the defence and counterclaim. Specifically order 8 rule 11 (1) provides that: "(1) Any person named in a defence as a party to a counterclaim thereby made may, unless some other or further order is made by the court, deliver a reply within fifteen days after service upon him or her of the counterclaim." The rule also caters for cases where the counterclaimant names some other person other than or in addition to the plaintiff. Where a defendant to a counterclaim is not the plaintiff, such a defendant shall be entitled to a summons and will file a defence to the counterclaim within 15 days. A counterclaim has to be served on the defendant within fifteen days after its filing under order 8 rules 11 (2). No other reply shall subject to the reply or rejoinder to the defence or counterclaim be filed without leave of court. An application for leave shall be filed within 15 days from the date of the last service. (Order 8 rule 11 (3)).

Eric Ntungura v Jane Mwesigwa

The complaint was that the reply filed by the 3rd defendant to counterclaim was out of time. The counterclaim was served upon the 3rd defendant to it on 9/05/20005. He filed a reply on 30/05/05 and had it served upon counsel for the counterclaimant on the same day. However, Order 8 rule 11(1) provides that any person named in a defence as a party to a counterclaim



thereby made may, unless some other or further order is made by the court, deliver a reply within fifteen days after service upon him or her of the counterclaim. Kamadi Kagolo's reply to the counterclaim was therefore late by 6 days.

Held; For the reply to be legally on the court record, Mr. Kagolo had to apply for extension of time within which to file it as is provided by Order 51 rule 6 CPR. He could have also requested the defendant to consent to the late filing of the reply under the provisions of Order 51 rule 7 CPR. In the absence of an extension of time as provided for by the rules the reply filed by the 3rd defendant to the counterclaim was incompetent and therefore of no consequence.

It is also true that rule 11(2) of Order 8 provides that the reply to the counterclaim shall be served upon the defendant within 15 days after its filing. Order 8 rule 18 (3) provides that a defence to the counterclaim shall be subject to the rules applicable to defences. Order 9 of the CPR then swings into action. Order 9 rule 10 provides that in all suits not specifically provided for in Order 9, in case the party does not file a defence on or before the day fixed therein and upon a compliance with rule 5 of this Order, the suit may proceed as if that party had filed a defence. Order 9 rule 11 (2) goes on to provide that where the time allowed for filing a defence or, in a suit in which there is more than one defendant, the time allowed for filing the last of the defences expires and the defendant or defendants have failed to file their defence(s), the plaintiff may set down the suit for hearing *ex parte*.

Mr. Kagolo was therefore not properly before court when he applied for an adjournment because he had not filed a reply to the counterclaim within the time required by the rules. He did not apply for extension of time within which to do so and his reply was of no effect. His application could not be

entertained in those circumstances.

- Where a reply is filed, no other pleading can be filed save with prior leave of the court. O8 R 18 (2)

Statutory Requirements for Pleadings.



1. Pleadings must be signed by a party or a party's advocate if drawn by the advocate. The advocate signing the pleadings must be properly instructed and must be authorized to practice law at the time. O6 R 26

- ***Mugabi vs. AG [1991] HCB 66***; At the hearing of the suit, the Senior State Attorney representing the defendant raised a preliminary objection. It was his contention that the plaintiff himself signed the plaint as "counsel for the plaintiff" when he had no valid practising certificate at the time as required by Section 10 of the Advocates Act. He submitted that the pleadings were therefore null and void

Held; The plaintiff signed as counsel for the plaintiff designedly to flout the advocates act which was unethical on his part, which this court cant condone.

- ***Habre International trading Co. (U) Ltd vs. KCC HCT 00-CV- CS 0763 /1994***
HELD; documents prepared or filed by an advocate who did not have a valid practicing certificate at the material time are invalid and of no legal effect on the principle that courts will not condone or perpetuate illegalities.

Greenland Bank Ltd V H.K Enterprises Ltd & Others [1997-2000] UCLR 283;

HELD; All documents and instruments drawn and filed by the advocates with respect to the suit, at a time when they had no practicing certificates were invalid and of no legal effect.

NOTE; *before 2002, as seen above pleadings were struck out where an advocate had no practicing certificate, but now it is allowed* S.14A of the

Advocates(Amendment) Act 2002 Act No. 27 of 2002 was passed which section saves documents that have been filed by a person who does not possess a valid practicing certificate or holding out to be an Advocate.

A.G & Peter Nyombi v ULS. In this case, the office of the Attorney General hired a private law firm, Kampala Associated Advocates (KAA) to represent it and Hon. Peter Nyombi in an application for judicial review against the decision of Uganda Law Society (ULS) to suspend Hon. Nyombi from legal practice. Court held that KAA was not properly instructed since it was irregular for the Attorney General to have retained them as lawyers to provide professional services to the Attorney General without following the PPDA Act and Regulations as amended. The illegality in instructing Kampala Associated Advocates contrary to the law rendered all resultant acts done by the said advocates in relation to the first applicant irregular. Court consequently ordered that Kampala Associated Advocates be disqualified from representing the



Attorney General instead of ordering separate trials. The instruction to Kampala Associated Advocates would only remain valid for the second applicant Mr. Peter Nyombi in his personal capacity. The Attorney General should continue to be represented by his legal team of attorneys as presented on record.

However, in relation to validity of pleadings; ***Attorney General & Hon. Nyombi Peter vs. Uganda Law Society, Misc. Cause No. 321 of 2013***, it was held;

“I agree that the representation of the Attorney General by Kampala Associated Advocates does not affect the legality of the pleadings because under S. 14A of the Advocates (Amendment) Act:

“No pleadings, contract, or other document made or actions taken on behalf of a client shall be invalidated by disqualification of an Advocate from representing a client for any reason.”

*Disqualification of an advocate, for example without a valid practicing certificate, or an Advocate whose conduct violates the law including client confidentiality and conflict of interest or any other legal matter **does not invalidate the proceedings.** The Courts are empowered to hear and determine the disputes between parties because an Applicant who believes he has been wronged comes to Court to seek relief. The administration of justice requires that the substance of disputes be investigated and decided on merits and lapses should not necessarily bar the litigant from pursuing his or her rights.*

The rationale to the amendment was given by Justice Elizabeth Ibanda Nahamya in Nantayi v Sekanjako (HCMA NO. 333 OF 2014)

With due respect to Counsel Wanina, the case he has relied upon has been overtaken by the Amendment to the Advocates Act of 2002. The Amended Advocates’ Act, in brief, saves documents and or pleadings filed in Court by an Advocate without a valid practicing certificate. It is not in contention that one, Fauzi Mukwaya, who represented the Defendant in the Lower Court did so under the auspices that he is an Advocate practicing under the firm, Ambrose Tebyasa & Co. Advocates whereas not. I agree with Counsel Mukiibi that Section 14 A of the Advocates Act as amended was intended to save the innocent litigants from unscrupulous persons who hold out as

Advocates

A litigant would hardly inquire from an Advocate if the particular Advocate has a valid certificate. This is the business of the Courts and the Law Council. To say that litigants who engage Advocates without practicing certificate do so at their peril is harsh because the majority of our people would not know which Advocate i.e not entitled to practice. Therefore, documents drawn by an Advocate without a practicing certificate should not be regarded as illegal and invalid simply because the Advocate had no valid practicing



certificate when he drew or signed such documents. In my opinion Article 126(2) (e) of the Constitution would be infringed if a Pleading is declared invalid because it was signed by an advocate who does not possess a valid practicing certificate.

General Requirements for Plaints

- O7 R1 provides for the general requirements which include the title, the suit number, the parties (plaintiffs and defendants), the facts constituting a cause of action including dates, the facts giving rise to the jurisdiction of the court and the reliefs sought by the parties against particular defendants.
- The plaint must contain the material facts upon which such a plaintiff seeks relief from court. O6 R1

Motorcare (U) Ltd v A.G. HELD; It is trite that the object of pleadings is to bring the parties to a clear issue and delimit the same so that both parties know before hand the real issue for determination at the trial: It is such an important aspect of our law that O.6 r. 1 (a) requires all pleadings, generally, to contain a brief statement of the material facts on which the party pleading relies for a claim or defence. Under O.7 r. 1 (e), the plaint must contain the facts constituting the cause of action and when it arose. The consequences of non-compliance are grave. They are set out in O.7 r. 11.

- O6 R3 requires that where the plaintiff relies on fraud, misrepresentation, duress, undue influence, negligence and such related claims, the particulars of such claims must be provided.
- ***Okello Okello vs. UNEB SCCA No. 12/81 [1993] 11 KALR 133 SC***; In every suit where a party relies on misrepresentation, fraud, breach of trust etc and in cases in which particulars must be stated. This rule is mandatory in that the particulars of fraud and dates regarding the alleged fraud should be given. and non compliance renders the suit liable to be struck.

Tororo Cement Co. Ltd v Frokina International Co. Ltd. The Supreme Court held that it is not enough for a plaintiff in his statement of claim to allege merely that the defendant acted negligently and thereby caused him damage. Particulars must be

given in the complaint showing precisely in what respect the defendant was negligent. Particulars of negligence are an important aspect of any party's case, and therefore, it is important that particulars of negligence should be pleaded early so as to assist in framing issues as well as in avoiding surprises which are bound to happen if particulars of negligence are merely introduced as an intrusion during trial at the time evidence is adduced. A party must know the species of negligence which the opposite party seeks to rely on. In this case, *whereas the complaint disclosed a cause of action, because of the*



alleged negligence, the defendant is entitled to know the particulars of negligence complained of in order to enable it to prepare its defence properly.

Belex Tours & Travel Ltd v Crane Bank agreed with the position in **Lubega vs. Barclays Bank Civil Appeal** No. 2 of 1992 that “fraud must not only be pleaded, it must be particularized”. But court added that this is a good authority where the initial action was based on fraud. But certainly does not apply in cases where fraud is concealed only to be discovered on appeal.

- It is a requirement under Order 7R1 that a plaintiff should disclose a cause of action, failure whereof the same will be rejected by court.

A cause of action is said to exist where the following is pleaded;

1. Existence of a legal right in favor of the plaintiff.
2. Violation of the same right.
3. The defendant being responsible for the violation.

Auto Garage v Motokov. In this case, no cause of action was disclosed in the plaint. The plaintiff (now respondent) applied for leave to amend the plaint in order to insert as an alternative in the pleading “a claim for the price of goods sold and delivered, with interest and expenses.” The appellant opposed the application under the premise that if the plaint disclosed no cause of action, it could not be amended and that even if there was power to amend, the exercise of the power would allow a new cause of action after the expiration of the period of limitation.

Court held that *where a plaintiff fails to disclose a cause of action, it is not a plaint at all and you cannot amend a nullity.* The provision that a plaint which fails to disclose a cause of action “shall” be rejected is mandatory. ***For one to have a cause of action, they must demonstrate a defined right, and that the same has been breached and that the defendants are liable.***

Okot Ayere Olwedo Justin v A.G.

HELD; A cause of action means every fact which is material to be proved to enable the plaintiff to succeed or every fact which, if denied, the plaintiff must prove in order

to obtain judgment; It is trite that in considering whether or not the plaint discloses a cause of action, the court only considers the pleadings and anything attached thereto. What is important in considering whether a cause of action is revealed by the pleadings are the questions whether a right exists and whether it has been violated

Tororo Cement Co. Ltd v Frokina International.



HELD; Whether a plaint does or does not disclose a cause of action is a matter of law which can be raised by the defendant as a preliminary point at the commencement of the hearing of the action even if the point had not been pleaded in the written statement of defence. Obviously it is proper and good practice to aver in the opposite party's pleadings that the pleadings by the other side are defective and that at the trial a preliminary point of objection would be raised. But failure to so plead does not bar a party from raising the point. There is, of course, advantage in raising a likely preliminary point in the pleadings. This puts the opposite party on notice so that that party is minded to put its pleadings in order before court hearing. In that way Court's time may be saved if parties can sort out preliminary matters in advance.

Court thus stated;

It is now well established in our jurisdiction that a plaint has disclosed a cause of action even though it omits some fact which the rules require it to contain and which must be pleaded before the plaintiff can succeed in the suit. What is important in considering whether a cause of action is revealed by the pleadings are the questions whether a right exists and whether it has been violated. *Cotter - vs- Attorney General (1938) 5 EACA 18*. The guide-lines were stated by the Court of Appeal for East Africa in *Auto Garage -vs- Motokov (No. 3) (1971) EA. 514*. There are:

- (i) *the plaint must show that the plaintiff enjoyed a right;*
- (ii) *that right has been violated; and*
- (iii) *that the defendant is liable.*

- Once the aforementioned 3 requirements are set out in the plain, such plaint cannot be rejected for want of pleading of other material facts as the same can be cured by way of amendment under 06R19 or by way of further particulars 06R4.

Tororo Cement Co. Ltd v Frokina International (above) HELD; It is now well established in our jurisdiction that a plaint has disclosed a cause of action even though it omits some fact which the rules require it to contain and which must be pleaded before the plaintiff can succeed in the suit....If all three elements are present then a cause of action is disclosed and any defect or omission can be put right by amendment.

- In the determination of whether or not a cause of action exists, the court must restrict itself to the pleadings and any annexures thereto, believing the same to be correct.

Microfinance Support Center Ltd v Uganda Micro Enterprises Association.

HELD; The question whether a plaint discloses a cause of action must be determined upon perusal of the plaint alone, together with anything attached so as to form part of it, and upon the assumption that any express or implied allegations of fact in it are true.” It is settled law that



where a plaintiff fails to disclose a cause of action, then it is not a plaintiff at all. It is considered a nullity which cannot even be amended.

- Where the claim or cause of action is vicarious liability, the plaintiff must plead facts that give rise to vicarious liability.

Brigadier Smith Opon Acak v A.G (1997) 3 KALR, 69

HELD; Where the plaintiff omits to aver that the acts complained of were committed by the servants of the defendant in the course of their employment, it does not mean that the plaintiff does not disclose a cause of action, where the servants have been described as servants of the defendant. This is because whether a servant did or did not do the acts complained of in the course of his employment was a fact peculiarly within the knowledge of the defendant to be pleaded by him in his defence. Therefore in the instant case the plaintiff discloses a cause of action because the defendant's servants were described in the plaintiff as servants of the defendant for whose tortious actions the defendant was vicariously complained of.

- ❖ ***Bamwayire Vs Attorney General (1973) HCB 87*** This was an application by the defendant to have the suit rejected on ground that in failing to allege that the servants who arrested the plaintiff were acting as servants of the defendant in an action for false imprisonment. **Held:** That the court had to look only at the plaintiff in deciding whether it disclosed the cause of action against the defendant was not made under any obligation to ask for further and better particulars. The Plaintiff did not disclose any cause of action as it did not allege the persons who arrested the Plaintiff were servants of the defendant and that the said servants were acting in the course of their employment.

- Where the cause of action is in breach of contract, the prerequisites of a valid contract must be pleaded.
- **Yafeesi Katimbo Vs Grindlays Bank International (1973) HCB** the Plaintiff sued the Defendant for specific performance and in its WSD; the

defendant raised a preliminary objection that the plaint disclosed no cause of action since no consideration had been pleaded. *Whether Consideration, Offer and Acceptance in plaint had to be averred:*

- **Held:** That what particulars had to be stated in the plaint depended on the facts of the case. Cause of action has been compendiously defined to mean every fact, which would be necessary for the plaintiff to prove his case in order to support his right to the judgment of court and it did not comprise every piece of evidence which was necessary to prove each fact but every fact which was necessary to be proved.



- **Held:** That since the action was based on contract; consideration was a material fact and had to be pleaded except in negotiable instruments when it is proved. There was thus nothing in the pleadings to show that there was a binding contract. None of the annexures showed that the offer had been accepted. Acceptance was of the essence and had to be pleaded. The plaint did not disclose a cause of action and would be struck out under O7 r 11 CPR.

Suffish International Food Processors (U) Ltd. and Anor v Egypt Air Corporation t/a Egyptair Uganda (Civil Appeal No. 15 of 2001)

The appellants' plaint in the trial court pleaded in paragraph 6(b) thereof that the first appellant took out a valid insurance policy cover No. 10/MR/OC/4499 with the insurers (the second appellant) to cover 1000 Kgs. of Fresh Chilled Nile Perch Fillets, inclusive of airfreight transportation, and handling. A copy of a Marine Certificate of Insurance was attached to the plaint. However, no such insurance policy/ cover was produced in evidence. The existence of such a policy was denied by the respondent in its final amended written statement of defence which averred that the appellants would be put to strict proof thereof. Learned Counsel contended that the Marine Certificate of Insurance is not an insurance policy, and it does not contain the features of an insurance policy

Held;

The appellants were under a duty to prove their case in accordance with their pleadings in order to succeed. All that notwithstanding, the appellants did not prove that such a contract existed. In the absence of that policy, or credible explanation for its absence, the appellants' case has no foundation.

Prof.George.W.Kakoma v The Attorney General (Civil Suit No.197 Of 2008)

Per J Bamwine; It is trite that a number of other requirements must be satisfied for an agreement to be legally binding:

1. *There must be consideration.*
2. *The parties must have an intention to create legal relations.*
3. *The parties must have capacity to contract.*

4. *The agreement must comply with any formal legal requirements. In general, no particular formality is required for the creation of a valid contract. It may be oral, written, partly oral and partly written, or even implied from conduct.*



- In case of an action founded on defamation, the plaintiff is supposed to plead the alleged defamatory words verbatim.

Erumiya Ebyatu Vs Gusbarita: [1985] HCB 63 The Applicant sued the respondent for slander before a magistrate's court. The Pleadings stated that the respondent was a wizard who used to bewitch people, the actual words used by the applicant in the pleadings. **Held:** That in an action for slander, the precise words used must be set out in the plaint or statement of claim. The plaintiff must rely on the words set out in the plaint and not any other expression. In this case there was no allegation in the plaint that the applicant had said that the respondent had bewitched his deceased father, thus there were inconsistencies as between the pleadings and evidence in court. **Further held;** In an action for slander the names of persons to whom the words were uttered must be set out in the plaint otherwise court will be reluctant to consider any publication to a person not named in the pleadings

- When the plaint does not disclose a cause of action, court is mandated to reject the plaint. The objection or application rejecting the plaint may be raised orally before court or through an application.

Madhivan Group Ltd v Alexander Simbwa

The counterclaimants in their pleadings sought for orders and declaration, *inter alia*, that the land belongs to them, and that the 1st counterclaim defendant's certificate of title be cancelled for fraud. **Held;** the counterclaimants do not qualify as such persons deprived of the land by fraud as the 1st counterclaim defendant did not obtain registration of the suit land by fraud. It follows logically that the counterclaimants lack the necessary *locus standi* to bring a suit against the registered proprietor to impeach the title since they are not persons who were deprived of land by fraud. Similarly, without the *locus standi*, the counterclaimants have no cause of action against the counterclaim defendants. The counterclaim ought to be struck out under **Order 7 r.11 (c) of the Civil Procedure Rules (S.I. 71 -1)**.

Byabazaire Grace v Mukwano Industries (2002) 2 EA 353

The Respondent filed suit in the High Court under the National Environment Management Statute of 1995 against the Applicant alleging that the Applicant's factory which was near the Respondent's residence was emitting obnoxious and poisonous smoke in contravention of the Statute and the Respondent's right to a healthy environment had been breached.. The Applicant filed an application under Order 7, rules 11 and 19 of the Civil Procedure Rules seeking for the orders



that the plaint to be rejected for disclosing no cause of action and for insufficient court fees paid to file it. The Applicant argued that the Respondent had no *locus standi* to bring action under section 4(3) of the Statute.

Held; Held – An action founded on the provisions of a statute must conform to the provisions and a plaintiff cannot look beyond those provisions unless so provided by clear provisions of the statute in question. The Respondent was bound by his pleadings; *Auto Garage and others v Motokov* (3) [1971] EA 514 followed. In so far as the Respondent pleaded to have brought the suit under the Statute, the Respondent had no *locus standi* as it was only the National Environment Management Authority that could bring suit under the Statute.

HMB Kayondo v A.G 1989 KALR, 33

Held; In an application to strike out pleadings which do not disclose a cause of action or defence, the court would only look at the pleadings as filed by the parties to the action and no formal application is required. That a preliminary objection could be raised even after the pleadings were closed, since, if argued as a preliminary, could dispose of the suit.

Mikidad Kawesa v A.G (1973) HCB, 114. Court must restrict itself to the matters in the plaint and annexures thereto. Court cannot purport to investigate matters that are not before it.

Striking out;

- Under O6 R30, the court is empowered to discretion to strike out a pleading where no reasonable cause of action is pleaded or where the claim by the pleadings is shown to be frivolous and vexatious.

Drummond Jackson v British Medical Association & Ors. held; A ‘reasonable cause of action’ means a cause of action with some chance of success, when only the allegations in the pleading are considered. If when those allegations are examined it is found that the alleged cause of action is certain to fail, the statement of claim should be struck out. As long as the statement of claim discloses some cause of action, or raises some question fit to be decided at the trial, the mere fact that the case is weak and is not likely to succeed is no ground for striking it out.

Maximov Oleg Petrovitch V Premchandra Sheno (1998) 1

KALR, 52 Held:

i. As per O.7 r 11 (a) CPR a plaint that does not disclose a cause of action must be rejected. In considering that the plaint discloses a cause of action only the plaint, must be looked at so that it is apparent on its face that the plaintiff appears as a person aggrieved by the violation of his rights and that it is the defendant who is liable. In the instant case the pleadings disclose that the plaintiff paid some money to the defendant so that they could jointly trade in precious stones. The pleadings further show that the defendants acknowledged receipt though of a lesser sum. Therefore it was apparent on the face of the plaint that the plaintiff was aggrieved by the



defendants. As to whether it was the 1st or 2nd or both defendants was a triable issue after evidence had been led. Therefore there was a cause of action disclosed.

ii. O.7 r 11 (e) CPR provides that a suit that is shown by the plaintiff to be frivolous and vexatious must be rejected. The plaintiff must show that to a reasonable person, the plaintiff has no the kind of grievance that is entitled to be adjudicated upon but that the plaintiff is actuated by malafide to harass the defendant. In the instant case the plaintiff discloses a reasonable grievance against the plaintiff by the defendant. Therefore the suit is not frivolous and vexatious.

Baku Raphael Obudra & Anor. V AG Constitutional Appeal No. 1/03 ;

Kanyeihamba JSC; I alluded to an exception to the general rule that upon an application to strike out a plaintiff for not disclosing a cause of action, the court ought to restrict its ruling on the defect of the plaintiff and not to decide on the merits of the case. The exception is where the court is satisfied that “the cause of action” disclosed is clearly not maintainable in law

DENIS NAMARA v RUHINDA MAGURU DAUDI;

HELD; It is settled law that a plaintiff that does not disclose any cause of action should be rejected under Order 7 rule 11 of the CPR. However where the plaintiff discloses a cause of action that is not maintainable, O 6 r 30 (1) of the CPR requires that such a suit should be dismissed

- Once a suit is dismissed under O6 R 30(2), the only remedy is to appeal and not institution of a fresh suit. The application under O6 r 30 is normally a formal application by notice of motion with a valid affidavit.

Standard Chartered Bank & Ors v Haba Group of Companies & Ors.

Reliefs and particulars of special damages.

- It is a requirement under O7 r1 that a plaintiff must set out the relief sought from court. Where the claim relates to special damages, the same must be specifically pleaded and particularized.

Wakiso Cargo Transporters Ltd v Wakiso District Council. Held; It is the duty of the plaintiff or the party that seeks damages to prove the loss it has suffered for which it would be entitled to recompense by way of an award for either special or

general damages. And where it is a claim for special damages, the special damages must be specifically pleaded and proved. To sustain a claim for special damages, it is now settled law that the plaintiff must specifically plead the claim for special damages, setting out particularised items of what is claimed as special damages in the plaint. Secondly, the plaintiff must strictly prove the claim for special damages.

Vallabhudas & Sons Ltd & Mawangala Estate vs. Mateeka [2001 – 2005] HCB Vol. 2 68. The law is that special damages must be specifically pleaded and strictly proved .



- The position of the law is that relief not pleaded and prayed for in pleadings cannot be granted by the court.

Goustar Enterprises Ltd v John Kokas Oumo

Supreme Court HELD; It is well settled that no decision must be made or relief granted by any court of law on a ground which was not pleaded.

Quoting *Candy -vs - Caspair Air Charter Ltd. [1956] EACA 139 at page 140* where Sir Ronald Sinclair VP, stated that:

“The object of pleadings is of course to secure that both parties shall know what are the points in issue between them, so that each may have full information of the case he has to meet and prepare his evidence to support his own case or to meet that of his opponent. As a rule, relief not founded on the pleadings will not be given.”

That since there was no counter-claim pleaded regarding the cost of the repair of the two tractors, no relief would be granted on the issue of costs for repair of the tractors.

Kabu Auctioneers & Court Bailiffs v F.K Motors Ltd

Issue; That the Learned Justices of Appeal erred in law in that they adopted a figure as the monetary value of the goods unlawfully distrained and yet the same had neither been specifically pleaded nor specifically proved.

Held; the respondent, for reasons best known to its officials and its counsel, chose not to amend its pleadings with respect to the value it had initially claimed and the value that PW2, as their Valuer, had later given. Since the respondent neglected or failed to amend its pleadings to reflect its claim of 2,300,000,000/= billion Uganda shillings as the value of its goods, even as it prepared to lead evidence to that effect, it is proper to conclude that this claim for more money than they pleaded cannot stand in law. Court found that the learned Justices of Appeal erred in law when they adopted the figure of 2,300,000,000/= as the monetary value of the respondent's goods. The value of 2,300,000,000/= billion Uganda Shillings was never pleaded in the original or amended plaint and it was never proved. Therefore, it cannot be awarded

[Muhwezi v Irene Number one & Anor \(HCT-05-CV-CA-0066-2009\)](#)

HELD;

if a party does not specifically plead for a remedy, it is not up to the court to grant it. It is a well known position of the law that a party must specifically plead for a remedy, and that court will not grant remedies not prayed for. Provisions of **Order 7 Rule 7** of the **Civil Procedure Rules** are to the effect that a party seeking reliefs in court should make specific averment as to the reliefs sought either simply or in the alternative. Even if a party makes a prayer “any other reliefs this



court deems fit”, it is treated as a mere surplusage, and cannot be used as an inclusive cover to obtain what has not been specifically prayed for.

That court is not expected to “shop around” for reliefs on behalf of the litigants. If a party chooses not to specifically plead for a particular relief, he or she is deemed to have abandoned it. To that extent, the award by the trial court of costs which were not prayed for to the Respondents amounted to nothing short of exercising the court's discretion based on the wrong principle of the law, which was grossly irregular. The irregularity could not be cured even by the consent of the parties that the appellant pays costs

Sinba K Ltd & Ors v UBC. This was an appeal to the Supreme Court against an order cancelling the name of one of the applicants from the title to the suit property. This order had neither been sought nor pleaded or proved in the application.

Held; Relief in court matters is not an entitlement but must be pleaded and justified before it can be granted. A court cannot legally move itself to grant a remedy in the course of its ruling when parties did not address it on such remedies. However, court has discretion to grant consequential orders in order not to leave a matter hanging. Consequential orders arise, for example, where a party is struck off a land tile. Court can either reinstate the successful party or order for the substitution of the same party. Otherwise, the suit property cannot be left in a state of uncertainty.

- ❖ ***Take me Home Vs Apollo Construction:*** Counsel for the Plaintiff asked court to award damages for breach of contract but this was not specifically pleaded in the plaint and he therefore asked court to make an award under the umbrella of any other suitable relief. **Held:** That in regard to the prayer for any other suitable relief or further and other relief that advocates seem to make a practice of adding in their plaints it has no meaning and does not add anything to what is claimed nor could be used as generally inclusive come up and make shift so as to avoid the penalties of sloppy inadequate and incompetent drafting of pleadings.

Kasule Vs Makere University {1975} HCB 376:

The plaintiff was assaulted by the MUK askaris and in a suit against the university he was awarded exemplary damages yet he had not prayed for it in the pleadings.

Held: Per curium: The system of pleadings is designed not only to define with clarity and precision the issues on questions which were in dispute between the parties but also to fulfil some of the fundamental principles of natural justice. The aim that each party should have a fair and due notice of what case he has to make, that each party should have a reasonable opportunity of answering the claim or defence of his opponent and that each party should have a reasonable opportunity of preparing and presenting his case on the basis of issues disclosed in the pleadings



and no others. Exemplary damages, not pleaded were wrongly awarded. *Kasule v Makerere University*

- It is a requirement under O6 r14 that where a plaintiff sues upon a document which is the foundation of his right, the document must be filed together with the plaint. All other documents that the plaintiff intends to rely at the hearing may be attached or included in the list of documents. O6 r 2

Lukyamuza v House Tenant Agencies Ltd. HELD; As regards the failure to comply with the provision of O6 r. 14 of the CPR, the object of the rule is to provide against false documents being set up after the institution of the suit. However, in those cases where there is no doubt as to the existence of a document at the date of the suit, court should as a general rule admit the document in evidence though it was not produced with the plaint or entered on the list of documents in compliance with O6 r. 14 of the CPR.

Suffish International Food Processors (U) Ltd. and Anor v Egypt Air Corporation t/a Egyptair Uganda (Civil Appeal No. 15 of 2001)

Held; Because the document called the policy of insurance could not be produced in the court, it is impossible to ascertain the distinctive features of the alleged policy of Insurance. That being the case, there was no binding and operative contract

UNICOF Ltd v Interfreight Forwarders (Civil Suit No. 912 of 1996)

In paragraph 3 of the plaint the plaintiff avers, inter alia, that “The plaintiff shall produce and rely on the documents evidencing payment of the said sum of US 86,223.91 at the hearing. An objection was raised that the policy of insurance to be relied on for subrogation has not been annexed to the plaint - nor to a list of documents to be relied on at the trial and that the policy of insurance is not referred to at all in the plaint. (b) There is no certificate of insurance referred to in the plaint either. After referring to the rules. At the hearing made counsel made a frantic oral application to be allowed to annex the documents. Court agreed with counsel’s objections, disallowed the oral applications to admit the relevant documents to be annexed to the plaint and struck out the plaint as incompetent.

The Law, Procedure and Practice Relating to Amendment of Pleadings.

- It is a requirement of the law that pleadings be drafted with care so as to include all material particulars to enable the adversary party appreciate the dispute.
- ❖ . **Mutongole Vs Nytil.** (1971) HCB 114; Counsel for the defendant contended that the plaint did not show any averment as to jurisdiction of court. **Held:** That statement like, '*this court has jurisdiction over men*', surpluses that do not bestow jurisdiction upon land and it had no magical



qualities as long as the facts disclosed that a cause of action arose within the jurisdiction. That each pleading should be carefully drafted and treated individually and the advocates owned this much to the clients and court. That particular case should be taken in drafting the pleadings; *all the 'is' and must be crossed as pleadings are the foundation of the court case*. Once the facts showing that the court had jurisdiction had been pleaded it was not necessary to state that court had jurisdiction.

- Article 126 (2) (e) may not offer a remedy for improperly drafted pleadings where the omission goes to the root of the entire claim.
- It follows therefore that Article 126(2) (e) is not intended to encourage sloppy drafting of pleadings save that where however sloppy the drafting may be, if the pleadings disclose a cause of action the court will not dismiss the suit.

Tororo Cement v Frokina International; the claimant did not plead the particulars of negligence and tried to rely on Art 126(2)(e) that the plaint was not defective; **Tsekooko JSC; held;** that Article 126 (2) (e) was not intended to encourage sloppy drafting of pleadings; Properly drafted pleadings define issues in contest. That is why we have rules. What can be argued legitimately is that because of that Article and by authority of decided cases, a plaint ought not to be rejected for failure to disclose a cause of action unless even when it is amended, within the limits of the law, a cause of action is not disclosed. But the party whose pleadings are objected to must be graceful enough to recognize the defect in its pleading and seek Court's leave, if it is possible, to rectify the relevant defect instead of being adamant as the plaintiff has been in these proceedings. The essence of pleadings is to enable parties to define issues in dispute. In this case the issue in dispute is negligence. Issues on negligence can be defined by giving particulars of the alleged negligence.

- The purpose of exchange of pleadings is to enable parties make appropriate responses to the claims or counter claims.

Interfreight Forwarders (U) Ltd v EADB

held; The system of pleadings is necessary in litigation. It operates to define and deliver it with clarity and precision the real matters in controversy between the parties upon which they can prepare and present their respective cases and upon which the court will be called upon to adjudicate between them. It thus serves the double purposes of informing each party what is the case of the opposite party which will govern the interlocutory proceedings before the trial and which the court will have to determine at the trial



- It is trite law that parties are bound by their pleadings and cannot depart therefrom save by way of amendment. O6r7

Talikuta V Nakendo (1979) HCB 275 Held: It is a statutory rule off pleadings that a party is bound by his pleadings. But if particulars are given in wider detail and what is proved varies from them in ways that are material, it remains the duty of court to see that justice is done.

Byabazaire Grace vs Mukwano Industries HCMA No. 909 /2002; A plaintiff is bound by his /her pleadings and must establish the 1st essential element of a cause of action Viz , a defined right enjoyed by the plaintiff . where a plaint doest not disclose a cause of action, it must be rejected ant the requirement is mandatory.

Aisha Nantume vs Emmanuel Lukyamizi HC Appeal No. 011 / 2002; It is a well known principle that a party to a suit is bound by his or her pleadings

Interfrieght forwarders (U) Ltd VEADB SCCA No. 13/93; A party is expected and is bound to prove the case as alleged by him and as covered in the issues framed. He will not be allowed to succeed on a case not set up by him and be allowed at the trial to change his case or set up a case inconsistent with what is alleged in his pleadings except by way of amendment of pleadings
.The law of civil procedure acknowledges the fact that the process of drafting of pleadings is a human process not immune from mistakes and therefore creates avenues for parties to remedy any omissions in their pleadings.

Amendment of pleadings;

- The law of civil procedure acknowledges the fact that the process of drafting of pleadings is a human process not immune from mistakes and therefore creates avenues for parties to remedy any omissions in their pleadings.

“The rule is examined and explained in Claparede v. The Commercial Union Association (32 W.R. 262)., ‘The rule of conduct of the Court in such a case as this is that, however negligent or careless may have been the first omission, and however late the proposed amendment, the amendment should be allowed if it can be made without injustice to the other side. There is no injustice if the other side can be compensated by costs: but if the amendment will put them into such a position that they must be injured, it ought not to be made.’: “The question is whether, if the slip is set right, so as to enable the right question to go to trial, the parties will be put in the same position they were in before the slip was made: for if so, that should be done. In most cases it is a question of costs.’ ”

Gasco Transport Services (Bus) Ltd v Obene[1990–1994] 1 EA 88

HELD; Courts generally give leave to amend pleadings rather than give judgments in ignorance of the facts which ought to be known before rights are definitely decided.

The governing principles in the exercise of discretion in allowing amendments are:

(i) The amendment should not work injustice to the other side. An injury that can be compensated by costs is not treated as an injustice.



- (ii) Multiplicity of proceedings should be avoided and amendments which avoid such multiplicity should be allowed.
- (iii) An application which is made *mala fide* should not be granted.

- The law of civil procedure therefore allows parties in appropriate cases to cause amendment to their pleadings in order to set out their entire claim or defence so that all the issues arising therefrom are effectually and conclusively determined by the court.

LEA ASSOCIATES LIMITED v BUNGA HILL HOUSE LIMITED; HELD; As a general

rule amendment of pleadings should be allowed at any stage of the proceedings where court is satisfied that the amendment will enable the real question in controversy between the parties to be adjudicated upon and no injustice would be occasioned to the opposite party. Amendment will have not be allowed where it will substantially change the cause of action into a different one or will deprive the defendant of an accrued right or where it is made malafide.

Muwolooza & Brothers v N. Shah & Co. Ltd ((Civil Appeal No. 26 Of 2010))

The court agreed with the law as stated in *Eastern Bakery v. Castelino* (supra) by Sir Kenneth O'Connor. **[A]mendments to pleadings sought before the hearing should be freely allowed, if they can be made without injustice to the other side and ... there is no injustice if the other side can be compensated by costs ... the court will not refuse to allow an amendment simply because it introduces a new case but there is no power to enable one distinct cause of**

action to be substituted for another the court will refuse leave to amend where the amendment would change the action into one of a substantially different character or where the amendment would prejudice the rights of the opposite party existing at the date of the proposed amendment e.g. by depriving him of a defence of limitation.

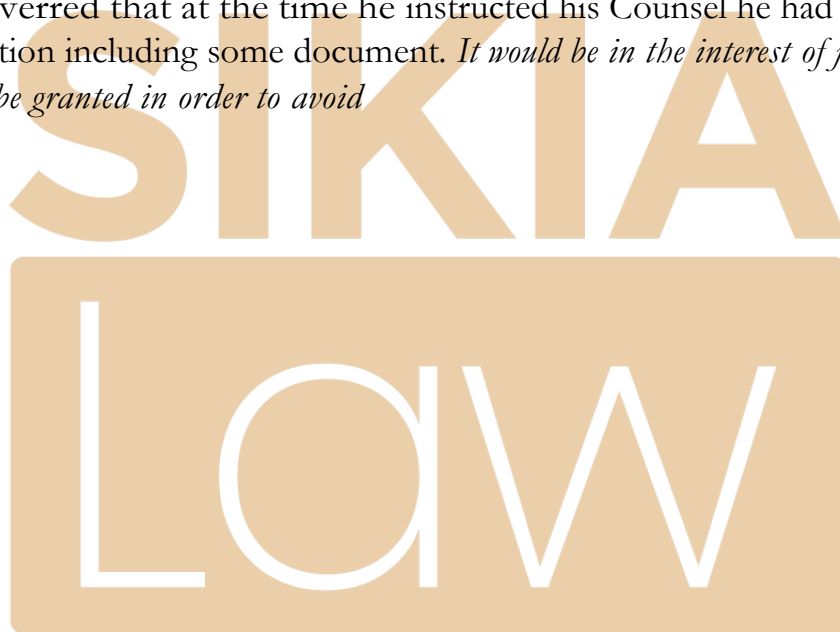
Court regarded this as the correct statement of the law on amendments to pleadings. And thus **held;** Amendments are allowed by courts so that the real question in controversy between the parties IS determined and justice is administered without

undue regard to technicalities in accordance with **Article 126(2) (e) of the Constitution**. However, the test is whether the proposed amendment introduces a distinct new cause of action instead of the original or whether and in what way it would prejudice the rights of the respondent if it was allowed.

- The purpose of amendment is to curtail a multiplicity of suits and enable a court resolve the dispute the parties on merit than mere technicalities.

Coffee Marketing Board v Fred Kizito (1992-93) HCB 175

HELD; Amendments to pleadings sought before the hearing should be freely allowed if they can be made without injuries to the other side and that there is no injury if the other side could be compensated by costs. The applicant averred that at the time he instructed his Counsel he had not given all the information including some document. *It would be in the interest of justice that the amendment be granted in order to avoid*



multiplicity of litigation and would enable court to finally determine the dispute between the parties. There was no evidence that the respondents would be prejudiced by the amendment and that he could not be compensated with costs. It was not necessary for the applicant to show there was a bonafide mistake, why the counter claim was not included in the W.S.D.

- O6r20 allows parties to amend their pleadings without recourse to court or without any need for leave of court as long as the amendment is within the timeline set out therein.
- However, where a party fails to cause an amendment within the timelines set out in o6r20 such a party must move court for leave to amend under o6 r 19. This rule empowers court at any time of the proceedings to allow a party to cause amendment to the pleadings on such terms and conditions as the court may deem fit.

Bufallo Tingstein Inc. v SGS

The applicant sought leave to amend his plaint on ground that there has been discovery of new information that was not available at the time of filing the plaint.

HELD;

It is clear from the leading authorities on amendment of pleadings that addition of new causes of action that are not allowed are those that are **distinct** and **capable of changing the subject matter of the suit or changing the action into one of a substantially different character**. However, courts do allow some amendments that introduce new causes of action where appropriate so as to avoid multiplicity of suits. I believe each case is determined on its own facts and circumstances. That even where the defendant raises a defence of lack of cause of action, the plaintiff can still amend the plaint to put the suit in order if it is done without delay. In the result, the application is allowed and leave is granted to the applicant to amend its plaint in Civil Suit No. 230 of 2009 as proposed in the intended amended plaint. The amended plaint must be filed within seven days from the date of this ruling.

- The power of court to grant leave to amend is discretionary and must be exercised on sound grounds and principles.

Gasco Transport Services Bus Ltd v Martin Adala Courts generally give leave to amend pleadings rather than give judgments in ignorance of the facts which ought to be known before rights are definitely decided.

A court may consider the following principles for the grant or rejection of an application for leave to amend;



1. Where the plaint discloses a cause of action, any omitted facts may be provided/remedied by amendment. Where the plaint discloses no cause of action, it cannot be amended.

Brigadier Smith Opon Acak v A.G (1997) 3 KALR, 69; -whether plaint may not be amended because it does not disclose a cause of action.

HELD; Where the plaint omits to aver that the acts complained of were committed by the servants of the defendant in the course of their employment, it does not mean that the plaint does not disclose a cause of action, where the servants have been described as servants of the defendant. This is because whether a servant did or did not do the acts complained of in the course of his employment was a fact peculiarly within the knowledge of the defendant to be pleaded by him in his defence. Therefore in the instant case the plaint disclose a cause of action because the defendant's servants were described in the plaint as servants of the defendant for whose tortuous actions the defendant was vicariously complained of. Since the amendment would not prejudice the respondent the application to amend was filed in time, it would be allowed. Application for leave to amend allowed with costs against the applicant.

2. If the intended amendment converts the cause of action materially into another cause of action to the prejudice of the adversary party, court may reject it.

This position of the law was emphasized by Tumwesigye, JSC in **Mulwooza & Brothers vs N. Shah Ltd SCCA No. 26 of 2010** where he stated that the test is whether the proposed amendment introduces a distinct new cause of action instead of the original or whether and in what way it would prejudice the rights of the respondent if it was allowed.

This was quoted with approval;

Bufallo Tingstein Inc. v SGS

The applicant sought leave to amend his plaint on ground that there has been discovery of new information that was not available at the time of filing the plaint.

HELD;

It is clear from the leading authorities on amendment of pleadings that addition of new causes of action that are not allowed are those that are **distinct** and **capable of changing the subject matter of the suit or changing the action into one of a substantially different character**. However, courts do allow some amendments that introduce new causes of action where appropriate so as to avoid multiplicity of suits

Winnie Okidi & Ors v Fina Bank



3. Where the amendment sought is to enable the party plead necessary particulars in support of the cause of action in order for court to effectively determine the suit, the amendment should be allowed.

Lea Associates Limited V Bunga Hill House Limited;

HELD; As a general rule amendment of pleadings should be allowed at any stage of the proceedings where court is satisfied that the amendment will enable the real question in controversy between the parties to be adjudicated upon and no injustice would be occasioned to the opposite party. Amendment will have not be allowed where it will substantially change the cause of action into a different one or will deprive the defendant of an accrued right or where it is made malafide.

4. Where the amendment may cause prejudice to the adversary party but such prejudice can be atoned for by an award of costs, the amendment should be allowed.

Gasu Transport Services (Bus) Ltd Vs Martin Adala obene SCCA No. 4 of 1994,
Tsekoko JSC stated:-

The following principles appear to be recognized as governing the exercise of discretion in allowing amendments:- The amendments should not work injustice to the other side. An injury which can be compensated by the award of costs is not treated as an injustice.

5. Where the intended amendment has the effect of defeating the statutory defence of limitation, court ought to reject the application.

In *Re: Mustapha Ramathan* ; and in *Muhammad B. Kasasa vs. Jasper Buyonga & Silas Bwogi (supra)*, the Court of Appeal held that statutes of limitations are not concerned with merits. They are by their nature strict and inflexible enactments. Their overriding purpose is interest *republicae ut fins litum*, meaning that litigation shall automatically be stifled after a fixed length of time, irrespective of the merits of a

particular case. Once the axe falls, it falls, and a defendant who is fortunate enough to have acquired the benefit of the statute of limitation is entitled, of course, to insist on his strict rights.

Mulowoza & Bros v N. Shah



HELD; that courts should not allow amendments to pleadings which would take away a defendant's defence of limitation

6. Court may also consider whether the application is related or inordinate and the likely prejudice to the adversary party which cannot be atoned by an award of costs.

Bufallo Tingstein Inc. v SGS Uganda Ltd

Breach of contract was pleaded in the original plaint in paragraph 5, although no particulars of were given. The proposed amendment seeks to add in paragraphs 5, 6 and 8 other causes of action not previously pleaded in the original plaint like fraud, negligence, and misrepresentation.

HELD;

Court Quoted; Sir Kenneth O'Connor in the case of **Eastern Bakery v Castelino [1958] EA 462** held that an amendment that substitutes one distinct cause of action for another or change the subject matter of the suit or that which would change the action into one of a substantially different character should not be allowed.

As to whether the amendment seeks to substitute a distinct cause of action for another or change the subject matter of the suit into one of a substantially different character, court did not agree with the respondent that these causes of action are distinct and capable of changing the subject matter of the suit or changing the action into one of a substantially different character. That a perusal of these additional causes of action shows that **they all relate to** the particulars of breach of contract as stated in paragraph 7 of the proposed amended plaint. The applicant is simply seeking to single out what it considers elements of fraud, misrepresentation and negligence from the particulars of breach and there is nothing distinct about them that can change the subject matter or character of the suit.

7. The Procedure of applying for an amendment is by chamber summons with a valid affidavit save that in some circumstances an oral application may be allowed.

Lea Associates Ltd v Bunga Hill House; Held; an application was brought by

Chamber Summons under Order 6 rules 19 and 31,

DD Bawa Limited v GS Didar Singh [1961] 1 EA 282

At the trial it was contended for the defendant that if the plaintiff wished to amend his pleading, he could not do so by an oral application at the trial but in view of O. 6, r. 30 of the Civil

Procedure Rules should do so by a chamber summons

HELD;



The purpose of O. 6, r. 30 was not to preclude the court from dealing with an oral application to amend pleadings in the course of a hearing, but to provide that, if an interlocutory application is made under O. 6, r. 18, it should be by summons in chambers and not by notice of motion; otherwise the words “at any stage of the proceedings” in r. 18 would hardly be consistent with r. 30.

8. Where a pleading is amended, the amended pleading replaces the original pleading. The amended pleading must be served on the adversary party.

Mashate Magomu Peter v Sizomu Gershom Wambede

The Petitioner amended his petition without leave of court and at the trial sought under 0.6 rule 22 of the CPR that the same be allowed and put on the court record. By consent of all Counsel, the amended Petition was allowed whereupon the Petitioner’s Counsel withdrew the Petitioner’s original petition which had been replaced by the amended one. In an unprecedented manner, in the Petitioner’s affidavits in rejoinder to the Respondents’ answers to the Petition, the Petitioner surprisingly attached as annexures thereto, the affidavits in support of his original Petition.

HELD;

Quoting Black’s Law Dictionary; An amended pleading is: *“A pleading that replaces an earlier pleading and that contains matters omitted from or not known at the time of the earlier pleading”*. These affidavits, had since been replaced by the said amended petition that is accompanied by fresh affidavits. It is a cardinal principle of pleadings that *“Parties are bound by their pleadings”*. The Petitioner is bound by his amended petition and the accompanying affidavit filed therewith. It is clear from the authorities and rules cited and these definitions, that by replacing his original petition and its accompanying affidavits with the amended petition, it was no longer open to the Petitioner to fall back to his original petition nor its accompanying affidavits. If the Petitioner desired to do so, he ought to have sought the leave of court by way of a fresh oral or written application to re-amend his petition. This was not done. No such leave was sought nor granted. ***On this basis, I have rejected all the said affidavits filed in support of the earlier petition as they were an integral part of the original petition which was replaced.***

Un pleaded Issues

- Court is only mandated to adjudicate issues emanating from the pleadings. Any un- pleaded issue cannot ordinarily be determined by court save where the issue necessarily arises out of the evidence and the parties have been given an opportunity to address court on that issue.

Interfreight Forwarders U Ltd v EADB



HELD; it was misdirected in law on the part of the learned Principal Judge to base his judgement on a cause of action not pleaded and not being part of the issues upon which the parties fought the suit

Mohammed Hamid v Rock Construction Co.

HELD; although it is the right and duty of the Court to consider illegality at any stages yet, when it has not been pleaded and not raised in the Court below, or at best, only raised at the late stage, an appellate Court must be cautious and must consider whether the alleged illegality is sufficiently proved and must be satisfied that if there are matters of suspicion in the plaintiff's case, **an opportunity was given for explanation and defence.**

Odd Jobs v Mubia (1970) E.A, 476

HELD; a court may base its decision on an unpleaded issue if it appears from the course followed at the trial that the issue has been left to the court for decision

LIMITATION OF CAUSES OF ACTION

- It is a requirement of the law that an action should be commenced within the limitation period and any suit filed upon expiry of the limitation period is bad in law and liable to be dismissed. O7R11

Iga v Makerere University [1972] 1 EA 65

The appellant sued the respondent in tort for damages for personal injuries, the action having been filed outside the limitation period for such an action.

Interlocutory judgment was entered for the appellant but when the action came before the judge for assessment of damages he set aside the interlocutory judgment and dismissed the appellant's claim holding that the court had no jurisdiction to entertain it.

On appeal it was contended that limitation is only a procedural matter not going to jurisdiction and that limitation must be pleaded.

Held –

- (i) a plaint barred by limitation is barred by law and must be rejected;
- (ii) such a plaint should be rejected even though an interlocutory judgment has been entered;
- (iii) the judge should not have dismissed the claim but rejected the plaint:

- It follows therefore that before the filing of a suit, the plaintiff must ascertain when the cause of action arose, the limitation period provided for such cause of action, and whether a claim is still within time.

WHR Wanyama v KCC. Held; In this case, the applicant negotiated past the 6 year limitation period. He then sued. The case was dismissed. Court fortified the principle that *the offer to negotiate terms of a settlement between the parties to an action has no effect*



whatsoever on when to serve a statutory notice or file an action. It is incumbent on those who need to file documents to do so in time. Failure to file an action or pleadings in time is fatal.

- The Limitation Act is the principle legislation on limitation of causes of action save that it does not apply to actions commenced under a specific legislation which provides for limitation under that legislation.

In the matter of an application by Mustafa Ramathan. The application for a writ of certiorari was filed more than the stipulated six months after the Minister's decision was made. Counsel for the appellant argued that the judge ought to have based his calculation on the time the Minister's decision was communicated to the appellant. Berko, JA, as he then was, stated that *statutes of limitations are in their nature strict and inflexible enactments. Their overriding principle is that litigation shall be automatically stifled after fixed length of time, irrespective of the merits of the particular case.* He quoted Lord Greene M. R in ***Hilton Vs Sutton Steam Laundry [1946]*** 1 KB 61 at page 81 where he said that *"the statute of limitations is not concerned with merits. Once the axe falls, it falls, and a defendant who is fortunate enough to have acquired the benefit of the statute of limitation is entitled, of course, to insist on his strict rights."*

- Timelines fixed by statute are matters of substantive law, implying that Article 126 2 e cannot constitute a remedy for an action which is time barred.

In **Uganda Revenue Authority Vs Uganda (1997 – 2001) UCL 149** their lordships of the Court of Appeal held that time limits set by statutes were matters of substantive law and not mere technicalities and should be strictly complied with.

- The limitation period is computed from the date a cause of action arose.

The position of the law as was stated in ***F.X Miramago Vs Attorney General [1979] HCB 24*** is that the period of limitation begins to run as against a plaintiff from the time the cause of action accrued until when the suit is actually filed.

In ***Okot Ayere Olwedo Justin v A.G.*** court held that The cause of action did not arise immediately after the arson because the plaintiff believed that he would be compensated amicably. The limitation time thus begun to run from the time the

plaintiff realized that the amicable way of compensating him was not yielding results.

SSEBILAGALA MOSES v ATTORNEY GERNERAL & ANOTHER



Held; The issue of limitation largely hinges on when the cause of action in question arose. Court found that the present suit was filed out of time and is therefore improperly before this court. Having so found, there was no reason to delve into the merits of the suit and was duly dismissed with costs to the defendants..

Eridadi Otabong Waimo Vs Attorney General; The appellant sued the defendant for false arrest and unlawful detention. The suit was filed after 12 months of the date of arrest and at the hearing an objection that the suit was time barred was upheld. The Supreme Court held that where a period of limitation is imposed, it begins to run from the date on which the cause of action arose. In case the wrong is a continuing tort, the cause of action accrues continuously throughout its duration; Where a plaint is filed out of time, the exemption on ground of disability must be specifically pleaded. If it is not, the plaint should be rejected.

- The position of the law is that once an action is time barred, it does not matter whether it is meritorious or otherwise and court has no option but to dismiss.

In *Re: Mustapha Ramathan* ; and in *Muhammad B. Kasasa vs. Jasper Buyonga & Silas Bwogi (supra)*, the Court of Appeal held that statutes of limitations are not concerned with merits. They are by their nature strict and inflexible enactments. Their overriding purpose is interest *republicae ut fins litum*, meaning that litigation shall automatically be stifled after a fixed length of time, irrespective of the merits of a particular case. Once the axe falls, it falls, and a defendant who is fortunate enough to have acquired the benefit of the statute of limitation is entitled, of course, to insist on his strict rights.

Read Limitation Act (fraud, negligence, contract ...)

HAMMERMANN LTD v HAM SSAALI

It is the established law that a suit which is barred by statute where the plaintiff has not pleaded grounds of exemption from limitation must be rejected because in such a suit the court is barred from granting a relief or remedy. Further, **Section 25** of the ***Limitation Act (supra)*** is to the effect that in actions founded on fraud, the period of limitation shall not begin to run until the plaintiff has discovered, or could with reasonable diligence have discovered the fraud. It is also the settled position that in determining the period of limitation, court looks at the pleadings only, and no evidence is needed.



Hermezdas Mulindwa and Another v Stanbic Bank (u) Ltd (HCT-00-CCCS-0426-2004)

HELD; Where a plaint is filed out of time, the exemption on ground of disability must be specifically pleaded. If it is not, the plaint should be rejected. Where a plaintiff wishes to rely on any exemption to the periods of limitation it must be specifically stated in the pleadings. If it is not the plaint should be rejected. Time begins to run from the time when the plaintiff discovered the mistake or could with reasonable diligence have discovered the mistake.

- Where the limitation period has elapsed, unless the action is revived the plaintiff must plead exemption from limitation in order to avoid an objection that the suit is time barred.

Eridadi Otabong Waimo Vs Attorney General; The appellant sued the defendant for false arrest and unlawful detention. The suit was filed after 12 months of the date of arrest and at the hearing an objection that the suit was time barred was upheld. The Supreme Court held that where a period of limitation is imposed, it begins to run from the date on which the cause of action arose. In case the wrong is a continuing tort, the cause of action accrues continuously throughout its duration; *Where a plaint is filed out of time, the exemption on ground of disability must be specifically pleaded. If it is not, the plaint should be rejected.*

HAMMERMANN LTD v HAM SSAALI

It is the established law that a suit which is barred by statute where the plaintiff has not pleaded grounds of exemption from limitation must be rejected because in such a suit the court is barred from granting a relief or remedy.

INTERROGATORIES, DISCOVERY, INSPECTION, FURTHER AND BETTER PARTICULARS

Order 10 R 1 & 2 (interrogatories)

Kyenda v SBL International Holdings N. Ltd (MISC. APPLICATION NO. 052 OF 2013)

This Application is brought under section 22 and 98 CPA and Order 10 Rules 1, 2, 4,

6, 8 and 24, seeking orders that Interrogatories for examination of the Respondent be delivered to the said Respondent. This Application is premised on the allegation that the Respondent in the written statement of defence in the head suit merely denied all averments in the Plaint and that it is necessary to establish the facts in the suit to save Court's time when the trial commences.

Objection that that this is not a proper suit for grant of Interrogatories and that the Applicants have filed "*Fishing Interrogatories*".

HELD; In deciding whether the order should be made, the Court is to be guided by:

(i) Whether the Interrogatories are necessary for disposing of the suit fairly or (ii) For saving costs.



Quoted; In **National Social Security Fund Board of Trustee Vrs. Kario Farms Ltd & Others (2006) EA 240**, it was observed that in the process of presenting Interrogatories, the party interrogating may put questions for the purpose of extracting from his opponent information as to the facts material to the questions between them when he has to prove on any issue raised or for purposes of securing admissions as to those facts in order that the expense and delay may be saved

O10 R14-17 (discovery)

A document sought to be discovered or inspected must have been disclosed in the pleadings but not attached.

The documents must be relevant to the determination of the suit.

The documents must be in the possession of or under the control or power of the adversary party. The application should not amount to a fishing expedition.

Juma Kenyi v Grindlays Bank U Ltd

UCB v Akamba Uganda Ltd (1972) 4 KALR

- Where the court makes an order for discovery, delivery, and inspection and the party so ordered fails to comply with the court order, O10 r21 applies.

Said Tibazarwa v Uganda Commercial Bank ((Civil Suit No.13 Of 1996

; During the hearing of the suit, Plaintiff applied for an order of Court requiring the Bank to produce for his inspection banker's books and other documents pertaining to his Account No and was granted; when the bank refused to produce the said documents, counsel for the Plaintiff applied for striking out Defendant's Written Statement of Defence (WSD) pursuant to 0.10, r. 21 of the Civil Procedure Rules (CPR), on the grounds of the failure by the UCB to obey Court's orders to produce bankers' books/documents.

Held; Indeed, the Banks' documents existed and were in safe custody at all material times. But for reasons best known only to itself, the Bank has chosen not to produce them as ordered by Court. It is precisely this kind of disobedience that 0.10, r.21 of the CPR was designed to remedy. Accordingly, I have no qualms whatsoever in deciding to invoke, in this instant case, the remedy prescribed under 0.10, r.21 of this CPR. The WSD was struck out.

Juma Kenyi v Grindlays Bank U Ltd

O6R4 (further and better particulars)

Tororo Cement v Frokina International; held; that where a plaint discloses a cause of action but is deficient in particulars, the plaint can be amended so as to include particulars, say of negligence. That the alternative is for the appellant to ask for further and better particulars under



0.6 Rule 3. Or indeed, the plaintiff could have sought leave to amend the plaint. This course would have avoided the necessity for these proceedings.

Remmy Kasule v Jack Sabiti

